

COGITO ERGO SUM

It's daring to be curious

To dream big dreams

To stay persistent

And above all, it's daring to pave the way

I learn, I aspire, I choose

Therefore, | AM

Prelims Concise Notes 2.0 : Magna Carta Prelims Advanced Prelims 2026

Atish Mathur

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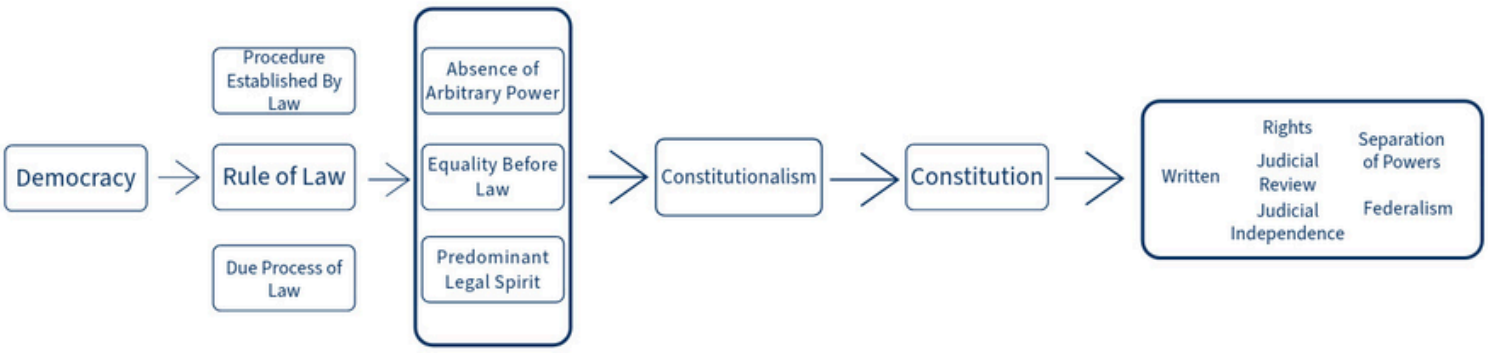
Theories & Concepts

Theory / concept	Meaning	Main thinkers
Social Contract	State's authority is justified by a "contract" to escape insecurity/chaos.	**Hobbes, Locke, Rousseau**
Leviathan	Strong sovereign needed to prevent "war of all against all."	**Thomas Hobbes**
Natural Rights	Rights are **inherent** (life, liberty, property); State must protect them.	**John Locke**
General Will	True freedom comes from obeying the collective/common will.	**Jean-Jacques Rousseau**
Separation of Powers	Liberty protected by dividing power: legislature–executive–judiciary.	**Montesquieu**
Rule of Law	No arbitrary power; law is supreme; equality before law.	**A.V. Dicey** (classic)
Justice as Fairness	Fair rules chosen behind **veil of ignorance** (original position).	**John Rawls**
Utilitarianism	Right policy = **greatest happiness** for greatest number.	**Bentham, J.S. Mill**
Harm Principle	Restrict liberty only to prevent **harm to others**.	**J.S. Mill**
Negative vs Positive Liberty	Freedom **from** interference vs freedom **to** actually do/achieve.	**Isaiah Berlin**
Rights as "trumps"	Rights can override cost–benefit "greater good" arguments.	**Ronald Dworkin**
Will/Choice theory of rights	Rights protect **control/choice** (claim, waive, transfer).	**Kant (roots), H.L.A. Hart**
Interest theory of rights	Rights protect important **interests/welfare** of persons.	**Joseph Raz**
Participatory Democracy	People should participate beyond elections (workplace/community).	**Carole Pateman**
Deliberative Democracy	Legitimacy comes from **deliberation** and public reasoning.	**Habermas; Rawls (variant)**
Realism (IR)	States pursue power/national interest in anarchy.	**Morgenthau**
Neorealism	International structure (anarchy) shapes state behavior.	**Kenneth Waltz**
Offensive Realism	Great powers seek dominance/hegemony for security.	**John Mearsheimer**
Liberal Institutionalism	Institutions enable cooperation by reducing mistrust/costs.	**Keohane; Nye**
Soft Power	Influence via attraction and credibility, not coercion.	**Joseph Nye**

Ideologies/Forms of Govt

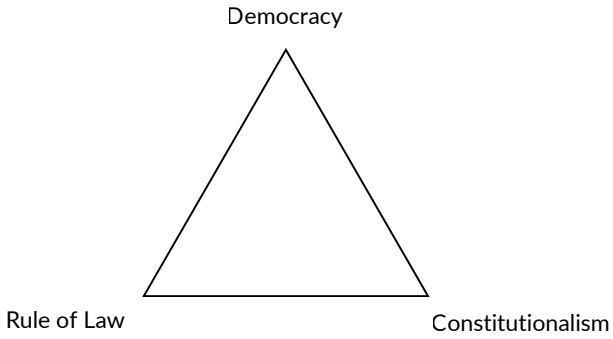
Theory / concept	Meaning	Main thinkers
Liberalism	Individual rights, constitutionalism, limited govt; freedom + rule of law.	**Locke; J.S. Mill; Berlin**
Classical Liberalism	Strong property rights, minimal state, free markets.	**Locke; Adam Smith**
Social Liberalism	Freedom needs welfare/education/health support by state.	**T.H. Green; Keynes (policy influence)**
Socialism (broad)	Economy should prioritize equality; social ownership/collective control.	**Marx; Engels** (major strand)
Marxism	Class struggle; capitalism's contradictions; socialism via revolutionary change.	**Karl Marx; Engels**
Democratic Socialism	Socialist goals via **democratic** means + civil liberties (multi-party).	**Eduard Bernstein**
Communism	Classless, stateless ideal; historically: one-party revolutionary state claimed as transition.	**Marx; Lenin** (political model) *(Gandhi- stateless ideal)*
Dialectical Materialism	Reality is ultimately **material** (the world shapes ideas) Society and economy—real conflicts (especially class struggle)	**Marx**
Dialectical Idealism	Reality is ultimately ideal/mental (ideas shape the world)	**Engel**
Multiculturalism	Diversity recognition; group-differentiated rights sometimes justified.	**Will Kymlicka; Charles Taylor**
Authoritarianism	Limited political pluralism; strong executive; controlled opposition.	**Juan Linz** (analysis)
Totalitarianism	State controls society deeply (ideology, party, surveillance).	**Hannah Arendt** (classic)
Democracy (direct)	Citizens decide policies directly, not only via reps.	**Rousseau (idealised); modern referenda models**
Democracy (representative)	Citizens elect representatives who govern.	**Locke; Madison (institutional)**
Parliamentary system	Executive depends on legislature's confidence; fusion of powers.	**UK Model**
Presidential system	Separately elected executive; fixed term; separation of powers.	**U.S. model; Madison (framers)**
Federalism	Power shared between levels of govt by constitution.	**Montesquieu (idea); Wheare (classic)**

- **Meaning :**
  - A legal doctrine wherein decisions taken by the State are based on established and just laws. It restricts the powers of the State by compelling it to conform to the laws of the land.
- **International Report :**
  - India ranks ***86th out of 143 in the Rule of Law Index 2025*** prepared by World Justice Project
  - Parameters
    - ***1 | Constraints on Government Powers***
    - ***2 | Absence of Corruption***
    - ***3 | Open Government***
    - ***4 | Fundamental Rights***
    - ***5 | Order and Security***
    - ***6 | Regulatory Enforcement***
    - ***7 | Civil Justice***
    - ***8 | Criminal Justice***
- **Pillars :**
  - **Absence of Arbitrary Power**
    - An action taken by the State by the application of their own mind and not the application of law.
  - **Equality Before Law**
    - Everyone is equally accountable for violating the law and no special treatment for anyone irrespective of any criteria
  - **Predominance of Legal Spirit**
    - Courts have the power to review an action objectionable to law
- **Application of Rule of Law in India :**
  - Rule of Law is NOT explicitly mentioned in the Constitution of India but is reflected in many of our Constitutional Provisions and/or Constitutional principles relating to
    - Written/Singularly Codified Constitution
    - Fundamental Rights
    - Procedure Established by Law and Due Process of Law
    - Principles of Natural Justice
    - Democracy and Universal Adult Suffrage
    - Judicial Independence
    - Judicial Review
    - Separation of Powers
    - Federalism
- The Constitution of India places the duty to uphold Rule of Law primarily with the Judiciary.
- Essentially a doctrine, the SC has repeatedly recognised Rule of Law as a part of the Basic Structure

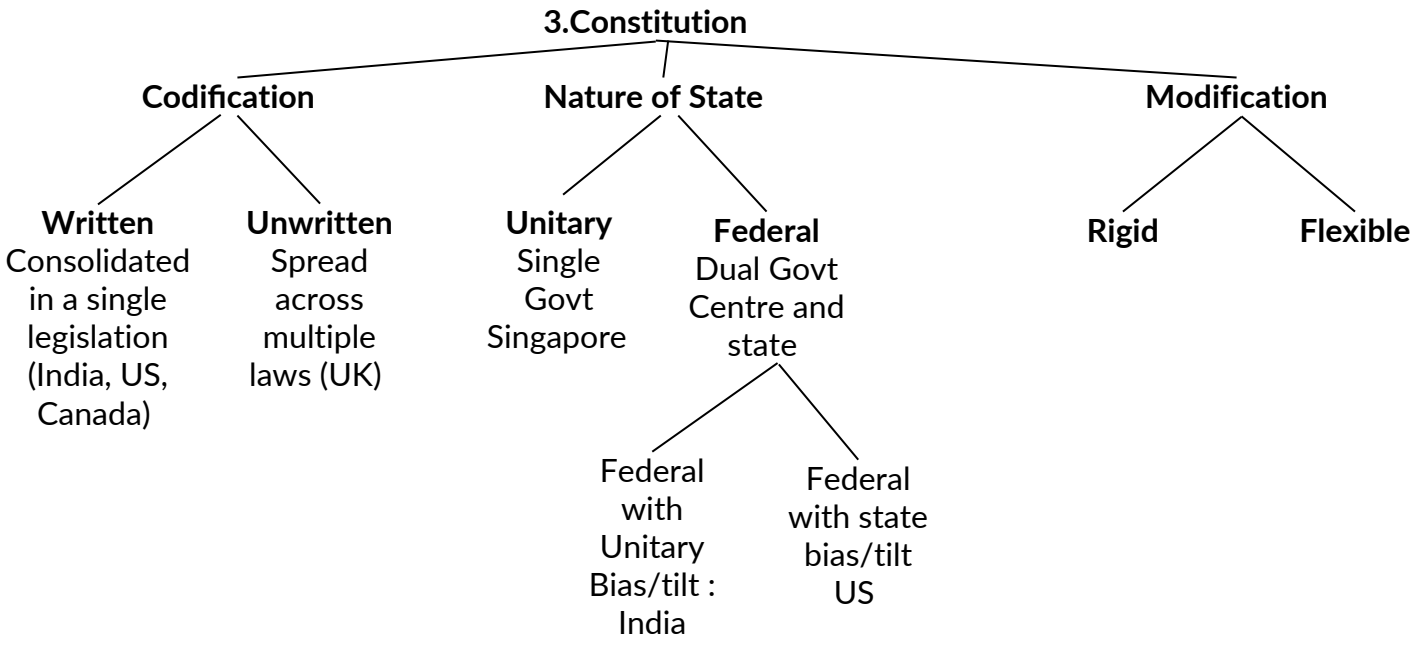


Term	Constitutionalism	Constitutional Law	Constitution
Meaning	A legal concept that seeks to limit the powers of the Govt.	Means through which structure and limitations of the Govt are sought.	An exhaustive legislation that singularly seeks to provide structure and limitations of the Govt.

1. **Constitutionalism :**
   a. A concept of political science and legal philosophy which states that it is necessary to limit the powers of the Govt.
   b. The doctrine of Rule of Law is the basis of Constitutionalism.
   c. Democracy is non negotiable for both Rule of Law and Constitutionalism.
   d. A Constitutional Govt. is a govt whose powers are limited. This can be done by Constitutional Laws including a Constitution.
   e. Governments with unlimited powers can never be democratic Govts. Therefore, Constitutional Governments are always democratic Governments.



2. **Constitutional Law :**
   - Branch of law dealing with sources of law that determine the structures and/or limitations of government. Sources include :
     - Legislation : Constitution (1950), Pres & VP Elections Act, 1952 etc.
     - Judicial Precedent : Kesavananda Bharti(1973) , Minerva Mills(1980)
     - Customs/Conventions : senior most SC judge to become CJI



Prelims Concise Notes 2.0 (PCN) 2:
Making of India's Constitution :
Legal History (British Acts and Constituent Assembly), Layout, Core Features.

India's Freedom Movement

World Wars, Global Freedom Movements and Constitutions

India's Independence & The Making of India's Constitution

Transition from Monarchy to Parliamentary Monarchy in the UK

Transition from Company to Crown Rule

Timeline

Phase I : Rise of the Company

- **1600** Charter incorporating English East India Co.
- **1726** Charter Regulating Company Powers
- **1757** Battle of Plassey EEIC gained political and economic power

Phase II : Controlling the Company

- **1773** Regulating Act
- **1784** Pitt's Act
- **1793** Charter Act
- **1813** Charter Act
- **1833** Charter Act
- **1853** Charter Act

Phase III : Consolidation of the Crown Rule

- **1858** GoI Act
- **1861** Indian Councils Act
- **1895** *Constitution of India Bill*
- **1909** Indian Councils Act
- **1916** *Lucknow Pact*
- **1919** GoI Act

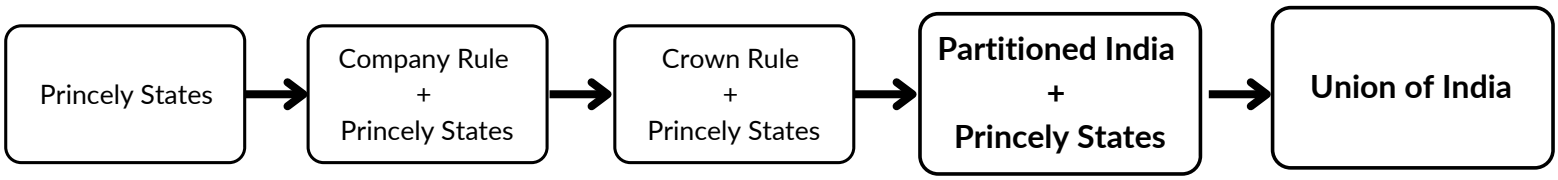
Phase IV : Struggle for self rule

- **1925** *The Revolutionary*
- **1925** *Commonwealth of India Bill*
- **1928** *Nehru Report*
- **1929** Irwin Declaration
- **1930** *Poorna Swaraj*
- **1931** *Karachi Resolution*
- **1932** *Poona Pact*
- **1935** GoI Act

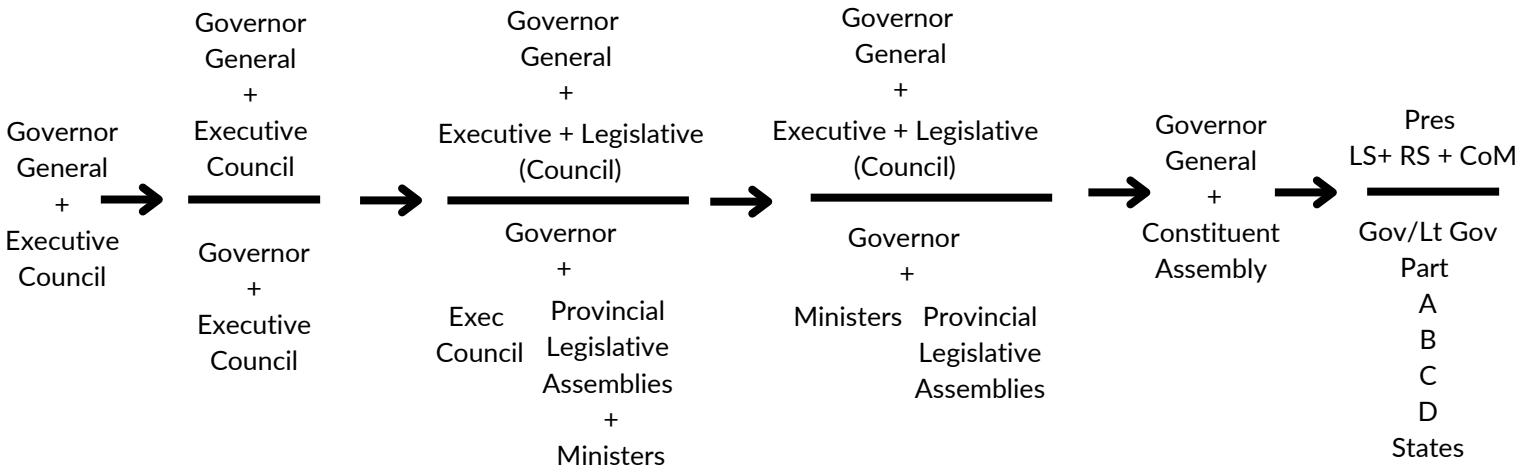
Phase V : Advent of India's Independence

- **1946** Cabinet Mission
- **1946** Constituent Assembly
- **1947** Indian Independence Act
- **1949** CoI Ready
- **1950** CoI fully enforced
- **1952** 1st General Elections

Political Evolution



Institutional Evolution



Prelims : Important Legislations

Act	Key Features	Highlight
Charter of 1726	• **Legislative & Executive** ◦ Governors in Council of Bombay, Madras, Calcutta can make bye laws, rules, and ordinances as per English Laws subject to Court of Directors (based in England) approvals. • **Judicial** ◦ Uniform judicial system (Mayor's Courts) was introduced in all the three presidency towns of Calcutta, Bombay, and Madras ◦ Introduced the system of appeal from India to the Privy Council in England. Wherever the Indian law was deficient the Privy Council used English Law.	• Established English Law in India
Regulating Act, 1773	• **Legislative & Executive** ◦ Governor of Bengal designated as Governor General of Bengal ▪ Advised by 4 member Executive Council ▪ Governors of Madras & Bombay subordinate to Governor General of Bengal ▪ Reforms in composition of Court of Directors in England • **Judicial** ◦ Supreme Court established at Calcutta ▪ Amendment in 1781 • Actions of Gov General and Executive Council were exempted from SC • Revenue matters were also exempt from SC • Required Personal Law to be considered when necessary	• First notable attempt by British Parliament to regulating Company Affairs • Idea of Cabinet govt • Foundation of Central Administration

Act	Key Features	Highlight
Pitt's Act, 1784	• **Legislative & Executive** ◦ Board of Control established in India ▪ BoC responsible for civil and military functions ▪ Company's Court of Directors responsible for commercial functions ◦ Council of Governor General reduced from 4 to 3 ▪ Commander in Chief of the Kings Army also made a part of Council ◦ Company Territories called British Territories for the first time.	• Dual Government
Charter Act, 1793	• **Legislative & Executive** ◦ Governor General not bound by Council advice under special circumstances (would also apply to Governors) ◦ Crown approval necessary for for the appointment of the Governor-General, Governors, and the Commander-in-Chief. • **Judicial** ◦ Concept of Civil Law was introduced to Indians.	• Balancing British Control and Company Expansions
Charter Act, 1813	• **Legislative & Executive** ◦ While the powers of the three Councils of Madras, Bombay and Calcutta were increased, all of their regulations were required to laid before British Parliament. ◦ Local Governments could impose taxes ◦ Grant of Rs. 1 Lac was set aside for literature, science, and educating Indians under their rule.	• Company monopoly broken and greater Parliamentary oversight of Presidencies
Charter Act, 1833	• **Legislative & Executive** ◦ Governor General renamed as Governor General of India ▪ Control over civil, military, and revenue functions of all British territories in India. ▪ Exclusive legislative functions for whole of British territories subject to certain restrictions. • Government of Bombay and Madras lost their legislative powers and were brought under the Governor-General of India ▪ Governor General of India's Council expanded back to 4 • 4th Member to be Law Member - assisted in law making functions but no role in executive decision making ▪ Provisions for abolition of slavery in India	• Faint beginnings of constitution making during British Rule in India. • Centralised legislative powers
Charter of 1853	• **Legislative & Executive** ◦ Governor General of India's would have 2 branches (12 total incl. Gov Gen) ▪ Governor General of India's Executive Council (5 members) • Included the Law Member as a permanent member and civil servants • Executive Council could veto laws made by legislative council ◦ Governor General of India's Legislative Council - law making (6 members) *(Exec council members were ex-officio members of Legislative Council)*	• foundations for a parliamentary system of government

Act	Key Features	Highlight
GoI Act, 1858	• **Legislative & Executive** ◦ Queen Elizabeth proclaimed as the empress of India ◦ Created office of Secretary of State for India, a minister of Great Britain's cabinet, who would preside over the India Office in London ▪ Assisted and advised, especially in financial matters, by a Council of India, which consisted initially of 15 British Nationals, 7 of whom were elected from among the old company's court of directors and 8 of whom were appointed by the crown ◦ Governor General of India renamed as Viceroy	• Beginning of full Crown Rule
Indian Councils Act, 1861	• **Legislative & Executive** ◦ Viceroy's Executive Council was expanded to include a Jurist (4+1) ◦ Viceroy's Legislative Council was also expanded and non officials (including Indians) could be included. (6-12) ◦ Important and sensitive matters required prior sanction of Viceroy and all laws required assent of Viceroy ◦ Viceroy had powers to allocate portfolios to Executive Council members ◦ Legislative powers of Madras and Bombay were restored ◦ Legislative Councils set up in Bengal, Punjab, North West Frontier Province • **Judicial** ◦ High Courts replaced Supreme Courts	• Indians in legislative work for the first time.
Indian Councils Act, 1892	• **Legislative & Executive** ◦ Electoral System was introduced - term used - 'nomination' of non official members ◦ Viceroy's Legislative Council - Increased representation of non officials (including Indians) [10-16] ▪ Non official members nominated by Viceroy on recommendation of Provincial Legislative Councils and Bengal Chamber of Commerce ◦ Provincial Legislative Councils - Additional members also increased ▪ Governors on the recommendation of District Boards, Municipalities, trade associations, and Universities ◦ Legislative Councils could hold discussions on budgets and issues of public interest	• Amending Act to 1861 keeping 1861 Act mostly the same
Indian Councils Act, 1909 (Morley - Minto Reforms)	• **Legislative & Executive** ◦ Increased strength of Central Legislative and Provincial Legislative Councils ▪ Central : 60 (official members > non official members) ▪ Provincial : 30-50 (non official members < official members) ◦ System of indirect elections ◦ Separate electorates for Muslims	• Separate Electorates

Act	Key Features	Highlight
GoI Act, 1919 (Montague - Chelmsford Reforms)	• **Legislative & Executive** ◦ **Central** ▪ Viceroy's Legislative Council becomes bicameral • Council of State (Upper House) • Legislative Assembly (Lower House) • Nominated members would still have power but each house would have an elected majority • Direct Election based on constituencies delimited by Act & Rules. • Separate electorates extended to Sikhs as well. • Limited Franchise based on education, property, and tax. • Necessary to obtain the previous sanction of the Governor General/Viceroy before introducing any bill relating to matters enumerated in the provincial list • The central subjects included foreign and political relations, the public debt, tariff and customs, patents, currency, communications etc. • The residual powers were vested in the Viceroy ◦ **Provincial** ▪ Dyarchy • Under this division the subjects were divided into two halves called 'Reserved' and 'Transferred'. ◦ The Governor and the members of his Executive Council were to administer the reserved subjects. ▪ Subjects included police, justice, control over printing presses, irrigation, land revenue, factories ◦ The transferred subjects were to be administered by the Governor acting with ministers. ▪ local self-government, health, education and some departments relating to agriculture ▪ Governors could reject advice of Ministers ▪ The Governor and the members of the Executive Council were appointed by the British Government and were jointly responsible to the Viceroy and the Secretary of State for India. ▪ Franchise limited to property and women were not allowed to vote or contest. ▪ The Act was not applicable throughout India • ***Act to be reviewed after 10 years (Simon Commission)***	• Dyarchy • Direct Elections • Bicameralism

Act	Key Features	Highlight
GoI Act, 1935	• Based on 2 Principles : ◦ Federation with a Unitary Bias ◦ Parliamentary System • **Legislative & Executive** ◦ **Central** ▪ All India Federation = British Provinces + Princely States *(did not materialise due to objectionable conditions placed before Princely States for them to join)* • Bicameralism : Upper House & Lower House ▪ Dyarchy at the Centre was to be introduced ▪ Three Lists • Federal : Reserved & Transferred • Provincial List • Concurrent List ▪ The Federal list for the centre consisted of 59 items such as external affairs,. currency and coinage- naval, military and air forces- and census, etc. ▪ Foreign Affairs and Defence were reserved for the Governor-General ▪ Reserve Bank of India was setup ◦ **Provincial** ▪ Dyarchy introduced by GoI Act 1919 abolished • Reserved and Transferred Lists abolished and Provincial List introduced ▪ Bicameralism introduced in several provinces ▪ Franchise still limited to property ▪ Separate Electorates for Muslims, Sikhs, Christians, ▪ Joint Electorates for 'Depressed Classes' (Poona Pact) ▪ Special provisions providing limited voting and contesting rights for women • **Judicial** ◦ Federal Court of India was established	• Federal System : provinces no longer agents of the Centre • Provincial Autonomy
Indian Independence Act, 1947	• Authorised Partition of India • India and Pakistan became independent dominions under Governor General who was a representative of the Crown • Transferred legislative authority to Constituent Assemblies of India and Pakistan • Constituent Assembly of India repealed this Act through Art 395 symbolically severing no links to Britain.	• Independent Dominion • Transfer of Power to Constituent Assembly
Constitution of India Act, 1950	• India becomes a sovereign republic.	• Sovereign Republic

Making of the Constituion : Constituent Assembly

1. **Legal basis:** Cabinet Mission Plan, 1946
    a. The British government proposed a Constituent Assembly to frame India's Constitution.
    b. The plan fixed the composition, method of election, and representation.
2. **Total strength**
    a. 389 members originally (After Partition, strength reduced to 299 for India.)
        i. 296 from British Indian Provinces
        ii. 93 from Princely States
3. **Members from British Indian Provinces were chosen (296)**
    a. Indirect election by Provincial Legislative Assemblies (Elections held in 1946)
    b. Key features:
        i. MLAs voted using proportional representation with single transferable vote (PR-STV).
        ii. Seats were allocated by population (roughly 1 seat per 10 lakh people).
        iii. Communal representation:
            1. Separate seats for General, Muslims, and Sikhs.
4. **Members from Princely States were chosen (93)**
    a. Members were nominated by rulers of princely states. (No Elections)

Key Functionaries

Name	Position
Sachchidanand Sinha	Temporary President (Initial)
Dr. Rajinder Prasad	President, Chair - Rules, Steering, and National Flag Committee
S.C Mookherjee	Vice President
TN Krishnamachari	Vice President
BR Ambedkar	Chair - Drafting Committee
Vallabhai Patel	Chair - Provinces Committee

Committee	Chairperson	Important Members
Drafting Committee	Dr. B. R. Ambedkar	N. Gopalaswami Ayyangar, Alladi Krishnaswami Ayyar, K. M. Munshi, Mohammad Saadulla, B. L. Mitter (later replaced by N. Madhava Rau), D. P. Khaitan (later replaced by T. T. Krishnamachari)
Union Powers Committee	Jawaharlal Nehru	Vallabhbhai Patel, Rajendra Prasad, B. R. Ambedkar, K. M. Munshi
Union Constitution Committee	Jawaharlal Nehru	B. R. Ambedkar, Vallabhbhai Patel, Alladi Krishnaswami Ayyar
Provincial Constitution Committee	Sardar Vallabhbhai Patel	B. R. Ambedkar, K. M. Munshi, Alladi Krishnaswami Ayyar
Advisory Committee on Fundamental Rights, Minorities & Tribal Areas	Sardar Vallabhbhai Patel	J. B. Kripalani, Rajendra Prasad, K. M. Munshi, B. R. Ambedkar
Fundamental Rights Sub-Committee	J. B. Kripalani	B. R. Ambedkar, K. M. Munshi, Alladi Krishnaswami Ayyar
Minorities Sub-Committee	H. C. Mookerjee	Frank Anthony, Sardar Patel, K. M. Munshi
North-East Frontier Tribal Areas Committee	Gopinath Bordoloi	Jaipal Singh, A. V. Thakkar
Excluded & Partially Excluded Areas Committee	A. V. Thakkar	Jaipal Singh, B. R. Ambedkar
Rules of Procedure Committee	Rajendra Prasad	H. C. Mookerjee, B. Pattabhi Sitaramayya
Steering Committee	Rajendra Prasad	Jawaharlal Nehru, Sardar Patel, B. R. Ambedkar
States Committee	Jawaharlal Nehru	Sardar Patel, K. M. Munshi
Finance and Staff Committee	Rajendra Prasad	Ananthasayanam Ayyangar
Credential Committee	Alladi Krishnaswami Ayyar	Members drawn from Assembly
House Committee	B. Pattabhi Sitaramayya	Members drawn from Assembly

Part No.	Part Title	Articles	Added
Part I	The Union and its Territory	Art. 1–4	Original Constitution
Part II	Citizenship	Art. 5–11	Original
Part III	Fundamental Rights	Art. 12–35	Original
Part IV	Directive Principles of State Policy	Art. 36–51	Original
Part IVA	Fundamental Duties	Art. 51A	**42nd Amendment Act, 1976**
Part V	The Union	Art. 52–151	Original
Part VI	The States	Art. 152–237	Original
Part VII	States in the B Part	—	**Repealed by 7th Amendment Act, 1956**
Part VIII	Union Territories	Art. 239–242	Original
Part IX	Panchayats	Art. 243–243O	**73rd Amendment Act, 1992**
Part IXA	Municipalities	Art. 243P–243ZG	**74th Amendment Act, 1992**
Part IXB	Co-operative Societies	Art. 243ZH–243ZT	**97th Amendment Act, 2011**
Part X	Scheduled and Tribal Areas	Art. 244–244A	Original
Part XI	Relations between Union & States	Art. 245–263	Original
Part XII	Finance, Property, Contracts & Suits	Art. 264–300A	Art. 300A added by **44th Amendment, 1978**
Part XIII	Trade, Commerce & Intercourse	Art. 301–307	Original
Part XIV	Services under Union & States	Art. 308–314	Original
Part XIVA	Tribunals	Art. 323A–323B	**42nd Amendment Act, 1976**
Part XV	Elections	Art. 324–329A	Original (329A later repealed)
Part XVI	Special Provisions for SC/ST & Minorities	Art. 330–342	Original
Part XVII	Official Language	Art. 343–351	Original
Part XVIII	Emergency Provisions	Art. 352–360	Original
Part XIX	Miscellaneous	Art. 361–367	Original
Part XX	Amendment of the Constitution	Art. 368	Original
Part XXI	Temporary, Transitional & Special Provisions	Art. 369–392	Original
Part XXII	Short Title, Commencement, Authoritative Text	Art. 393–395	Original

Prelims Concise Notes 2.0 (PCN) 3:
Majorities, Constitutional Amendments, Basic Structure

Constitutional Amendments

Type of Majority	Meaning	Where Required	Key Articles / Amendments
Simple Majority	More than 50% of members present and voting	Not a constitutional amendment technically but applies to provisions treated as ordinary law	Art. 2/3/4 induced, 169, 239A, 312,
Special Majority	Majority of total membership AND 2/3rd of members present & voting	Most constitutional amendments	Art. 368(2)
Special Majority + Ratification by States	Special Majority + approval by at least ½ of State Legislatures	Amendments affecting federal structure	Art. 368(2) proviso

Step	What Happens	Key Points
1. Introduction of Bill	Amendment Bill can be introduced in either House of Parliament	Cannot be introduced in State Legislatures
2. No Prior Permission Needed	Bill does not require President's recommendation	Unlike Money Bills
3. Type of Majority Applied	Depends on nature of amendment	Simple / Special / Special + State ratification
4. Passage in Each House	Each House must pass the Bill separately	No joint sitting allowed
5. State Ratification (if required)	At least ½ of State Legislatures must ratify	No time limit prescribed
6. President's Assent	President must give assent	No veto available
7. Amendment Comes into Force	On assent (or on date specified)	Becomes part of Constitution

Imp : Please read Article 368 directly from the Bare Act as well

Basic Structure : Not defined or mentioned anywhere in Constitution
Constituent Power : Mentioned and partially defined in the Constitution (Power to Amend the Constitution)

Welfarist/ Socialist/ Land Reforms/ Nationalisation Policies → **Constitutional Amendments Limiting Challenges to Land Reforms & Nationalisation Policies** → **Extent to which Constitution can be amended** → **Doctrine of Basic Structure**

(Reference of Key Articles to understand Timeline on next page)

Provision	Description
Art 13(2)	No 'law' can violate FR
Art 13(4)	CA are not 'law' as per Art 13(4); Added via 24th CA, 1971
Art 19(1)(f)	Freedom to acquire, hold and dispose of property (removed via 44 CA, 1978)
Art 31(1)	No person shall be deprived of his property except by law (removed via 44 CA, 1978)
Art 31(2)	The State can only acquire property for public purposes and would have to compensate (removed via 44 CA, 1978)
Art 31A	State acquisition of property not violative of FRs. (added via 1st CA, 1951)
Art 31B	Inserted IXth Schedule, Laws under IXth Schedule judicially non reviewable (added via 1st CA, 1951)
Art 31C	Laws made to implement Art 39(b) and 39(c) don't violate Art 14, 19 (added via 25th CA, 1971)
Art 39(b)	State to make policies towards ensuring equitable distribution of ownership and control of *material resources* of the community (*used for land reforms, bank nationalisation, abolition of privy purses)*
Art 39(c)	State to make policies towards preventing concentration of wealth and means of production (*used for land reforms, bank nationalisation, abolition of privy purses)*
Art 300A	No person shall be deprived of his property except by Law (added via 44th CA, 1978)
Art 368	Power of the Parliament to amend the Constitution and the procedure for it.

THE GRAND TIMELINE

1948 : Madras introduced caste based reservations in Education

Early 1950s : Several states such as Bihar, UP, MP pass agrarian land reform laws restricting ownership

State of Madras v. Champakam Dorairajan (1951) : Madras 1948 law struck down, FR > DPSP

1st CA, 1951

PM : Nehru

- **Art 15(4) :** State can make provisions for SEBC, SC, ST advancement (Champakam nullified)
- **Art 19(2) :** Restrictions relating public order, friendly relations with foreign states and incitement to an offence added (to counter Romesh Thapar (1951) Art 19 related judgement)
- **Art 19(6)(ii) :** State can fully/partially monopolise any trade, business, industry or service
- **Art 31A :** Property acquisition by State would not violate Art 14, 19,31
- **Art 31B** : Inserted IXth Schedule, any law inserted in the IXth Sch. could not challenged on grounds of violation of FRs.

Shankari Prasad v. Union of India (1951) :

- CA are not 'law' as per Art 13(2)
- 2 types of law making powers
  - Constituent : To amend CoI under Art 368
    - Parl has unlimited constituent power to amend anything in CoI
  - Ordinary : As per Sch VII (Included in 'law' as per Art 13(2)

17th CA, 1964 : Added 44 laws to IXth Sch. **PM : Shastri**

Sajjan Singh v. State of RJ (1965) : Reaffirmed CA not law under Art 13(2) *(Contention was that 17th CA reduced HC powers by disallowing judicial review, and should have been passed using state ratification majority)*

Golak Nath v. State of PB (1967) :

- FRs have a 'transcendental' position in CoI
- CA are 'law' as per Art 13(2) (*overruled Shankari and Sajjan Singh)*
- Parl cannot amend anything in Part III from now on *(Doctrine of prospective overruling - judgement only applicable for future cases)*

24th CA, 1971 :

- **Art 13(4) :** Art 13 wont apply to CA under Art 368 implying CA are not 'law' as per Art 13(2) (*negatived Golak Nath)*
- **Art 368 : Title :** from 'Procedure' to 'Power to amend CoI and procedure thereof.'
- **Art 368(1):** Parl. has constituent power to amend any provision in CoI (*negatived Golak Nath*)
- **Art 368(2)**: Pres. can only give assent to CA Bills, can't reject/return.
- **Art 368(3):** Art 13 wont apply to CA under Art 368 implying CA are not 'law' as per Art 13(2) *(negatived Golak Nath)*

RC Cooper v. UoI (1970) : Struck down Bank Nationalisation on grounds of inadequate compensation and violation of property rights under Art 31

Govt had nationalised private banks and abolished privy purses in pursuit of DPSPs under Art 39(b) and Art 39(c)

25th CA, 1971 :

- Art 31 : inadequate compensation can't be challenged in court
- Art 31C : 39(b)(c) > Art 14,19,31
  - Laws enacted to implement Art 39(b)(c) can't be challenged

Scindia v. UoI (1971) : Abolition of Privy Purses (assured under Art 291, 362)

26th CA, 1971 : Removed Art 291 and 362, inserted Art 363 A abolishing Privy Purses **PM : I. Gandhi from 66-77**

29th CA, 1971 : Kerala land reform Acts were added to the IXth Sch

Kesavananda Bharti v. KL (1973)

(24th, 25th, 29th CA Challenged)

- CA not 'Law' under Art 13 *(Upheld 24th CA, overruled Golak Nath)*
  - Parliament can amend anything subject to Basic Structure *(Principles laid down by SC from time to time)*
- *Art 31C : 39(b)(c) > Art 14,19,31 BUT judicially reviewable (partially upheld 25th CA)*

39th CA, 1975 : Pres, VP, PM, Lok Sabha Speaker elections not judicially reviewable

Indira Gandhi v. Raj Narain (1975) :

- Struck down 39th CA as judicial review, free/fair elections are basic structure
- First case of application of Basic Structure Doctrine

42nd CA, 1976 :
- **Preamble :** added 'socialist', 'secular', and integrity
- **Art 31C :** All DPSP > 14,19,31

(Changes to 54 provisions, hence 'mini const)

- Changes to Art 32,131, 226 limiting judicial review (later undone via 43rd CA, '77)
- **Art 368(4) :** CA under Art 368 could not challenged in court
- **Art 368(5) :** No limitation on constituent power of Parl to amend CoI

(nullifying Kesavananda Bharti)

44th CA 1978 :
PM : M. Desai
- Removed Art 19(1)(f) and Art 31[Art 31(1), 31(2)] as FR to Property, inserted Art 300A, Art 31A-C retained, (Constitutional/Legal Right available for all persons subject to certain restrictions)
- **Art 31C** : All DPSP > 14,19 (Art 31 removed)

Minerva Mills v. UoI (1980)
- Struck down Art 368(4) and Art 368(5)
- Art 31 C : (restored to pre 42nd position) : 39(b)(c)>14,19 with Judicial Review
- FRs and DPSP must be co-read harmoniously

Wama Rao v. UoI (1981): Laws added to IXth Sch after Kesavananda Bharti case can be challenged on grounds of Basic Structure but laws added before Kesavanada can't be. (Doctrine of prospective overruling)

IR Ceolho v. State of TN (2007) :
- Laws added to IXth Sch after Kesavananda Bharti case can be challenged on
  - Basic Structure
  - Essential Features
  - Art 14,15,19,21 specifically as well.

SC AoR Assn. v UoI (2015): (*4th Judges Case*) : 99th CA (NJAC) struck down;Independence of Judiciary is Basic Structure

Madras Bar Association v. UoI (2015) : Not just CA under Art 368, Ordinary laws also can't violate Basic Structure.

Anjum Qadri v. UoI (2024) (UP Madrassa): Must be specifically shown as to how ordinary laws violate basic structure.

Property Owners Association v. State of MH (2024):
- Art 31C's position as per Minerva Mills and Kesavananda Bharti is valid.
- All kinds and nature of property is not included in 'material resources' as per Art 39(b), can limit Govt acquisition of Property

Ingredients of Basic Structure (not defined in CoI)

Core Constitutional Principles

Principles	Cases
Supremacy of the Constitution	• Kesavanada Bharti v. State of Kerala (1973)
Rule of Law	• Indira Gandhi v. Raj Narain (1975) • IR Coelho v. State of Tamil Nadu (2007)
Separation of Powers	• Kesavanada Bharti v. State of Kerala (1973) • SR Bommai v. Union of India (1994) • IR Coelho v. State of Tamil Nadu (2007)
Federalism	• Kesavanada Bharti v. State of Kerala (1973) • SR Bommai v. Union of India (1994)
Limitations of amending power under Art 368	• Minerva Mills v. Union of India (1980)

Ingredients of Basic Structure

Rights Related

Principles	Cases
Principles behind Fundamental Rights	• Kesavanada Bharti v. State of Kerala (1973) • IR Coelho v. State of Tamil Nadu (2007)
Secularism	• Kesavanada Bharti v. State of Kerala (1973) • SR Bommai v. Union of India (1994) • Sri Adi Vishveshwarya of Kashi Vishwanath Temple, Varanasi v. State of UP (1997)
Balance between FRs and DPSPs	• Minerva Mills v. Union of India (1980)
Concept of social and economic justice, DPSP in toto	• Kesavanada Bharti v. State of Kerala (1973) • Bhim Singh JI v. Union of India (1981)
Objectives specified in the Preamble	• Kesavanada Bharti v. State of Kerala (1973)

Democracy Related Related

Principles	Cases
Parliamentary System of Govt	• Kesavanada Bharti v. State of Kerala (1973)
Principle of free and fair elections	• Kihoto Hollohan v. Zachillu (1993)
Parliamentary Democracy & Multi Party Systems	• Kuldip Nayar v. Union of India (2006)

Judiciary Related

Principles	Cases
Independent & Efficient Judicial Systems	• Registrar (Admin) v. Sisir Kant Satapathy (1999)
SC Powers under Art 32, 136, 141, 142	• Delhi Judicial Service Association v. State of Gujarat (1991)
Effective Access to Justice	• Central Coal Fields v. Jaiswal Coal Co. (1980)
Judicial Review, Art 32, Art 226/227	• Kesavanada Bharti v. State of Kerala (1973) • Indira Gandhi v. Raj Narain (1975) • Minerva Mills v. Union of India (1980) • SP Sampat Kumar v. Union of India (1987) • L Chandra Kumar v. Union of India (1997)
Independence of Judiciary	• SC AoR Assn. v. Union of India (1994)(2015)

Prelims Concise Notes 2.0 (PCN) 4:
Territory & Citizenship

- Territorial changes in India are primarily governed by Constitutional Provisions in Part I.
- The SC has addressed the gaps in the Constitutional Provisions through 2 major judgements.
- The changes due to Art 1-4 in Part actually are always made to Schedule I and occasionally to Schedule IV.
- Dhar, JVP, and Fazl Ali committees were appointed to suggest criteria for reorganising states.
- Post Independence, India was organised as Part A - D States, and later in 1956 after accepting the recommendations of the Fazl Ali Commission, India was reorganised into 14 States and 6 Union Territories.
- India currently has 28 states & 8 Union Territories.

Constitutional Provisions

Part I

Art 1	• Identifies India (Bharat) to be a Union of States • Defines *'Territory of India'* to include ◦ State territories ◦ Union territories ◦ territories that may be *acquired* in the future
Art 2	• Parliament by law can add new territories to India
Art 3	• Parliament by law can reorganise states and Union territories in India ◦ If reorganising states then before the bill is placed before the Parliament, ▪ Prior President recommendation needed ▪ Non binding reference to the concerned states legislature(s)
Art 4	• Laws made due to Art 2 or Art 3 would not be considered Constitutional Amendments u/Art. 368 irrespective of the impact those laws have.

Impact of Territorial Changes

Schedules

Sch. I

Name & Areas of States and Union Territories

Sch. IV

Number of seats to Rajya Sabha for States and Union Territories with Legislatures

RoPA, 1950

Number of seats to LS. SLA, SLC

Territorial Changes Matrix

Type of Territory	Type of Change	Procedure	Source
External	Integrating foreign territory (Disputed/Undisputed) in India	Reorganisation Act passed using simple majority as per Art 4	Art 2, Art 4
External	Giving away undisputed territory to another country	Reorganisation Act considered as a Constitutional Amendment u/Art 368 passed using Special Majority II	In Re: Berubari Union (1960)
External	Giving away disputed territory to another country	Reorganisation Act passed using Simple Majority	Maganbhai . UoI (1969)
Internal Changes	Changing name & area of existing states	Reorganisation Act passed using simple majority as per Art 4 while needing prior Presidential recommendation and non-binding reference to state legislature(s)	Art 3, Art 4
Internal Changes	Changing name & area of existing Union Territories	Reorganisation Act passed using simple majority as per Art 4	Proviso & Explanation I to Art 3, Art 4
Internal Changes	Changing city names	Not mentioned in the Constitution, state assemblies pass a resolution with a simple majority and send the proposal for Central approval.	MHA, 1953 guidelines with 2005 modification

Basically, any territorial change except giving away undisputed territory from India requires a simple majority to amend Sch I and Sch IV (if applicable). They are still called Constitutional Amendments.

Interesting Applications

- Integrations : Constitutional Amendments were NOT required in the following cases but were still done using Special Majority II to be on the safer side :
  - 10th CA, 1961 : Dadar & Nagar Haveli
  - 12th CA, 1962 : Goa & Daman & Diu
  - 14th CA, 1962 : Pondicherry, Yanam, Karaikal, Mahe
- Special Sikkim : Both constitutional amendments passed using Special Majority III
  - 35th CA 1975 : Added Art 2A : Seat in LS and RS despite **Sikkim being an independent country**
  - 36th CA 1975 : Removed Art 2A, added Art 371F : Sikkim became a regular state of India
- Land Boundary Agreement : India & Bangladesh
  - 100th Constitutional Amendment using Special Majority II : Combination of both types of external changes
- Merger of 2 UTS :
  - The Dadra and Nagar Haveli and Daman and Diu (Merger of Union Territories) Act, 2019 : Not a constitutional amendment, no prior Presidential Recommendation or reference needed.

Timeline of Reorganisation of India

Year	Change	Nature of Change	Area / Entity Affected	Resulting State / UT	Legal / Constitutional Basis	Remarks
1947	Accession of princely states	Integration	565 princely states	Union of India	Instruments of Accession	Led by Sardar Vallabhbhai
1947	Junagadh integrated	Accession + plebiscite	Junagadh	Part of Bombay State	Accession + referendum	Example of people's mandate
1948	Hyderabad annexed	Military action	Hyderabad State	Indian territory	Operation Polo	Example of coercive
1948	PEPSU formed	Merger	Patiala & East Punjab states	PEPSU	Merger agreement	Later merged with Punjab
1949	Travancore–Cochin merged	Merger	Travancore + Cochin	Travancore-Cochin State	Merger agreement	Later became Kerala
1950	Constitution comes into force	Classification	Entire India	Part A, B, C, D States	Constitution of India	Historically Based
1953	Andhra State created	Linguistic reorganisation	Telugu areas of Madras	Andhra State	Andhra State Act, 1953	First linguistic state
1956*	Major reorganisation	Reorganisation	All states	14 States + 6 UTs	States Reorganisation Act, 1956	Abolished Part A–D
1956	Kerala formed	Merger	Travancore-Cochin + Malabar	Kerala	States Reorganisation Act	Linguistic (Malayalam)
1956	Karnataka (Mysore)	Merger	Kannada regions	Mysore State	States Reorganisation	Renamed later
1960	Bombay State split	Bifurcation	Bombay State	Maharashtra & Gujarat	Bombay Reorganisation Act	Linguistic basis
1961	Goa, Daman & Diu annexed	Integration	Portuguese territories	Indian territory	Operation Vijay	End of European rule
1962	Goa, Daman & Diu	UT formation	Acquired territory	UT of Goa, Daman & Diu	Constitutional order	Later split
1962	Pondicherry integrated	UT formation	French settlements	UT of Puducherry	Treaty with France	De facto 1954
1963	Nagaland created	State formation	From Assam	Nagaland	State of Nagaland Act	First NE state

- ***State Reorganisation Act, 1956***
  - ***Correlated with 7th Constitutional Amendment, 1956.***
  - ***Initially, Dhar and JVP Committee had recommended against Linguistic Basis whereas, Fazl Ali Commission recommended a balanced approach of Language + Security + Admin Feasbility etc.***

- *Phase I: Integration and Initial Classification (1947–1950)*
- *Phase II: Linguistic Reorganisation (1953–1956)*
- *Phase III: Creation of New States (1960–1987)*
- *Phase IV: Statehood for UTs and Northeastern Expansion (1987)*
- *Phase V: Creation of Smaller States (2000)*
- *Phase VI: Recent Changes (2014–2020)*

Year	Change	Nature of Change	Area / Entity Affected	Resulting State / UT	Legal / Constitutional Basis	Remarks
1966	Punjab reorganised	Bifurcation	Punjab	Punjab & Haryana	Punjab Reorganisation Act	Linguistic + religious
1966	Chandigarh created	UT creation	From Punjab	Chandigarh (UT)	Punjab Reorganisation Act	Shared capital
1971	Himachal Pradesh	UT → State	Himachal Pradesh	State of HP	Statehood Act	Hill state
1972	Meghalaya created	State formation	From Assam	Meghalaya	NE Areas Act	Tribal autonomy
1972	Manipur	UT → State	Manipur	State of Manipur	NE Areas Act	Border sensitivity
1972	Tripura	UT → State	Tripura	State of Tripura	NE Areas Act	Tribal–ethnic balance
1972	Arunachal Pradesh	UT creation	From Assam	UT of Arunachal	NE Areas Act	Border with China
1972	Mizoram	UT creation	From Assam	UT of Mizoram	NE Areas Act	Insurgency background
1975	Sikkim	Protectorate → State	Kingdom of Sikkim	22nd State	36th Constitutional	Only accession by referendum
1987	Goa	UT → State	Goa	State of Goa	Goa Statehood Act	Smallest state
1987	Mizoram	UT → State	Mizoram	State of Mizoram	Statehood Act	Peace accord
1987	Arunachal Pradesh	UT → State	Arunachal Pradesh	State of Arunachal	Statehood Act	Strategic importance
2000	Chhattisgarh	State formation	From Madhya Pradesh	Chhattisgarh	MP Reorganisation Act	Tribal belt
2000	Jharkhand	State formation	From Bihar	Jharkhand	Bihar Reorganisation Act	Mineral-rich
2000	Uttarakhand	State formation	From Uttar Pradesh	Uttarakhand	UP Reorganisation Act	Hill administration
2014	Telangana	State formation	From Andhra Pradesh	Telangana	AP Reorganisation Act	First after 2000
2019	Jammu & Kashmir	State → UT	J&K State	UT of J&K & UT of Ladakh	J&K Reorganisation Act	Art 370 diluted
2020	UT merger	Merger	Dadra & Nagar Haveli + Daman &	Single UT	UT Merger Act	Administrative efficiency

International Border Lines of India

Border Line	Between	Region in India	Named After / Meaning	Key Facts / Significance
Radcliffe Line	India and Pakistan	Punjab, Rajasthan, Gujarat, Jammu region	Sir Cyril Radcliffe	• Demarcated during Partition in 1947 • Divided Punjab and Bengal
Line of Control (LoC)	India and Pakistan	Jammu & Kashmir, Ladakh	Ceasefire line converted after Shimla Agreement (1972)	• Separates Pok and Kashmir
Line of Actual Control (LAC)	India and China	Ladakh, Himachal Pradesh, Uttarakhand, Sikkim, Arunachal Pradesh	Military term, not formally demarcated	• De facto border • Originated after 1962 India-China war • Disputed and undefined in several sectors
McMahon Line	India and China	Arunachal Pradesh	Sir Henry McMahon (1914 Simla Convention)	• Separates Arunachal Pradesh from Tibet (China claims it invalid)
Durand Line	Pakistan and Afghanistan (Indirect relevance to India historically)	Historically relevant to India pre-1947	Sir Mortimer Durand	• Defined British India's northwest frontier (1893) • Now separates Pakistan and Afghanistan
Sir Creek Line	India and Pakistan	Gujarat (Rann of Kutch)	Creek region boundary	• Maritime boundary dispute • Important for EEZ and fishing rights
International Boundary (IB)	India and Pakistan	Punjab, Rajasthan, Gujarat	Officially recognized boundary	• Fully demarcated • Unlike LoC, not disputed (except Sir Creek)





LOC v. LAC

International Border Lines of India

Country	Length (km)	Indian States Sharing Border	Border Line Name
Bangladesh	4,096 km (Longest)	West Bengal, Assam, Meghalaya, Tripura, Mizoram	Radcliffe Line (Bengal part)
China	3,488 km	Ladakh, Himachal Pradesh, Uttarakhand, Sikkim, Arunachal Pradesh	LAC, McMahon Line
Pakistan	3,323 km	J&K, Ladakh, Punjab, Rajasthan, Gujarat	Radcliffe Line, LoC, IB, Sir Creek
Nepal	1,751 km	Uttarakhand, UP, Bihar, West Bengal, Sikkim	Open border (No specific named line)
Myanmar	1,643 km	Arunachal Pradesh, Nagaland, Manipur, Mizoram	No specific named line
Bhutan	699 km	Sikkim, West Bengal, Assam, Arunachal Pradesh	No specific named line
Afghanistan	106 km	Ladakh	Durand Line (historical relevance)

Contemporary Developments

- The Shaksgam Valley, also known as the Trans-Karakoram Tract,
  - A strategically vital, high-altitude region in the Karakoram mountains, ***belonging to India*** but administered by China, after Pakistan transferred control in a 1963 agreement that India rejects.
  - Located north of the Siachen Glacier and bordering China's Xinjiang, it's a territory significant for military positioning and resource potential, currently under Pakistani administration but claimed by China via the 1963 agreement.



- Wakhan corridor
  - Narrow strip of land in Afghanistan's Badakhshan province, sharing its border with Gilgit Baltistan (under PoJK) and Khyber Pakhtunkhwa (the erstwhile NWFP).
  - Its 75-kilometre eastern border connects to China's Xinjiang province, which was part of the historical Silk Road that connected China with Central Asia, Europe, and South Asia through Afghanistan.
  - The corridor is about 350-kilometre long and 20 to 60-kilometre wide in different parts, covering approximately 10,300 square-kilometre area.
  - Its rugged terrain and limited access make movement challenging, with the main pass running through near-impassable mountains east of the Little Pamir.



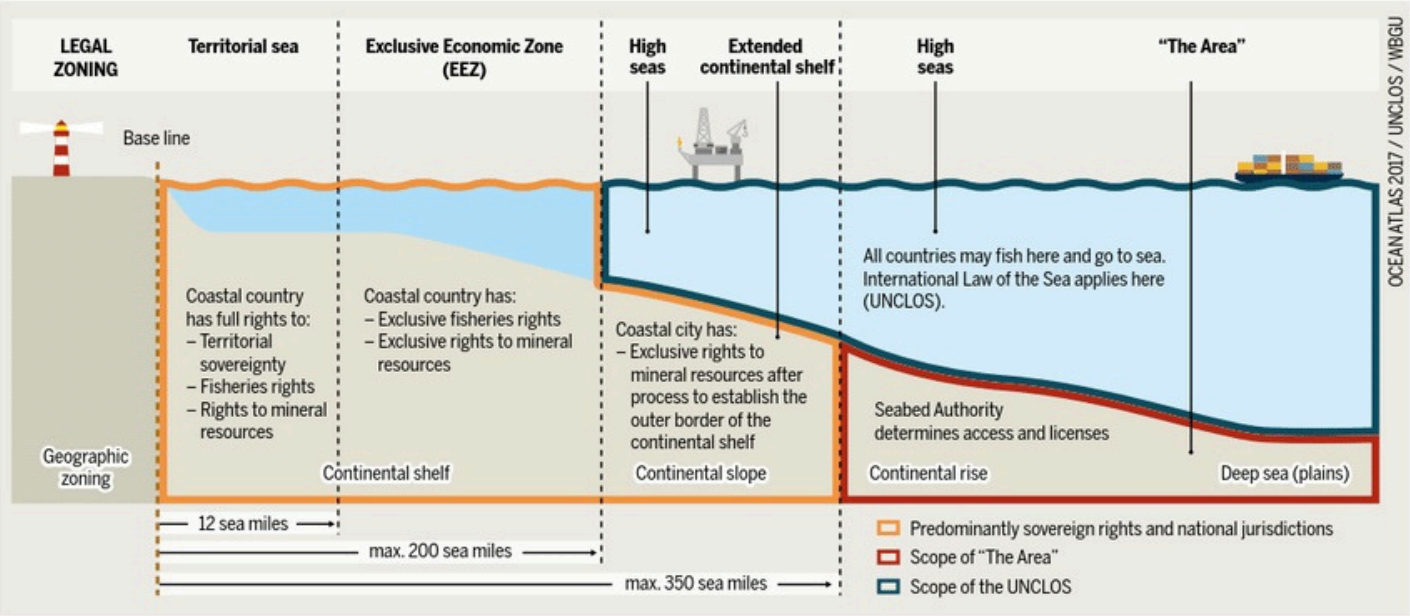
Source : ORF

International Conventions Governing Territory

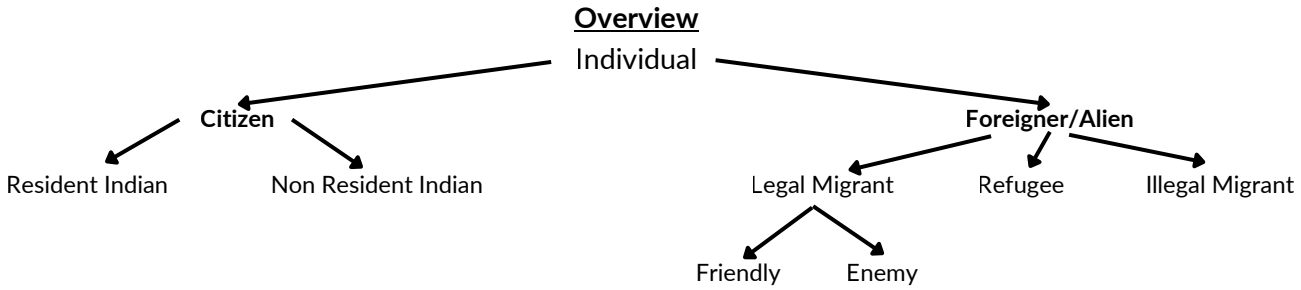
Convention / Treaty	Year	Territorial Domain	Scope	Key Provisions	Important Facts / Examples
United Nations Convention on the Law of the Sea (UNCLOS)	1982 (in force 1994)	Maritime	Comprehensive legal framework for oceans	Defines territorial sea, EEZ, continental shelf, high seas	India ratified 1995; called "Constitution of Oceans"
Convention on the Continental Shelf	1958	Maritime seabed	Rights over seabed resources	Coastal states control shelf resources	Led to modern continental shelf regime
Convention on High Seas	1958	High seas	Freedom of navigation, fishing	High seas open to all states	Important for freedom of navigation principle
Antarctic Treaty	1959	Polar territory	Antarctica governance	Freezes territorial claims; peaceful use	Antarctica = global commons
Madrid Protocol (Protocol on Environmental Protection to Antarctic Treaty)	1991	Antarctica	Environmental protection	Ban on mining	Mining ban till at least 2048
Svalbard Treaty	1920	Arctic territory	Norwegian sovereignty with shared rights	Equal economic rights for signatories	India is observer in Arctic Council
Outer Space Treaty	1967	Outer space	Space governance	No territorial claims in space	Moon cannot be claimed by any state
Chicago Convention on International Civil Aviation	1944	Airspace	Aviation law	State sovereignty over airspace	Basis of ICAO
International Seabed Authority Framework	1982	Deep seabed	Governs seabed beyond national jurisdiction	Common heritage of mankind	ISA headquartered in Jamaica
Arctic Council Framework	1996	Arctic	Governance cooperation	Does not define sovereignty	

Core Territorial Zones Defined by UNCLOS

Zone	Distance from coast	Sovereignty level	Key Rights
Territorial Sea	12 nautical miles	Full sovereignty	Like land territory
Contiguous Zone	24 nautical miles	Limited sovereignty	Customs, immigration
Exclusive Economic Zone (EEZ)	200 nautical miles	Economic sovereignty	Resource extraction
Continental Shelf	Up to 350 nautical miles	Seabed resource rights	Oil, gas
High Seas	Beyond EEZ	No sovereignty	Global commons



Citizenship Policy Structure



Laws	Constitution	• **Part I** ◦ Art 5 - 8 ▪ Citizenship as on 26 Jan 1950 ▪ Partition Context Provisions ◦ Art 9 : Single Citizenship ◦ Art 10 - 11 : Parliamentary Laws can have a superior effect • **Schedule VII : Union List :** ◦ Entry 17 : Citizenship, Naturalisation, Aliens ◦ Entry 18 : Extradition ◦ Entry 19 : Immigration, Emigration, Expulsion, Passports, Visas
	Central Laws & Rules	• **Citizenship Act, 1955 & Rules** ◦ Gaining Citizenship : Birth, Descent, Registration, Naturalisation, Occupation ◦ Losing Citizenship : Renunciation, Termination, Deprivation • Passports Act 1920, Registration of Foreigners Act 1939, Foreigners Act 1946 ◦ Entry, Exit, Conduct of Migrants in India ◦ Allows the government to regulate enemy aliens during times of conflict • The Enemy Property Act, 1968 ◦ Regulates Properties of Enemy Aliens
Institutions	Central	• Nodal Ministry for Citizenship : Ministry of Home Affairs • Nodal Ministry for Diaspora : Ministry of External Affairs • Bureau of Immigration : Executive Body : Management of Intl. Entry / Exit Check Points (Land, Air, Sea) ◦ Foreigner Regional Registration Officers : Under BoI for regional checks • Foreigners Registration Officers : State government officers for migrant welfare
Schemes	Central	• OCI Scheme (NOT dual citizenship; Can't vote, contest, hold public office) ◦ Multiple entry, multi-purpose lifelong visa for visiting India ◦ Parity with Non-Resident Indians (NRIs) in financial, economic, and educational fields, except for acquiring agricultural or plantation properties ◦ OCI cardholders can apply for Indian citizenship after residing in India for one year, provided they have been registered as OCI for five years

Quick Comparative Tables

Term	Meaning	Status	Duality/Multiplicity	Changeability
Nationality	Birth/Ancestral/Roots of a person	Moral, Racial, Ethnic Concept	• single nationality: as the roots are usually to a single country • some countries use nationality and citizenship interchangeably	Can't be changed (if meaning is considered different from Citizenship)
Citizenship	Official member of a sovereign State	Legal	Single or Dual as per domestic laws	Can be changed
Domicile (National)	Permanent home or place where a person resides with the intention to remain there for an indefinite amount of time.	Legal	A person typically cannot have dual national domicile in the strictest sense, as domicile is usually tied to a single country for tax, legal, and inheritance purposes.	Can be changed
Domicile (State)	Refers to the legal concept of a person's permanent home within a specific state, particularly within a country that has multiple states or provinces.	Legal & welfare Concept;	A person typically cannot have dual state domicile	Can be changed, but not too frequently
Residency (National)	Implies a physical state of currently living in a particular place (Country).	legal, geo, eco	Possible for someone to be considered a resident of multiple countries for various purposes. Some countries may treat you as a resident for tax purposes if you spend a certain number of days there within a tax year.	Can be changed
Residency (State)	Implies a physical state of currently living in a particular place (state).	legal, geo, eco	Same as 'National Level'; can be a resident of multiple states.	Can be changed,

Quick Comparative Tables

Term	Meaning	Legal Provisions	Access to Rights	Applicability of Criminal Laws
Legal Migrant	Person who enters and resides in the country with valid documentation	Foreigners Act, 1946; the Passport (Entry into India) Act, 1920; The Passport Act, 1967; The Immigration (Check) Rules, 1992.	Entitled to fundamental rights under the Constitution, except those specifically reserved for citizens	Subject to Indian criminal laws like any other person within Indian territory
Legal Migrant - Enemy Alien	A citizen of a country at war with India	- The Foreigners Act, 1946: . The Enemy Property Act, 1968: - The Passport Act, 1967:	Amongst FR's available to aliens, Preventive Detention Rights (Art 22 not available for enemy aliens)	Subject to Indian criminal laws and potentially additional restrictions due to their status
Permanent Resident	A foreign national who has been granted the right to reside indefinitely in India, usually based on certain qualifications or special categories.	Regulated under the Permanent Residency Status (PRS) scheme.	Permanent residents have access to many of the rights of Indian citizens (e.g., the ability to work, own property, and access certain services) but do not have political rights (e.g., cannot vote or run for office). They can enjoy long-term residence without the need for regular visa renewals.	Subject to Indian criminal laws like any other person within Indian territory; PRS can be revoked for criminal offenses.
Refugee	A person who has fled their country due to persecution and has been granted refugee status	No specific refugee law in India: Refugees are generally governed by the Foreigners Act, 1946, which regulates the stay of foreign nationals in India. India is not a signatory to the 1951 Refugee Convention, but it follows certain protections under customary international law.	Basic protections under Article 21 of the Constitution; right to non-refoulement; limited access to other rights	Subject to Indian criminal laws; may face detention if entered illegally
Internally Displaced Person (IDP)	A person forced to flee their home but remains within their country's borders	No specific IDP law; governed by general Indian laws and Constitution	Entitled to all fundamental rights under the Constitution;	Subject to Indian criminal laws like any other citizen
Illegal Migrant	A foreigner who enters India without valid travel documents or overstays beyond the permitted period	Same as 'Legal Migrant'	Limited rights; not entitled to most social welfare benefits; may face detention and deportation	Subject to Indian criminal laws; can be prosecuted under specific provisions of the Foreigners Act

Quick Comparative Tables

Governing Law	Scenario	Applicable Provisions	Conditions
Constitution	Indian Domicile as on 26 Jan 1950	Art 5	Domicile of Territory of India (As per Part I, territory after partition) India AND • Self or parents born in Territory of India OR • Ordinarily Resident in Territory of India > 5 years prior to 26 Jan 1950
	Migrants from Pakistan to India before 19 July 1948	Art 6(a) & Art 6(b)(i)	Self/Parents/Grandparents born in Govt of India Act, 1935 imagined India (pre partition India) AND ordinary resident since migration
	Migrants from Pakistan to India on or after 19 July 1948	Art 6(a) & Art 6(b)(i)	Self/Parents/Grandparents born in Govt of India Act, 1935 imagined India (pre partition India) AND after being ordinary resident for 6 months since migrating, they can apply before 26 Jan 1950, (free cross border movement was shut from 19 July 1948)
	Migrants from India to Pakistan now returning to India	Art 7	If migrated to Pak after 1st Mar 1947, then returned to India, then being ordinary resident for 6 months since migrating, they can apply before 26 Jan 1950 Partition was finalised on 1st Mar 1947
	Persons of Indian Origin residing outside except undivided Pakistan	Art 8	Self/Parents/Grandparents born in Govt of India Act, 1935 imagined India (pre partition India) AND living anywhere except pre partition India territory, then can apply to near Indian Consulate
Citizenship Act,1955	Birth	Sec. 3	• 26 Jan 1950 - 30 Jul 1987 : Born in India • 1 Jul 1987 - 2 Dec 2004 : Born in India and father Indian at your time of birth • 3 Dec 2004 onwards : Born in India and one parent Indian at time of birth and other is not and 'illegal migrant'
	Descent	Sec. 4	• 26 Jan 1950 - 9 Dec 1992 : Born outside India but father is an Indian • 10 Dec 1992 onwards : Born outside India and any parent is an Indian citizen ◦ 3 Dec 2004 onwards : Compulsory registration at Indian consulate within 1 year of child birth
	Registration	Sec. 5	• PIO ordinarily resident in India for 7 years • Person married to Indian citizen and ordinarily resident for 7 years • Minor children of Indian citizens
	Naturalisation	Sec. 6	• Service of Govt • Speaks a language mentioned in VIII Schedule • Good Character • Conditions can be waived off by Govt on case of case basis)
	Occupation of Foreign Territory	Sec. 7	Government specifies persons who shall be Indian citizens
	Loss of Citizenship	Sec. 8, 9, 10	• Renunciation : Voluntarily giving up Indian citizenship • Termination : Govt finding out double citizenship • Deprivation : Fraudulent paperwork while submitting application for citizenship

Quick Comparative Tables

Feature	NRI	OCI	PIO (Discontinued)
Citizenship	Indian citizen	Foreign citizen	Foreign citizen
Passport	Indian	Foreign	Foreign
Right to Vote	Yes	No	No
Constitutional Posts	Yes	No	No
Visa to India	Not required	Lifelong	Long-term
Property Rights	Broad	Limited	Limited
FRRO Registration	Not applicable	Exempt	Required earlier
Current Validity	Yes	Yes	Merged into OCI

Enumeration	Coverage	Legal Provisions	Purpose
Census	Every person residing in India, regardless of citizenship or nationality.	Census Act, 1948	To collect comprehensive demographic, socio-economic, and housing data for planning and policy-making.
National Population Register (NPR)	Every "usual resident" of India, including citizens and non-citizens.	Citizenship Act, 1955 and Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003	To create a database of usual residents for better governance and national security.
National Register of Citizens (NRC)	Indian Citizens	Citizenship Act, 1955 and Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003	To verify and document all Indian citizens, ensuring the identification of illegal immigrants.

Category	Document / Evidence	Issued under / Authority	What it Proves	Legal Status as Proof of Citizenship	Important Notes / Case-law / Caveats
PRIMARY / CONCLUSIVE PROOF	**Citizenship Certificate (Registration / Naturalisation)**	Citizenship Act, 1955 (Sections 5 & 6); Ministry of Home Affairs	Citizenship status itself	**Conclusive proof**	Issued only after legal scrutiny; strongest proof in courts and administration
	Certificate of Naturalisation	Citizenship Act, 1955	Citizenship by naturalisation	**Conclusive proof**	Granted after residence, language, and good character requirements
	Certificate of Registration as Citizen	Citizenship Act, 1955	Citizenship by registration	**Conclusive proof**	For persons of Indian origin, spouses, etc.
STRONG / PRIMARY EVIDENCE	**Indian Passport**	Passports Act, 1967	Presumption of Indian citizenship	**Strong prima facie proof**	Courts accept it unless obtained by fraud or suppression
	NRC Entry (Assam)	Citizenship Rules, 2003	Inclusion in National Register of Citizens	**Strong proof**	Currently applicable only to Assam
	Birth Certificate (India)	Registration of Births and Deaths Act, 1969	Citizenship by birth	**Strong but conditional**	Conditions vary by year of birth (pre-1987, 1987–2004, post-2004)
CONSTITUTIONAL BASIS (STATUS-DEFINING)	**Articles 5–11, Constitution**	Constitution of India	Citizenship at commencement of Constitution	**Legal determination, not a document**	Relevant mainly for historical cases (26 Jan 1950)
ELECTORAL EVIDENCE	**Voter ID / Electoral Roll Entry**	Election Commission of India	Eligibility to vote	**Supporting evidence only**	Presumption of citizenship, but not conclusive
IDENTITY & RESIDENCE DOCUMENTS (NOT CITIZENSHIP PROOF)	**Aadhaar Card**	Unique Identification Authority of India	Identity & residence	**Not proof of citizenship**	Aadhaar Act + *Puttaswamy (2018)*
	PAN Card	Income Tax Department of India	Tax identity	**Not proof**	Foreigners can hold PAN
	Driving Licence	State Transport Authorities	Identity & residence	**Not proof**	Issued based on residence, not nationality
	Ration Card	State Governments	Residence & welfare eligibility	**Not proof**	Includes non-citizens in some cases
	Bank Passbook / Utility Bills	Banks / Service Providers	Address proof	**Not proof**	Only corroborative
ANCESTRY / DESCENT EVIDENCE	**Parent's Passport / Citizenship Certificate**	MHA / Passport Authority	Citizenship by descent	**Supporting + decisive when combined**	Mandatory for children born abroad
GOVERNMENT SERVICE RECORDS	**Service Book (Govt employee)**	Central / State Government	Citizenship presumption	**Strong supporting evidence**	Government service usually requires citizenship
SPECIAL STATUS DOCUMENTS (NOT CITIZENSHIP)	**OCI Card**	Citizenship Act, 1955	Overseas citizen privileges	**Not citizenship proof**	OCI holders are foreign nationals

Prelims Concise Notes 2.0 PCN 5 : Legislatures & Electoral Policy - I

Parliamentary System

Feature	Meaning
Dual Executive	Nominal head of State + Real executive (Council of Ministers headed by PM)
Fusion of Powers	Executive is part of Legislature
Collective Responsibility	Council of Ministers jointly responsible to Lower House
Political Homogeneity	Council usually from same party/coalition
Leadership of PM	PM is real head of government
Majority Support Essential	Government must retain confidence of Lower House
Dissolution of Lower House	Executive can recommend early dissolution
Cabinet Secrecy	Confidentiality of Cabinet decisions
Flexible Tenure	No fixed term for executive (depends on confidence)
Opposition Recognition	Institutional role of opposition
Question Hour & Accountability Mechanisms	Legislature controls executive

Parliamentary System v. Parliamentary System

Basis	Parliamentary System	Presidential System
Relationship between Legislature & Executive	Fusion of powers – Executive is drawn from legislature	Separation of powers – Executive independent of legislature
Executive Structure	Dual executive – Nominal head (President/Monarch) + Real head (Prime Minister)	Single executive – President is both head of state and government
Election of Executive	Prime Minister not directly elected by people; chosen from legislature	President directly or indirectly elected by people
Tenure	Not fixed – depends on majority support in legislature	Fixed tenure (generally 4–5 years)
Accountability	Executive collectively responsible to legislature	Executive not responsible to legislature
Removal of Executive	Can be removed by no-confidence motion	Removed only through impeachment
Membership of Legislature	Ministers must be members of legislature (or become one within time)	President and secretaries cannot be members of legislature
Stability vs Accountability	**More accountable but less stable**	**More stable but less accountable**
Examples	India, UK, Japan, Canada	USA, Brazil, Mexico

Parliamentary System : India v. UK

Basis	United Kingdom	India
Nature of Constitution	Unwritten / Uncodified constitution based on statutes, conventions, and judicial decisions	Written and detailed constitution (1950)
Nature of State	Unitary state (with devolution)	Federal state with unitary bias
Head of State	Hereditary Monarch (King/Queen)	Elected President
Source of Parliamentary Sovereignty	Parliament is legally sovereign	Constitution is supreme; Parliament limited by judicial review
Judicial Review	Limited (courts cannot strike down Acts of Parliament)	Strong judicial review by Supreme Court and High Courts
Upper House	House of Lords (mainly nominated/hereditary members)	Rajya Sabha (partly elected by State legislatures)
Relation between Centre & States	No federal division of powers (Parliament supreme)	Clear constitutional division through Union, State, Concurrent Lists
Office of Prime Minister	Exists by convention	Constitutionally recognised (Art. 74, 75)
Cabinet System	Origin and model of parliamentary government	Borrowed and adapted from UK
Collective Responsibility	Convention-based principle	Explicit constitutional provision (Art. 75(3))
Written Rights Protection	No codified fundamental rights; protected by statutes (Human Rights Act etc.)	Fundamental Rights guaranteed in Part III
Role of Judiciary in Constitution	Parliamentary supremacy limits courts	Judiciary can invalidate laws violating Constitution

Policy Layout

GOVERNED BY

- **CoI**
- **Various Statutory Laws & subsequent Statutory Rules**
  - RoPA 1950 & 1951
  - Pres & VP Elections Act, 1952
  - Salaries/Allowances of Parl. Officers Act, 1953
  - Salaries/Allowances/Pensions of MPs Act, 1954
  - Parl. Disqualification Act, 1959 (Office of Profit)
  - Salaries/Allowances/Pensions of LoP Act, 1977
  - Leaders & Chief Whips (Facilities) Act, 1998
- **Respective House Rules of Procedure**
- **Other Rules Made by Pres or Speaker**
- **Conventions**

Cabinet Committee of Parliamentary Affairs

Ministry of Parliamentary Affairs

Election Commission

Delimitation Commission

COMPOSED OF

President

Lok Sabha

Speaker | **Dy. Speaker**

Chair Panel

Govt/Private/Independent Members
- **House Leader**
- **Opposition Leader**
- **Whips**

LS Sectt. : Sec Gen + Officers

Departmentally Related Standing Committess

Single/Joint Committees

Adhoc/Standing Committees

Rajya Sabha

Chair* | **Vice Chair**

Chair Panel

Govt/Private/Independent Members
- **House Leader**
- **Opposition Leader**
- **Whips**

RS Sectt. : Sec Gen + Officers

VP ex-officio RS Chair ≠ member

Legislatures at State Level

- Electoral Rolls and Elections to both Parliament and State Legislatures are under Election Commission.
- Constituency quantum and size for both lower houses (Lok Sabha and Legislative Assembly) is under Delimitation Commission.
- Ordinarily, the role and position of the President w.r.t to Union Parliament is replicated at the State level with Governor w.r.t to State Legislatures
- Both levels of Legislatures make their sets of Rules of Procedure, they do not impose their rules on each other.
  - If state legislatures have not made their rules then, the rules applicable to Provinces during British Rule apply.
  - If state legislatures have made rules but don't have a specific rule for a specific situation, then the Speaker of the state legislature has discretion on how to proceed further. She MAY follow corresponding LS rule, apply House of Commons, or even make a separate ruling.
- While Parliament is compulsorily bicameral, state legislatures are not.
  - Only UP, BH, AP, TL, KN, MH have SLCs (mentioned in CoI)
  - SLCs do not have the same position w.r.t SLA as RS does with LS.
  - While the VP is the ex-officio Chair of the RS, the SLCs elect their own Chair from their own.
- Some Union Territories (J&K, Pudducherry) also have a unicameral house with some special provisions.
- NCT of Delhi also has a unicameral house with some special provisions.

President in Relation to Parliament

- **President's Right to Information**
  - The Prime Minister has to communicate to the President all decisions of the Council of Ministers relating to the administration of the affairs of the Union and proposals for legislation (Art 78)
  - There is an obligation on the Prime Minister "to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for" (Art 78)
  - The President may require that a matter decided upon by a Minister be placed before the Council of Ministers and it shall be the duty of the Prime Minister to do so. [Art 78]
- **President and Houses of Parliament**
  - The President may summon each House of Parliament to meet at such time and place as he thinks fit, but in no case should the period intervening between its last sitting in one Session and the date appointed for its first sitting in the next Session exceed six months (Art 85)
    - *The proposal to summon, prorogue or dissolve Lok Sabha may be made by the Prime Minister with or without the consultation of the Cabinet*
  - The President may prorogue the Houses or either House of Parliament and dissolve the Lok Sabha
    - In the case of the State Legislature, it is the Governor who may, from time to time, prorogue the Houses or either House of the Legislature and dissolve the Legislative Assembly
  - At the commencement of the first Session after each General Election to Lok Sabha and at the commencement of the first Session of each year, the President addresses both Houses of Parliament assembled together and informs Parliament of the causes of its summons (art 87)
  - Besides the opening address, he may address either House of Parliament or both Houses assembled together, and for that purpose require the attendance of members (Art 86)
  - He is also empowered to send messages to either House, whether with respect to a Bill then pending in Parliament or otherwise (Art 86)
  - The President appoints an acting Chairman of the Rajya Sabha in case: The Office of Chairman is vacant or During any period when the Vice-President who is ex officio Chairman is acting as, or discharging the functions of the President, and The Office of the Deputy Chairman is also vacant. (Art 91)
  - President appoints the Speaker pro tem, from amongst the members of the Lok Sabha, to preside over the first sitting of the new Lok Sabha (Art 94 + Art 95)
  - Every member of either House of Parliament, before taking his seat in the House, is required to make and subscribe the oath or affirmation before the President or some person appointed in that behalf by him (Art 99)
  - In the case of disagreement between the two Houses on a Bill, other than a Money Bill, the President may summon both the Houses to meet in a joint sitting for the purpose of deliberating and voting on the Bill unless the Bill has lapsed by reason of dissolution of the Lok Sabha (Art 108)
  - The President has in accordance with Art. 118(3) of the Constitution made rules in consultation with the Chairman of Rajya Sabha and the Speaker of Lok Sabha, as to the procedure with respect to joint sittings of, and communications between, the two Houses.
    - These Rules are called 'The Houses of Parliament (Joint Sittings and Communications) Rules'.
  - Certain Bills cannot be introduced or proceeded with unless the recommendation of the President has been received
    - For introduction of Bills and for moving amendments relating to financial matters incl Money Bills. However, no recommendation is required for moving of an amendment making provision for the reduction or abolition of any tax (Art 117 + Art 110)
    - For introduction of a Bill relating to formation of new States or of alteration of areas, boundaries or names of existing States. (Art 3)
    - For introduction of a Bill or moving of an amendment affecting taxation in which States are interested. (Art 274)
    - For consideration of a Bill which, if enacted, would involve expenditure from the Consolidated Fund of India (Art 117)
  - No Act of Parliament, and no provision in any such Act, would be invalid by reason only that requisite recommendation or previous sanction was not given by the President. Such requirements are regarded as matters of procedure only. (Art 255)
  - The President causes to be laid before both the Houses of Parliament in respect of every financial year, a statement of the estimated receipts and expenditure of the Government of India, also referred to as the annual financial statement, i.e., Budget for the year
    - the estimates as relate to expenditure other than expenditure charged on the Consolidated Fund of India are submitted in the form of demands for grants to Lok Sabha and no demand for a grant can be made except on the recommendation of the President (Art 113)
  - The President also causes to be laid before both Houses of Parliament, whenever necessary, statements showing supplementary, additional or excess grants (Art 115)
  - contingency fund in the nature of an imprest, known as the Contingency Fund of India, has been placed at the disposal of the President to enable advances to be made by him out of such Fund for the purpose of meeting unforeseen expenditure pending authorisation of such expenditure by Parliament by law (Art 267)
  - He also nominates to the Rajya Sabha twelve persons having special knowledge and practical experience in respect of such matters as literature, science, art and social service (Art 80)
  - Except on Defection cases and on grounds of Sec 8(1) - (3) of RoPA 1951, the President decides on disqualification based on Constitution and Parl Law subject to binding ECI Advice. Speaker decides on Defection. Members are automatically disqualifies if convicted under Sec 8(1) - (3) of RoPA 1951
  - The President causes reports to be laid before both Houses of Parliament: CAG, FCI, UPSC, NCSC/ST/BC, NCW, Commissioner for Linguistic Minorities, Official Language Commission.

Houses

Criteria	LS	RS
Status	Compulsory	Compulsory
Represents	All States & U.Ts (Elected members Only)	States, UTs with LA (Elected & Nominated mem.)
Term	5 yrs • Full Term Member Elected for 5 yrs • Member elected to fill a vacancy serves for remaining LS term	Permanent (1/3rd Retire every 2 years) • Full Term Member Elected for 6 yrs • Member elected to fill a vacancy serves for remaining term of that vacant seat • Elections are generally conducted Bi-annually
Strength	• Max : 550*, Current : 543 • [530(states) + 12(UTs)]	• Max : 250, Current : 245 (230 elec. + 12 nom) • [229(States) + 8(UT with LA) + 12{L.A.S.S - Lit. Art. Sci. Social Service}]
Basis	• Total LS Constituencies ◦ Based on 1971 Census ◦ Initially till 2000 via 42 CA, '76 ◦ Extended till 2026 via 84 CA, '01 • LS Constituencies within a state ◦ Based on 2001 Census • Mentioned in Sch I, RoPA, 1950	• State Population as per 1971 Census • Mentioned in ***Sch IV, Col, 1950*** (no specific method to calculate seat allocation to states)

Criteria	SLA	SLC
Status	Compulsory (SLA always > SLC, hence no joint sitting)	Optional (State resolution by Spl Maj II followed by Parliament Law ≠ CA under Art 368)
Represents	Within State (Elected Only)	Within State (Elected & Nominated)
Tenure	5 yrs • Full Term Member Elected for 5 yrs • Member elected to fill a vacancy serves for remaining LS term	Permanent (1/3rd Retire every 2 years) • Full Term Member Elected for 6 yrs • Member elected to fill a vacancy serves for remaining term of that vacant seat
Strength	• 60-500	• 40 - 1/3rd of SLA st. • Nom - 1/6th - C.L.A.S.S. - Coop Soc.Lit. Art. Sci. Social Service
State wise Allocation	Sch II, RoPA, 1950	Sch III, RoPA, 1950
Basis	• Total MLA Constituencies in a state ◦ Based on 1971 Census ◦ Initially till 2000 via 42 CA, '76 ◦ Extended till 2026 via 84 CA, '01	Number of MLA seats

Relations Between the Houses

- **Communication between the Houses**
  - Communication by means of a written message is resorted to not only for transmitting Bills from one House to the other but also for the transmission of motions, and resolutions, passed by one House, which have to be sent to the other House for information or concurrence.
  - A message sent by either House is conveyed by the Secretary-General of one House to the Secretary-General of the other.
- **Joint Sitting**
  - **Conditions**
    - When a Bill other than a Money Bill or a Constitution Amendment Bill, passed by one House is rejected by the other House or the Houses have finally disagreed as to the amendments made in the Bill or more than six months lapse from the date of the receipt of the Bill by the other House without the Bill being passed by it, the President may, unless the Bill has lapsed by reason of dissolution of Lok Sabha, notify to the Houses by message, if they are sitting, or by public notification, if they are not sitting, his intention to summon them to meet in a joint sitting (Art 108)
    - No joint sittings in bicameral state legislatures.
  - **Nature**
    - It is not obligatory upon him to summon the Houses to meet in a joint sitting. Moreover, this provision does not disable the receiving House from passing the Bill after the lapse of six months, provided the Bill has not lapsed by reason of dissolution or the President has not already notified his intention to convene a joint sitting
      - When the President has notified his intention of summoning the Houses to meet in a joint sitting, neither House shall proceed further with the Bill and the President may thereafter issue an order summoning the Houses to meet in a joint sitting for the purpose of deliberating and voting on the Bill on a date which is suggested by the Prime Minister or the Prime Minister in consultation with the Cabinet, and agreed to by the Speaker, and if he does so, the Houses shall meet accordingly
    - Once the President has notified his intention to summon the Houses for a joint sitting, dissolution of Lok Sabha shall not stand in the way of proceeding with the Bill at a joint sitting (Art 108)
  - **Procedure**
    - Sitting—At a joint sitting, the Speaker presides and the Secretary-General, Lok Sabha acts as Secretary-General of the joint sitting. The Rules of Procedure of Lok Sabha apply with such modification and variations as the Speaker may consider necessary or appropriate.
    - During the absence of the Speaker from any joint sitting, the Deputy Speaker of Lok Sabha or if he is also absent, the Deputy Chairman of Rajya Sabha or if he too is absent, such other person as may be determined by the members present at the sitting, presides.
    - The quorum to constitute a joint sitting is one-tenth of the total number of members of the two Houses
    - At a joint sitting no amendment can be proposed to the Bill, other than such amendments, if any, as become necessary by the delay in the passage of the Bill and such other amendments as relate to matters with respect to which the Houses have not agreed. The decision of the person presiding as to the admissibility of amendments is final (Art 108)
    - At a joint sitting, the Speaker, or the person acting as such, shall not vote in the first instance, but shall have and exercise a casting vote in the case of equality of votes
    - So far, joint sittings of the Houses under article 108 have taken place on three occasions AND Bill has passed on all three occasions.
- **Secret Sitting of the House**
  - On a request made by the Leader of the House, the Speaker may fix a day or part thereof for sitting of the House in secret
  - When the House sits in secret no stranger is permitted to be present in the Chamber, Lobby or Galleries except the members of Rajya Sabha who may be present in their Gallery and the persons authorised by the Speaker who may be present in the Chamber, Lobby or Galleries
  - A secret sitting has so far been held only once on 27 February 1942, in the Central Legislative Assembly
  - The Speaker causes a report of the proceedings of a secret sitting to be issued in such manner as he thinks fit, but no other person present can keep a note or record of any proceedings or decisions of a secret sitting, whether in part or full, or issue any report of or purport to describe such proceeding
- **Emergency Session**
  - The procedure for summoning Lok Sabha for an emergency session is generally the same as for a regular session
  - It can be of any urgent reason and has nothing to do with emergencies prescribed for in the Constitution.

Key Functionaries : Presiding Officers, Parliamentary Secretaries, Leader of House and Opposition, Whips,

PRESIDING OFFICERS - Basics

Criteria	**LS + SLA (Speaker & Dy. Speaker), Dy. Chair (RS) (All except RS Chair)**	**RS Chair (VP Ex-officio)**
Provisions	**CoI, Respective House Rules**	**CoI, Pres & VP Pres Elections Act, 1952**
Qualification	Member of the House	35 Yrs | Citizen | RS Member Eligible | No Office of Profit
Electors	All members of the respective house	All members of both houses
Method	Indirect Election	• Indirect Election • Proportional Representation with Single Transferrable Vote (Preference Marked) • Vote Value : 1 for each MP
Final Majority	Simple Majority	Votes Needed (Quota) = (Total Votes/2) + 1
Leaning	Conventionally, • Speaker from Ruling Party • Dy Speaker from Opposition	None
Vacancy	• Resignation (to the other Presiding Officer) • Death • Disqualification as MP • Effective Majority of the house	• Resignation (to President) • Death • Effective Majority of RS followed by Simply Majority of LS
Voting	• Casting Vote when tie • Can vote on own removal in first instance	• Casting Vote when tie • Can't vote on own removal
Hierarchy	• Dy speaker/Dy Chair is not subordinate to Speaker/Chair • Panel of Chairs nominated by Speaker/Chair to preside in absence of Spkr/Dy. Spkr/Chair/Dy Chair	
Conducted by	• Pro Tem conducts Speaker's election • Speaker conducts Dy. Sprkr's election	• ECI, Returning Officer - LS/RS Sec Gen on rotation

Common Powers of Speaker & Chair/Presiding Offr

- Communications from the President to the House
- Final Authority on CoI and Rules within the House
- Determines order of Govt Business after consulting Leader of House
- Maintenance of order in the House
- Prima Facie, determines Breach of Privilege/Contempt of House
- Disqualifications due to Defection (Sch X)

Exclusive Powers of Speaker

- Certifies Money Bill
- Control of all parliamentary committees, appoints Chairs. Dy Spkr (LS) Chairs any Parl. Comm she is made part of
- Ex-officio President of the Indian Parliamentary Group

PRESIDING OFFICERS - Details

- **History**
  - Dates back to 1921 when the Central Legislative Assembly was constituted for the first time under the Montague-Chelmsford Reforms. Previously, it was the Governor-General of India.
    - G.V. Mavalankar was chosen as Speaker and Ananthasayanam Ayyangar as Deputy Speaker of 1st Lok Sabha
- **Election - governed by Art 93**
  - The election of the Speaker and Deputy Speaker of Lok Sabha is now
  - Election was is held by open voting in the House and one cannot nominate themselves. (Rule 7,8)
  - The date for the election of the Speaker has to be fixed by the President
  - The present position is that the Speaker, like any other member, represents his constituency from which he is elected to Lok Sabha and his seat is openly contested (Convention)
  - The Speaker on assuming his office is not required to make and subscribe any oath or affirmation
  - A person who has been elected as Speaker/Deputy Speaker of LS/SLA or to the office of the Deputy Chairman of the Rajya Sabha or the Chairman or the Deputy Chairman of Legislative Council of a State, can sever his connections with the political party to which he belonged and to rejoin it when he ceases to hold that office without incurring disqualification under Xth Schedule.
  - The Constitution does not specify a time frame for making the appointments
  - **There is no compulsion for Speaker and Dy Speaker to be from ruling and opposition party respectively.**
    - Elections to Speaker been not contested except for 4 times [1952: G V Mavalankar vs Shankar Shantaram More, 1967: Neelam Sanjiva Reddy versus Tenneti Viswanatham, 1976: B R Bhagat vs Jagannathrao Joshi, 2024 : Om Birla v. K Suresh]
  - There was no Dy. Speaker for the entire duration of the 17th Lok Sabha (2019-24) as of March 2026, the 18th LS 2026 also does not have a Dy Speaker.
- **Term**
  - Holds office from the date of his election till immediately before the first meeting of Lok Sabha after the dissolution of the one to which he was elected
  - He is eligible for re-election.
  - The Speaker vacates his office, if he ceases to be a member of Lok Sabha
  - On the dissolution of Lok Sabha, although both the Speaker and the Deputy Speaker cease to be members of the House, only the Deputy Speaker vacates his office.
  - ***The Speaker may, at any time, resign his office by writing under his hand to the Deputy Speaker, even though the Office of the Deputy Speaker might be vacant.***
  - ***Speaker has a right to resign, the resignation becomes effective as soon as the resignation is tendered***
- **Removal of Speaker or Deputy Speaker**
  - Removable from his office by a resolution of Lok Sabha passed by a majority of all the then members of the House
  - The term 'all the then members' in article 94(c) means the actual membership of the House, vacant seats are not counted
  - 14 days notice has to be given of the intention to move such a resolution which has to be given in writing to Sec Gen.
  - On receipt of notice, a motion for leave to move the resolution is entered in the List of Business in the name of the members concerned on a day **fixed by the Speaker** provided that the day so fixed has to be any day after fourteen days from the date of the receipt of notice of the resolution
  - At the sitting of Lok Sabha, while any resolution for the removal of the Speaker or the Deputy Speaker from his office is under consideration, the Speaker or the Deputy Speaker, as the case may be, cannot preside even though he is present in the House
  - The Speaker has the right to speak and otherwise to take part in the proceedings of Lok Sabha while any resolution for his removal from office is under consideration in the House and is entitled to vote only in the first instance on such resolution or any other matter during such proceedings but not in the case of an equality of votes
  - The Chair thereupon places the motion before the House and requests those members who are in favour of leave being granted to rise in their places and a count is taken without recording any names. If not less than fifty members rise accordingly, the Sprk or Dy Spkr or the person presiding, as the case may be, declares that the leave is granted and that the resolution will be taken up on such day, not being more than ten days from the date on which leave is asked for, as he may appoint.
- **Speaker Pro tem**
  - When the offices of both the Speaker and the Deputy Speaker fall **vacant**, the duties of the Office of the Speaker are performed by such member of Lok Sabha as the President may appoint for the purpose. [Art 95(1)]
  - After his appointment, the Speaker pro tem continues in office till the Speaker is chosen.
  - After the General Elections, the Speaker pro tem is appointed to administer oath/ affirmation to the newly elected members of Lok Sabha and conduct the election of the Speaker (**Not the only reason to appoint Pro Tem Speaker)**
  - The Speaker pro tem takes oath as a member of Lok Sabha before the President in Rashtrapati Bhavan

- **Speaker : Position, Role & Functions**
  - Communications from the President to the House are made through the Speaker
  - If the Speaker certifies a Bill as a Money Bill, his decision is final.
    - **Certificate is sent to RS when Money Bill is transmitted and also the President when sent for Assent (Art 110)**
    - **K.S. Puttaswamy vs. Union of India and Others (a five Judges Bench), 2018 : Speaker's Decision is Judicially Reviewable**
      - *There are 2 Puttuswamy judgements, the 2017 one is on Privacy, and 2018 one on Constitutionality of Aaadhar Act*
  - Presides over Joint Sitting as first preference {Art. 118(4) and rule 7 of the Houses of Parliament (Joint Sittings and Communications) Rules. }
  - Empowered to adjourn the House or to suspend its sitting in the event of the absence of a quorum (Art 100)
  - The Speaker does not take any part in the deliberations of the House except in the discharge of his duties as the Presiding Officer. However, on a point being raised or on a request made by a member, he may address the House at any time on a matter under consideration with a view to aiding members in their deliberations (LS Rules)
  - Fixes the hour of commencement or termination of sitting and determines the days on which the House will sit (LS Rules)
  - Determines the time when a sitting of the House is adjourned sine die or to a particular day, or to an hour or part of the same day, and can call a sitting of the House before the date or hour to which it has been adjourned or at any time after the House has been adjourned sine die, but before its prorogation (LS Rules)
  - In consultation with the Leader of the House, he determines the order of the Government Business which can be varied only if he is satisfied that sufficient grounds exist for doing so. (LS Rules)
  - He has also the power to recognise parties and groups in the House (Speaker Directive)
  - He is charged with the maintenance of order in the House and enforces the observance of Rules by the members.
  - The Speaker also decides on the admissibility of resolutions and motions. He has a general discretion in regard to the admissibility of resolutions and motions similar to the one relating to the admissibility of questions
    - He decides whether a motion expressing want of confidence in the Council of Ministers is in order
    - Also, whether a 'cut' motion, that is a motion for reduction of a demand for grant, is or is not admissible
    - Also is empowered to select amendments in relation to Bills and motions
    - His consent is required to a motion to adjourn the business of the House for the purpose of discussing a definite matter of urgent public importance, the presentation of petitions ,calling the attention of a Minister to any matter of urgent public importance, and for any member to point out a mistake or inaccuracy in a statement made by a Minister or any other member
  - The Speaker determines whether there is a prima facie case for a matter relating to a breach of privilege or contempt of the House. Without his consent, no question involving a breach of privilege either of a member or of the House or a Committee thereof can be raised in the House but the Speaker can suo moto, refer any such question to the Committee of Privileges for examination, investigation and report (LS Rules)
  - The Speaker also determines the question as to whether a member of the House has become subject to disqualification on ground of defection in terms of the Tenth Schedule to the Constitution.
  - The Speaker is in supreme control of all parliamentary committees, whether set up by him or by the House. He appoints their Chairmen, and issues such directions to them as he may consider necessary pertaining to the organisation of work and the procedure to be followed by them
    - Certain committees, viz., the Business Advisory Committee, the General Purposes Committee, and the Rules Committee, which work directly under the Speaker's chairmanship.
  - Decides on Anti Defection Law, decision is judicially reviewable (Kihoto Case, 1993)
  - He may direct any member guilty of disorderly conduct to withdraw from the House, and name a member for suspension if the member disregards the authority of the Chair and persists in obstructing the proceedings of the House.
    - Further, in the event of grave disorder occasioned by a member coming into the well of the House or abusing the Rules of the House persistently and wilfully obstructing its business by shouting slogans or otherwise, such member shall, on being named by the Speaker, stand automatically suspended from the service of the House for five consecutive sittings or the remainder of the session, whichever is less
- The Speaker is the ex-officio President of the Indian Parliamentary Group
- Should a member be arrested on a criminal charge, or sentenced to imprisonment, or detained under an executive order, the fact must immediately be reported to the Speaker by the magistrate or the executive authority (LS Rules)
- No member can be arrested, nor can a legal process, civil or criminal, be served on him, within the precincts of the House without obtaining the Speaker's permission

- **Dy Speaker : Position, Role & Functions**
  - He is not subordinate to the Speaker, but holds an independent position and is answerable to the House alone. He holds Office until he ceases to be a member of the House, or until he himself resigns his Office or is removed by a resolution of the House passed by a majority of the then members of the House
  - The Deputy Speaker is a member of a parliamentary committee, he is appointed as the Chairman of that Committee
  - Unlike the Speaker, the Deputy Speaker can speak in the House, take part in its deliberations and vote as a member on any question before the House, but he can do this only when the Speaker is presiding. When he is himself in the Chair, the Deputy Speaker cannot vote except in the event of equality of votes.
  - The Deputy Speaker has a right to take part in politics of the party to which he belongs, although in practice, as far as possible, he keeps aloof from active participation and controversial issues in order to maintain his position of impartiality in the House
  - Convention has been established in the Lok Sabha that the Deputy Speaker does not sponsor Bills, resolutions, etc., nor does he table question
  - The Deputy Speaker is a whole time officer of the House. He does not engage himself in any profession, business or private practice.
  - Salary of the Deputy Speaker is charged on the Consolidated Fund of India and is not subject to the vote of the House
- **Panel of Chairpersons**
  - At the commencement of the House or from time to time, as the case may be, the Speaker nominates109 from amongst the members a panel of not more than ten Chairpersons
  - The selection is entirely in the hands of the Speaker but he may consult the leaders of political groups in the Lok Sabha before making a choice finally. It is not necessary that the Panel should have ten members all the time. A Panel of Chairpersons of less than ten members can also be constituted and the remaining member (s) nominated later on.
- **Chairpersons of Parliamentary Committees**
  - The Chairpersons of all parliamentary committees under the jurisdiction of the Speaker, except that of Joint Committee on Salaries and Allowances of Members of Parliament, are appointed by the Speaker from amongst the members of the respective Committees.
    - In the case of Joint Committee on Salaries and Allowances of Members of Parliament, the Committee elects its Chairperson at their first sitting after nomination of members of both the Houses to the Committee by Presiding Officers
  - If the Speaker himself is a member of a Committee, he invariably is the Chairperson of that Committee
    - Where the Speaker is not a member, but the Deputy Speaker is, then the latter is appointed the Chairperson
  - **Any member including a Minister can become the Chair/Member of ANY Parliamentary Committee.**
  - It is not obligatory that the Chairperson of a Committee must be from the ruling party
- **Parliamentary Secretaries**
  - Has no statutory origin nor does it derive authority from the Constitution of India. According to Rule 2 of the Rules of Procedure and Conduct of Business in Lok Sabha, 'Minister', means a member of the Council of Ministers, a Minister of State, a Deputy Minister or a Parliamentary Secretary
  - Unlike the Ministers, the oath is administered to the Parliamentary Secretaries by the Prime Minister and not by the President
  - The Parliamentary Secretary is not a member of the Council of Ministers as the term "Minister" appearing in Articles 75 of the Constitution does not include Parliamentary Secretary and is not appointed by the President.
    - Various High Courts have ruled that appointing Parliamentary Secretaries with the status of a Cabinet Minister violates Article 164 (1A) of the Constitution, which restricts the size of the council of ministers.
  - Section 3(b) of the Parliament (Prevention of Disqualification) Act, 1959(Act No.10 of 1959) exempts the institutions of Chief Whip, Whips and Parliamentary Secretaries, from the disqualifications of holding an office of profit.
  - Essentially, while the position itself IS not be explicitly prohibited, the, act of appointing them as ministers often violates the Constitution as held by courts.

- **Leader of the House**
  - The Prime Minister, who is the Leader of the majority party in the Lok Sabha, functions as the Leader of the House in the Lok Sabha except when he is not a member of the Lok Sabha. The senior most Minister, who is a member of the Rajya Sabha, is appointed by the Prime Minister as the Leader of the House in the Rajya Sabha.
  - The arrangement of Government business is the ultimate responsibility of the Leader of the House, though the details are settled, subject to his control, by the Chief Whip who is also vested with the portfolio of the Minister of Parliamentary Affairs
  - The Leader of the House makes proposals for the dates of summoning and prorogation of the House for the approval of the Speaker. He has to draw up the programme of official business to be transacted in a session of Parliament, namely Bills, motions, discussions on general specific subjects like foreign policy, economic or industrial policy and other important State activities.
  - He may be also a member of the Business Advisory Committee
  - He has the right to address the House whenever he likes
- **Leader of the Opposition**
  - Prior to the 1977 General Elections to the Lok Sabha, except for a brief spell of one year (December 1969-December 1970), there had been no official 'Opposition' in the sense the term is used in the parliamentary system of government
  - The Leaders of the Opposition in the Lok Sabha and the Rajya Sabha are now accorded statutory recognition and given salary and certain other facilities and amenities under the Salary and Allowances of Leaders of Opposition in Parliament Act, 1977
    - Act defines -LoP of the party having the greatest numerical strength **and** recognised as such by the Chairman of the Council of States or the Speaker of the House of the People.
      - ***There is no rule about having 10% strength to have a LoP in the house.***
    - Except the 7th, 8th, 16th and the 17th Lok Sabhas, Leader of the largest party in opposition have been accorded recognition as the Leader of the Opposition in the House.
- **Whips**
  - *In the parliamentary form of Government, a party has its own internal organisation inside Parliament and is served by a number of officials known as the Whips, chosen from members of the party itself.*
  - **Government Chief Whip**
    - The Chief Whip of the Government Party in the Lok Sabha is the Minister of Parliamentary Affairs.
    - In the Rajya Sabha, the Minister of State for Parliamentary Affairs holds this position.
    - The Chief Whip is directly responsible to the Leader of the House. It is part of his duties to advise the Government on parliamentary business and to maintain a close liaison with the Ministers in regard to parliamentary business affecting their Departments.
  - Opposition Parties can have their own whips.
  - **Types of Whips**
    - One-Line Whip: Informs members about a vote and its purpose, permitting them to abstain if they do not wish to follow the party line.
    - Two-Line Whip: Directs members to be present in the House during a vote.
    - Three-Line Whip: Issued for crucial votes (e.g., no-confidence motion), this mandatory directive requires members to vote strictly according to the party line, with violation potentially leading to expulsion under anti-defection laws

Nomenclatures/Key Offices

Type	Meaning
Govt Member	Member who is also a Minister
Private Member	Any member who is NOT a Minister, can do everything except introduce Budget
Elected Party Member	Elected on party ticket
Elected Independent Member	Elected without party ticket
Nominated Member	• Nominated Member (Joined a party within 6 months) : Treated like a Party Member • Nominated Member (Not joined a party within 6 months) : Treated like an independent
Parliamentary Secretaries	• Not mentioned in CoI or any statute, appointed by PM/CM • Mentioned in House Rules • Unlike the Ministers, the oath is given to the Parliamentary Secretaries by PM not Pres/CM not Governor • Appointed purely for the purpose of assisting a Minister in parliamentary work • *Often struck down by courts for violation of 'office of profit'*
Leader of the House	• If PM is LS Member, then PM is LoH, PM appoints senior most Min as RS LoH
Leader of Opposition	• Statutory recognition - Salary & Allowances of LoPs in Parliament Act, 1977 • Member of largest opposition party in the House & recognised by Speaker/Chair
Whips	• Each party has a Whip to ensure presence, voting, participation in discussions
Chief Govt Whip	• LS : Min of Parliamentary Affairs, RS : MoS Parliamentary Affairs • Directly responsible to the Leader of the House
Secretary General	• Permanent official of House Secretariat, appointed by Speaker/Chair after consulting LoH and LoP of the house from civil services (Generally high ranking) • Issues summons to attend sittings/takes roll call • Not a member but enjoys privilege of freedom from arrest except on a criminal charge

Parliamentary Procedures & Parliamentary Committees

House Tenures

Term/Duration : Year 1 - Year 5 (Ordinarily)

Year 1

Session 1	Session 2	Session 3

Session 1

Sitting 1	Sitting 2	Sitting 3

- **Start of Session is called Summoning**
- **End of Term = Dissolution**
- **End of Session = Prorogation**
- **End of Sitting = Adjournment/Adjournment Sine Die**

Summoning of Parliament

- The term of Lok Sabha [Art. 83(2)]
  - 42nd CA, 1976 had increased it to 6 years which was reversed by 44th CA, 1978
- Dissolution of Lok Sabha may be effected before the expiry of its term by an order made by the President.
- At the end of its term, Lok Sabha stands automatically dissolved even if no formal order of dissolution is issued by the President
  - However, while a Proclamation of Emergency, issued by the President under article 352, is in operation, the life of Lok Sabha may be extended by law for a period not exceeding one year at a time and not extending in any case beyond a period of six months after the Proclamation has ceased to operate.
- A session of Lok Sabha comprises the period commencing from the date and time mentioned in the order of the President summoning Lok Sabha and ending with the day on which the President prorogues or dissolves Lok Sabha
- Both LS and RS can be prorogued but only LS can be dissolved. (Art 85)
- It is not necessary that Lok Sabha and Rajya Sabha should be summoned and prorogued simultaneously or on the same dates
  - Since 1962, generally both the Houses have been meeting simultaneously.
- During the course of a session in the process of a sitting, Lok Sabha may be adjourned from day to day or for more than a day or sine die.
  - Adjournment is a postponement of the sitting or proceedings of either House from one time to another specified for the reassembling of the House
  - Adjournment sine die means termination of a sitting of the House without any definite date being fixed for its next sitting.
  - *While the Speaker/Presiding Officer decides on adjournment of a sitting, powers are limited. The Speaker can shorten the process (no need for full motion every time) and adjourn the House at a fixed or decided time but If there is a significant change (e.g., altering schedule/sine die) it must be approved by the House through a motion moved by the Leader of the House.*

Sessions

- Constitutionally (Art85), houses have meet once every 6 months but conventionally, they meet thrice a year.
- The dates of the sessions are communicated to houses by the Min of Parl Affairs after Cabinet Approval.

Sittings

- The Constitution does not prescribe the number of sittings for the Houses of the Parliament
- For fixing a sitting of the House the Speaker's power is absolute and the consent of the Government is neither necessary nor sought. However, the Speaker normally goes by the general wish of the House or the recommendation of the Business Advisory Committee as adopted by the House
- A sitting of the House is duly constituted when it is presided over by the Speaker or any other member competent to preside over a sitting of the House under the Constitution or the Rules
  - It is, therefore, necessary that the Speaker, the Deputy Speaker or a member of the Panel of Chairmen presides over the House at the hour fixed for the commencement of a sitting and also so long as the sitting lasts. If no such person is present, such other person as may be determined by the House can act as Speaker [Art. 95(2)].
- Presence of Ministers is not necessary for constituting a sitting of the House
- Before the Speaker or any other person competent to preside over the House takes the Chair at the commencement of a sitting, it is ensured that there is quorum in the House
- The quorum to constitute a sitting of the House is one-tenth of the total number of members of the House. If at any time during a sitting of the House there is no quorum, it is the duty of the Speaker or the person acting as such, either to adjourn the House or suspend the sitting until there is quorum
- First Sitting
  - After a general election to Lok Sabha the First Session commences when Lok Sabha meets in its own chamber for the first time with the Speaker pro tem in the Chair for the purpose of enabling members to take their seats in the House and elect the Speaker and not when the President addresses members of both Houses of Parliament (87)
  - When the offices of both the Speaker and the Deputy Speaker fall vacant, the duties of the Office of the Speaker are performed by such member of Lok Sabha as the President may appoint for the purpose
  - After the General Elections, the Speaker pro tem is appointed to administer oath/ affirmation to the newly elected members of Lok Sabha and conduct the election of the Speaker. He vacates Office soon after the Speaker is chosen by the House. The Speaker pro tem takes oath as a member of Lok Sabha before the President

House Tenures

Prorogation of the House

- Termination of a session of the House by an order made by the President under is called 'prorogation' (Art 85)
- President. Prorogation of the House may take place any time, even while the House is sitting.
  - Usually, however, prorogation follows the adjournment of the sitting of the House sine die
- The period between prorogation of the House and its reassembly in a new session is termed as 'inter-session period'.
- On adjournment of the house or its adjournment sine die, the pending business does not lapse. Prorogation terminates a session and does not constitute an interruption in the continuity of life of the house
- Effect
  - Bills :
    - Pending before either House are expressly saved from lapsing upon prorogation.[107(3)]
    - Bills before Select or Joint Committees are also protected.
  - Motions, Resolutions and Amendments: Under the Rules of Procedure, motions, resolutions and amendments which have already been moved and are pending in the House do not lapse on prorogation and are carried over to the next session
  - Business pending before Parliamentary Committees: The Rules of Procedure specifically provide that any business pending before a Committee shall not lapse by reason only of the prorogation of the House and the Committee shall continue to function irrespective of such prorogation
  - On prorogation of either House of Parliament, the President has the power to issue Ordinances under article 123. If an Ordinance is promulgated before the order of prorogation is made and notified, the Ordinance would be void

Dissolution of the House

- The end of the life of Lok Sabha either by an order made by the President under article 85(2)(b) or on the expiration of the period of five years from the date appointed for its first meeting is termed as 'dissolution of the House
- Dissolution puts an end to the representative character of the individuals who at the time compose Lok Sabha. Once dissolved, the Lok Sabha cannot assemble again until after a general election
- Rajya Sabha is not subject to dissolution, as also a Legislative Council where the State Legislature is bicameral.
- Issue of whether a Prime Minister who has lost confidence of the party in power or who is in danger of losing such confidence should advise the President for a dissolution of Lok Sabha and whether the President is within his constitutional rights to reject such advice
  - No definite answers have been provided to these questions and there are no precedents to rely upon
  - The President, if he decides not to accept such advice, must first find an alternative Prime Minister who can command a majority in Lok Sabha and then seek his advice and act accordingly.
  - So far as a State Assembly is concerned, the constitutional provision regarding its dissolution is on the same lines as in the case of Lok Sabha. However, Art 356 requires that if at any time during the life of an Assembly the Government of the State cannot be carried on in accordance with the provisions of the Constitution, the Governor has to make a report to the President. Normally, the Governor, in such circumstances, does not dissolve the Assembly, even though he may be advised by the Chief Minister to do so, but it is not illegal if he dissolves the Assembly, before he has made a report to the President.
-
- Effects : All business pending before it or any of its committees lapses on dissolution
  - Bills (Art 107)
    - In Lok Sabha, all Bills pending at the time of dissolution, whether originating in the House or transmitted to it by Rajya Sabha, lapse
    - In Rajya Sabha, Bills passed by Lok Sabha, but which have not been disposed of and are pending in Rajya Sabha on the date of dissolution, lapse
    - Only the Bills originating in Rajya Sabha which have not been passed by Lok Sabha but are still pending before Rajya Sabha, do not lapse
    - If, however, in respect of a Bill upon which the Houses have disagreed and the President has notified his intention of summoning a Joint Sitting of the Houses for the consideration of the Bill prior to dissolution, that Bill does not lapse and may be passed at a Joint Sitting of both Houses, notwithstanding that dissolution has intervened since the President notified his intention to summon the Joint Sitting of the Houses (Art 108)
    - ***There is no express provision in the Constitution regarding the effect of dissolution on a Bill which has been passed by the two Houses of Parliament and sent to the President for assent. It has, however, been held that such a Bill does not lapse on dissolution of Lok Sabha. Further, if such a Bill is returned by the President for reconsideration, the successor House can reconsider it and if it is passed by the successor House (with or without amendments), it will be deemed to have been passed "again"***
  - Other Business, e.g. Motions, Resolutions, etc.:
    - All other business pending in Lok Sabha, e.g., motions, resolutions, amendments, supplementary demands for grants etc., at whatever stage, lapses upon dissolution, as also the petitions presented to the House which stand referred to the Committee on Petitions.
    - ***A motion for approval or modification of statutory rules laid on the Table of both Houses under the provisions of an Act, passed by Lok Sabha and transmitted to Rajya Sabha for concurrence and vice versa also lapses on dissolution of Lok Sabha.***
    - ***A motion given in pursuance of Section 3(1) of Judges (Inquiry) Act, 1968 for presenting an address to the President praying for removal of a Judge, if admitted, will not lapse on the dissolution of the Lok Sabha***
  - Business before Committee: All business pending before parliamentary committees of Lok Sabha lapse upon dissolution of Lok Sabha. Committees themselves stand dissolved on dissolution of Lok Sabha
  - ***Assurances by Ministers: The assurances given by Ministers on the floor of the House, which are pending for implementation are deemed not to lapse on the dissolution of the Lok Sabha, irrespective of whether a report to that effect has been made by the Committee on Government Assurances.***

Parliamentary Procedures

Legislative Procedure	Proecedure in Financial Matters	General Procedure
Art 107 - Art 111	Art 112 - Art 117	Art 118 - Art 122
Art 196 - 201	Art 202 - 207	Art 208 - 212

Legislator's Role

- I. House Participation
- II. Law Making
- III. Financial Oversight
- IV. Participation in Parl. Comm.

Medium

Motions

- Basis of all proceedings
- 2 fold classification
  - Passage
    - Votable or Non Votable : Unless specified, all motions are to be voted upon.
    - Unless specified, all motions passed using simple majority
  - Content
    - Substantive; eg. No Confidence Motion
    - Substitute; e.g. Changing topic for a discussion
    - Subsidiary
      - Ancillary; eg. - moving a bill to vote
      - Superseding - re-submitting a bill to a committee
      - Amendments - laws/motions etc.

Methods/Tools

- Questions
- Discussions
- Bills
- Resolutions

LS/RS Sitting

- List of Business
- Revised List of Business
- Prepared in consultation with Business Advisory Committee

Reverse for RS

Ques Hour — ZeroHour — Lunch

Legislative Business, Half Hour/Short Duration Discussions etc.

Last 2.5 Hrs. every Friday reserved for Private Member Bills and Resolutions

11 a.m. | 12 p.m. | 1 p.m. | 2 p.m.

Parliament/Bills/Acts	English (As per CoI) & Hindi (OLA, '63) Mother tongue after Chair permission	• Art 120, Art 348(1) & Official Languages Act, 1963
States/Bills/Acts	• Hindi/English/State's official language • Eng. Translation : Other lang/Pres Lang.	• Art 210, Art 348(1), Art 348(3), OLA, 1963 • Various State Official Language Acts

- Members participate in the House in broadly two ways. In certain proceedings, such as Question Hour, raising matters of public importance, and private member business, MPs can raise issues independently. These matters are chosen for discussion either through a ballot, or at the Speaker's discretion. In other proceedings like debates on national issues, and discussions on government Bills and budgets, the time is allocated party-wise and the party leadership decides who will participate in such proceedings. The House Business Advisory Committee (BAC) recommends the time to be allocated for business in the House. This Committee has Members from the ruling and opposition parties.
- Proceedings in the House are guided by its Rules of Procedure. These Rules require that Members give prior intimation to the Secretariat/Speaker for asking questions, raising issues, and initiating or participating in debates. This is called "giving notice". Each intervention has a different notice period
- Important Parliamentary Documents
  - List of Business: The schedule and items of business to be taken up on a given day. It is circulated two days in advance to Members.
  - Revised List of Business: The revised schedule, which is often circulated a day before the sitting of the House.
  - Supplementary List of Business: Lists additional items of business to be taken up the same day. It is made available on the day of sitting.
  - Bulletin 1: A brief record of the proceedings that have taken place in the House at each of its sittings. It is published after each day of sitting.
  - Bulletin 2: Contains information on any matter relating to the business of the House, such as reference of Bills to Committees, changes in Committee membership, and matters related to protocol. It is circulated to Members as and when it is published.

Tools for Parliamentary Functions

Motions

- **Meaning :** The term `motion' in parliamentary parlance means any formal proposal made to the House by a Member for the purpose of eliciting a decision of the House. It is phrased in such a way that, if adopted, it will purport to express the judgement or will of the House. Any matter of importance can be the subject matter of a motion. The mover of a motion frames it in a form in which he/she wishes it ultimately to be passed by the House and on which a vote of the House can conveniently be taken.
- Types
  - A substantive motion is a self-contained, independent proposal made in reference to a subject which the mover wishes to bring forward. All Resolutions, Motions for election of the Speaker and Deputy Speaker, and Motion of Thanks on the Address by the President, etc. are examples of substantive motions.
  - A substitute motion, as its name suggests, is moved in substitution of the original motion for taking into consideration a policy or situation or statement or any other matter. Amendments to substitute motions are not permissible.
  - Subsidiary motions depend upon or relate to other motions or follow up on some proceedings in the House. By itself, a subsidiary motion has no meaning and is not capable of stating the decision of the House without reference to the original motion or the proceedings of the House.

Resolutions

- Meaning : A Resolution is a formal expression of the sense, will or action of the Legislative Body. Resolutions may be broadly divided into three categories:
- Types :
  - Resolutions which are expression of opinion by the House: Since the purpose of such a Resolution is merely to obtain an expression of opinion of the House, the Government is not bound to give effect to the opinions expressed in these Resolutions.
  - Resolutions which have statutory effect: The notice of a Statutory Resolution is given in pursuance of a provision in the Constitution or an Act of Parliament. Such a Resolution, if adopted, is binding on the Government and has the force of law.
  - Resolutions which the House passes in the matter of control over its own proceedings: It has the force of law and its validity cannot be challenged in any court of law. The House, by such a Resolution, evolves, sometimes, its own procedure to meet a situation not specifically provided for in the Rules.

Questions

- Starred: A Member who desires an oral answer to his question is required to distinguish it by an asterix. Maximum 20 Questions are included in the list of Starred Questions for a particular day. This is printed on green paper. Minimum of 15 clear days notice is required for tabling Starred Questions. The Questions not orally answered in the Starred list of questions are treated as Unstarred Questions and their replies are laid on the Table of the House.

- Unstarred: These do not carry the asterix mark and are meant for obtaining written reply. Not more than 230 Questions can be placed on the Unstarred list for a particular sitting. This list is printed on white paper. Minimum 15 clear days notice is required for tabling Unstarred Questions. Written answers given by the Ministers are deemed to have been laid on the Table of the House at the end of Question Hour.

- Short Notice Question: Question can also be asked on a matter of urgent public importance at a notice of less than ten clear days. The list of admitted SNQ is printed on a pink paper. The procedure of SNQ is regulated by House Rules and the basic test for its admissibility is the urgency of matter. SNQ is asked and answered soon after the Question Hour.

- Question to Private Members: A Question may also be addressed to a Private Member under Rule 40 of the Rules of Procedure and Conduct of Business in Lok Sabha, which provides that the subject matter of the question should be related to some Bill, Resolution or other matter connected with the Business of the House for which that Member is responsible. For instance, the Questions which relates to matters under the purview of Parliamentary Committees can be addressed to respective Chairperson. Similarly, Members piloting Private Members Bills and Resolutions can be addressed questions, which are within cognizance of them under this provision. The procedure in regard to such questions is the same as that followed in the case of questions addressed to a Minister with such variations as the Speaker may consider necessary.

Bills

- Bills are legislative Proposals

Content	Introduction	Procedure
• Original Bills (Bills embodying new proposals, ideas or policies); • Amending Bills (Bills which seek to modify, amend or revise existing Acts); • Consolidating Bills (Bills which seek to consolidate existing law on a particular subject) • Expiring Laws (Continuance) Bills (Bills to continue an expiring Act); • Repealing Bills (Bills seeking to repeal existing Acts); • Bills to replace Ordinances; • Constitution (Amendment) Bills	• Government Member Bill • Private Member Bill	• Ordinary Bills • Money Bills • Financial Bills • Constitution Amendment Bills • Bills Replacing Ordinances

Parliamentary Procedures : House Participation

Debates/Discussions/Motions to Raise Issues

- Issues can be raised individually by Members or identified by Business Advisory Committee (BAC) of the respective Houses
  - If BAC identifies, then parties decide which members will participate

Tool	Source	Purpose	Notice	Selection
Zero Hour	Listed as Urgent Public Imp.	Raise urgent issues than can't wait for notice periods	Same day	Ballot
Calling Attn.	LSR 197, RSR 180	Urgent Public Imp. specifically towards a Minister, response must for original issue and follow up. No vote after.	Same Day	LS - Ballot, RS - Chair after consulting BAC
LSR 377	LSR 377	Matters which cannot be raised under Rules relating to Questions, Short Notice Qs, Calling Attention	1 week till Same Day	Ballot - LS ONLY
Spl Mention	RSR 180A	Matters which cannot be raised under Rules relating to Questions, Short Notice Qs, Calling Attention	Prev Day	Chair : RS ONLY
Half Hour Discussion	LSR 55, RSR 60	If MP feels that an answer to a Starred/Unstarred Q further explanation, they can raise a Half-an-Hour Discussion, follow ups allowed, no voting post.	3 Days	Discretion of Pres. Offr
Private Member Resolution (PMR)	LSR 170, RS 154	• Any non Minister MP - ◦ Recommendation, opinion, approval or disapproval of an act or policy ◦ to bring an important matter to Govt's attn. • Used to express the House Opinion as a vote	2 days	Ballot
Statutory Resolution (SR)	CoI, Union Law	• Both Members & Ministers can move SRs - • Used to disprove Ordinances (*different from Houses passing Ordinances when placed before them, here disapproved even before them placed)* • *Bills replacing Ordinances can be moved after such SR*	NA	NA

Relatively longer discussions, participation decided by party leadership

Tool	Source	Purpose	Notice	Selection
Short Duration Discussion	LSR 193, RSR 176	• Discussion on a matter of urgent public imp. • Topic & Duration decided by BAC • MPs discuss, Minister responds at the end • No formal voting post	Same day	Discretion of Pres. Offr
Adjournment Motion	LSR 57	• To draw attention to or criticise the Govt over a decision of Urgent Public Imp. for which motion/resolution with notice would be too late • If accepted by Speaker and voted by House, schedules business in suspended • Seen as censure of Govt. but resignation not compulsory	Same day	Speaker's Discretion (LS only)
No Confidence Motion	LSR 198	• Trust vote for Govt to prove support • If voted and passed, govt. must resign.	Same day	Minimum support of 50 MPs

Parliamentary Procedures : House Participation

Special Tools

Tool	Source	Purpose	Notice	Selection
Motion of Thanks	CoI, LSR 18, RSR 16	• Presidential Address to both houses ◦ After General Election (New LS) ◦ Start of first session every year • Drafted by Govt, contains policies and agenda • After Pres. Address, Houses can discuss, PM Responds at the end. • Amendments can be moved in BOTH Houses ◦ If Amendment passed in LS, treated as No Confidence ◦ Amendments passed in RS symbolic ▪ RS has changed MoT 5 times till date • *MoTs are not voted, ONLY amendments are!*	After Address	Amendment Motions as per Presiding Officer's Discretion
Govt. Assurances	LSR, RSR	• While giving a reply to any other tool, if Minister gives an undertaking involving further action of the Govt, it is called an assurance. • They don't lapse upon Dissolution • Monitored by Committee on Govt Assurances ◦ Tracked digitally through Online Assurance Monitoring System • General Timeline 3 Months	NA	NA

Motion for Adjournment on a Matter of Urgent Public Importance

- Objective is to draw the attention of the Government to a matter of urgent public importance so as to criticise the decision of the Government in regard to which a motion or resolution with proper notice will be too late
- ***If an adjournment motion is passed, it indicates stronger disapproval of the policy of Government than a censure against it. For removing the Government, however, it is necessary for members to give notice of a no-confidence motion in the Council of Ministers as provided for in the Rules***
- When a motion of no-confidence in the Council of Ministers is under discussion, adjournment motions are not allowed
- An adjournment motion cannot be moved also on matters where a Minister exercises discretionary powers conferred upon him by a statute.
- The Speaker gives his consent to the moving of an adjournment motion if he is satisfied that the matter sought to be raised is definite, urgent, and of public importance. Because the matter proposed to be discussed is a definite matter of urgent public importance, the Speaker is not, as a matter of course, bound to rule the motion in order. A matter may be urgent, it may be definite, it may be of public importance, and yet the Speaker may, in a proper case, disallow such a motion
  - The refusal to give consent is in the absolute discretion of the Speaker and he is not bound to give any reason
- Consent of the Speaker alone does not entitle the member giving notice of an adjournment motion to move for the adjournment of business of the House; it has to be followed by leave of the House
  - If not less than fifty members rise in favour of the motion, the Speaker declares that leave is granted.

Censure Motion

- No leave of the House is required to move a censure motion
- It is in the discretion of the Government to find time and to fix a date for its discussion.
- There is no specific provision in the Rules for the moving of censure motion—such a motion is governed by the Rules applicable to motions in general and can be admitted as a No-Day-Yet-Named Motion
- Censure motion can be moved against the Council of Ministers or an individual Minister or a group of Ministers for their failure to act or not to act or for their policy and may express regret, indignation or surprise of the House at the failure of the Minister or Ministers. The Motion should be specific and self-explanatory so as to record the reasons for the censure, precisely and briefly.
- The Speaker's decision whether the motion is in order or not for any reason is final

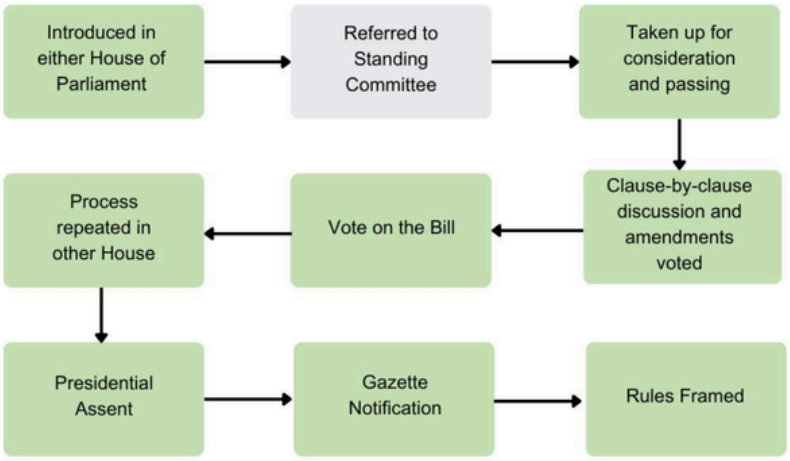
Motions of Confidence and No-Confidence in the Council of Ministers

- Parliamentary democracy rests on the principle of collective responsibility of the Council of Ministers or the Cabinet to the popularly elected House.
  - The Government must always enjoy majority support in the popular House to remain in power. If need be, it has to demonstrate its strength on the floor of the House either by moving a Motion of Confidence and winning the confidence of the House or by defeating a No-confidence Motion brought against it by the parties in Opposition
- The Council of Ministers is collectively responsible to the Lok Sabha: the responsibility is joint and indivisible
  - no person is nominated to the Council except on the advice of the Prime Minister
  - no person is retained as a member of the Council if the Prime Minister demands his dismissal
- There is no specific provision in the Constitution laying down the individual responsibility of a Minister and his accountability to the Parliament for all the acts of omission and commission in his departmental charge.
- It is not unconstitutional if the Prime Minister or a number of Ministers are members of the Rajya Sabha
- **Motion of No-Confidence**
  - ***In view of the express constitutional provision regarding collective responsibility of the Council of Ministers to the Lok Sabha, a motion expressing want of confidence in an individual Minister is out of order; under the Rules, only a motion expressing want of confidence in the Council of Ministers as a body is admissible***
  - ***A motion of no-confidence need not set out any grounds on which it is based.***
  - No conditions of admissibility of a motion of no-confidence are laid down in the Rules.
  - If the Speaker holds a no-confidence motion to be in order, the member who has tabled the notice asks for leave of the House to move the motion
    - Leave is deemed to be granted by the House if not less than fifty members rise
    - Motion of no-confidence is required to be taken up within ten days from the date on which the leave to move is granted by the House.
    - In fixing the date for the discussion of such a motion, the Speaker may ask the Leader of the House to suggest to him the date or dates in consultation with the leaders of various Opposition Parties or Groups
- **Motions of Confidence**
  - ***Though there is no specific rule in the Rules of Procedure relating to Motions of Confidence in the Council of Ministers, over the years, this new procedure has evolved as a result of the changing political composition of the Parliament***
  - This practice has been followed in recent times whenever no single political party is in a position to command the majority of the House. In these cases, the procedure followed is that a one-line (notice of a) motion under Rule 184 "that this House expresses its Confidence in the Council of Ministers" is moved by the Prime Minister on the direction of the President
- No government has ever had to resign following a vote of no-confidence
  - In 1979, the discussion on a no-confidence motion against the Morarji Desai government remained inconclusive. He resigned before the motion was put to vote
- 3 confidence motions have failed to pass resulting in loss of govt.
- Failure of No Confidence Motion or passage of Confidence Motion, necessarily does not lead to dissolution of the lower house.
  - Dissolution can take place only after the President is satisfied that it is not possible to form an alternative government following the defeat and resignation of the Council of Ministers. It is a moot point whether the President should accept automatically the advice of a defeated Government to dissolve the House without his exploring the possibility of an alternative government which enjoys the confidence of the House. In case the President dissolves that House, the defeated Government continues in office as caretaker government until the general elections, following the dissolution of the Lok Sabha, are over. In the States, however, the position is different. On the defeat and resignation of the existing Government, the Governor of a State has to ascertain whether an alternative government can be formed, and if he is unable to do so, he has to report to the President under art. 356 of the Constitution that the constitutional machinery of the State has broken down.

Parliamentary Procedures & Parliamentary Committees
Legislative Procedure

- All legislative proposals have to be brought in the form of Bills before Parliament.
- A Bill is a statute in draft, and no Bill can become law until it receives the approval of both the Houses of Parliament and assent of the President
- Legislative Power of the Union : Ordinary (Union & Concurrent List) / Constituent : CA u/A 368
- Legislative Power of the States : Ordinary (State & Concurrent List)

Passage of a Bill



Note: All Bills may not be referred to Committees.

Stages

- **Introduction**
- First Reading
- **Parl Comm. Ref**
- **Discussions**
- Second Reading
- **Amendments**
- Third Reading
- **Voting**
- **Stages repeated in 2nd House**
- **Assent**

Exceptions

- **Second House Amends the Bill -**
  - Must be passed by the First House Again
- **Both Houses can't agree/More than 6 months have passed and no action**
  - Joint Sitting can be called by Pres. (NA to States since SLA>SLC)
  - If convened, presided by Spkr - Dy.Spkr - Any member chosen
- **President Returns the Bill -**
  - If bill passed again, Pres HAS to give assent
- **Money Bills**
  - Only be introduced in LS
  - RS can only recommend changes to such Bills, and is required to pass such Bills within 14 days
    - If not, the Bill is deemed to be passed.
  - Rejection of a Money Bill by LS amounts to an indication of no confidence in the govt but resignation not compulsory
- **Constitution Amendment Bills**
  - A simple majority of the total membership of the House, and two-thirds majority of MPs present and voting is required to pass such Bills
  - Some Bills may need to be ratified by half the country's state legislatures

- The First Reading means: motion for leave to introduce a Bill on the adoption of which the Bill is introduced, or introduction of a Bill already published in the Gazette or laying on the Table of the House of a Bill, as passed by the other House, where it originated
- The Second Reading consists of two stages:
  - "First Stage" constitutes discussion on the principles of the Bill and its provisions generally on any of the following motions: that it be taken into consideration; that it be referred to a Select Committee of Lok Sabha; that it be referred to a Joint Committee of the Houses with the concurrence of Rajya Sabha; that it be circulated for the purposes of eliciting opinion; and
  - "Second Stage" signifies the clause-by-clause consideration of the Bill as introduced or as reported by a Select or Joint Committee, as the case may be.
- The Third Reading refers to the discussion on the motion that the Bill (or the Bill as amended) be passed.

Legislative Procedure

Private Members' Bills - member other than a Minister

- In a case where a Bill sponsored by a private member requires the recommendation of the President, it is open to the member concerned to apply direct to the President for such recommendation or apply via secretariat of the house.
- Only 14 PMBs that have been passed as legislation; last such PMB was more than 50 years ago – the Supreme Court (Enlargement of Criminal Appellate Jurisdiction) Act, 1970

Type of Bills	Ingredients	Member Pref	Prior Recco	House Pref	Maj.	Joint Sitting	Assent
Ordinary	Non Financial Changes	None	None	None	Simple	Yes	Yes/No /Return
Money (Art 110)	ONLY Taxes, CFI, CoFI, Govt Funding Borrowings or incidental *related matters to the above.*	***None***	Yes, Pres	• Yes, LS • LS>RS	Simple	No	Yes/No
Fin Bill I	Ordinary + Money (More Money than Ordinary)	None	Yes, Pres	• Yes, LS ◦ LS = RS	Simple	Yes	Yes/No /Return
Fin Bill II	Ordinary + Money (More Ordinary than Money)	**None**	Yes, Pres.	None	Simple	Yes	Yes/No /Return
CoI Amend.	Art 368	**None**	None	None	Simple/ Spl II/ Spl III	No	Yes ONLY for CA u/A368 *(24th CA 1971)*
Ordinance Replacement	Ordinary/ Money/Fin I/II	NA	Depends on kind of Bill	Depends on kind of Bill	Simple	Yes	Yes/No /Return

- **Money Bills (Procedure governed by (Art 109 + Art 110 + Art 117)**
  - When a Bill is held by the Speaker to be a Money Bill, he endorses a certificate thereon signed by him to the effect that it is a Money Bill before the Bill is sent to Rajya Sabha or presented to the President for assent
  - The period of fourteen days is computed from the date of receipt of a Money Bill in the Rajya Sabha Secretariat and not from the date on which it is laid on the Table of Rajya Sabha. A Money Bill is transmitted to Rajya Sabha as soon as it is passed by Lok Sabha, unless the Speaker has given a direction to the contrary
  - The recommendation of the President is required for the introduction of a Money Bill. Where, however, a Bill deals only with any matter incidental to any of the matters specified in article 110(1), sub-clauses (a) to (f), recommendation of the President is not necessary for introduction of that Bill.
    - The High Court and Supreme Court Judges (Salaries and Conditions of Service) Amendment Bill, 2021 was classified as a Money Bill under art. 110(1)(g). In terms of Art. 117(1) read with art. 110(1)(g), the Bill was introduced in Lok Sabha on 30-11-2021, without President's recommendation.
  - A Money Bill cannot be referred to a Joint Committee of the Houses.
  - Private Members can introduce Money Bills (Rule 74, Lok Sabha)

- **Financial Bills (Procedure governed by (Art 117)**
  - **The Constitution distinguishes Money Bills from Financial Bills**
    - Article 117 of the Constitution covers cases where Bills can be brought before Parliament containing not only taxation proposals (including levying of a cess) but also other matters. These Bills cannot be called Money Bills under Art. 110. Therefore, there is no bar against any Bill of a composite or hybrid nature to be brought under Art. 117. However, as far as possible, Bills of composite or hybrid nature should be rare and only in cases where the proposed taxation and other matters connected therewith are inseparable.
  - **Financial Bills of Category 'A' [Art 117(1)]**
    - Those which make provision for any of the matters specified to make a measure a Money Bill but do not consist solely of those matters
      - eg - Central Road Fund (Amendment) Bill, 2006
      - Can be introduced only in the Lok Sabha and requires the recommendation of the President for its introduction
      - Can be referred to Joint Committees since 1989
  - **Financial Bills of Category 'B' [Art 117(3)]**
    - Where a Bill contains, inter alia, a proposal or proposals involving expenditure from the Consolidated Fund of India e.g., by providing for the appointment of officers or other authorities or for the establishment of an institution,
      - eg - National Security Guards Bill, 1986, the Supreme Court Judges (Number of Judges) Amendment Bill, 1977, Maintenance and Welfare of Parents and Senior Citizens Bill, 2007
    - May be introduced in either House and it does not require any recommendation of the President for its introduction
    - However, a separate recommendation of the President is essential for its consideration by each House and unless such recommendation has been received, the House can not pass the Bill
    - The recommendation of the President for consideration of a Bill is required even where the Bill would, if enacted, involve expenditure indirectly
  - A Financial Bill (of Category 'A'), if enacted, may also involve expenditure from the Consolidated Fund of India. In such a case, the recommendation of the President would be required both for its introduction and consideration
    - the High Court and Supreme Court Judges (Salaries and Conditions of Service) Amendment Bill, 2008

- **Constitutional Amendments**
  - The Constitution provides for three categories of amendments:
    - Articles which are open to amendment by simple majority;
      - admission or establishment of new States, formation of new States and alteration of areas, boundaries or names of existing ones
      - creation or abolition of Legislative Councils in the States
        - Parliament's power to provide by law for the abolition or creation of Legislative Council in the States is exercisable only if the Legislative Assembly of the particular State passes a resolution to that effect by a majority of not less than two-thirds of the members of the Assembly present and voting
      - administration of Tribal Areas in the States of Assam, Meghalaya and Mizoram
        - *No Bill of this nature can be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affect the area, boundaries or name of any of the States, the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired*
    - articles which require special majority for their amendment; and
      - Motions that the Bill be circulated for eliciting public opinion thereon or that the Bill be referred to a Select or Joint Committee are passed by simple majority only
    - articles amendments to which are required to be passed by special majority and are also to be ratified by Legislatures of not less than one-half of the States (no time limit for the states)
      - the election of the President
      - extent of the executive power of the Union and the States
      - Supreme Court and the High Courts
      - distribution of legislative powers between the Union and the States
      - representation of States in Parliament;
      - very procedure for amendment as specified in the Constitution
  - There are several articles in the Constitution which leave matters subject to laws made by Parliament. By passing ordinary laws Parliament may, in effect, modify or annul the operation of certain provisions of the Constitution, without actually amending them However, as such laws do not in fact make any change whatsoever in the letter of the Constitution, they cannot be regarded as amendments of the Constitution nor categorised as such.
    - Parliament may, under article 11, make any provision relating to citizenship notwithstanding anything in arts. 5 to 10.
    - Provisos to Arts. 83(2) and 172(1) empower Parliament to extend the life of Lok Sabha and of the State Legislative Assemblies beyond the period of five years during the operation of a proclamation of Emergency
    - Art. 171(2) which provides that the composition of Legislative Councils of the States as laid down in clause (3) of the same article will hold good only "until Parliament by law otherwise provides".
  - There is no separate constituent body for the purposes of amendment of the Constitution, constituent power also being vested in Parliament.
  - Except that Parliament cannot alter the basic structure or framework of the Constitution, there is no other limitation placed upon the amending power
  - A Bill seeking to amend the Constitution may be brought forward by a Minister or private member.
    - In the latter case, the Bill, apart from being subject to the normal rules applicable to private members' Bills, has also to be examined and recommended by the Committee on Private Members' Bills and Resolutions before a motion for leave to introduce, it is included in the List of Business
    - It is a well-settled convention that Bills seeking to amend the Constitution brought forward by Ministers are introduced in the Lok Sabha

Components of Union Budget : Prepared by Dept. of Economic Affairs, Ministry of Finance

Components	Details
Annual Fin. Statement	• Govt Receipts & Expenditures for current year, previous year, and next financial yr. ◦ Expenditure should clearly mention ▪ Expenses charged to CFI - non votable/only discussed • Salary, Allowances, Pension - Pres, SC Judges, CAG, Vigilance Commissions, UPSC • Salary, Allowances - Presiding Officers of LS & RS, HC Judges • Debt Charges/Court Order Enforcement etc. ▪ Expenses made from CFI - votable/discussed ◦ President shall have this laid before both Houses (Art 112)
Expenditure Budget	• Expenditure of various Ministries including Demand for Grants (DFGs) ◦ DFGs need Prior President Recco. ◦ This later gets consolidated into **Appropriation Bill**
Receipts Budget	• The income from tax and non-tax sources
Finance Bill	• Changes to the country's existing tax laws with an explanatory memorandum
Strategy Docs	• Under Fiscal Responsibility & Budget Management Act, 2002 ◦ Macro Economic Framework Statement ◦ Fiscal Policy Strategy & Medium Term Fiscal Policy

Stages

1st Part

- Presentation of Budget in Parl by FM in February
- A general discussion on the broad outline of the budget then recess for 3 weeks

2nd Part

- During recess, DRSCs examine DFGs

3rd Part

- **Discussion on DFGs**
  - Selected DFGs are discussed and voted
  - are selected on the recommendation of the Ministry of Parliamentary Affairs, which holds a meeting with leaders of all parties to arrive at the list of Ministries.
  - The allocated time is split between parties based on their strength by Speaker
  - Rest are 'guillotined' (vote w/o discussion)
- **Authorising expenditure**
  - The DFGs are consolidated into an **Appropriation Bill** to sanction the proposed expenditure
    - This allows govt to withdraw from CFI
- **Authorising tax changes:**
  - Finance Bill is taken up and passed after DFG Discussion
- Lok Sabha must discuss and pass both the Appropriation and Finance Bills to allow implementation of budget proposals
  - RS has recommendatory role as these are Money Bills

- During DFG Discussion, MPs can move Cut Motions. These motions are a way to initiate a discussion on the DFGs, and express a disapproval of the expenditure or the policy underlying the expenditure. If a cut motion is passed, the government is expected to resign but not compulsory. Only in LS and not RS.
  - **Disapproval of a Policy Cut**: Aims to reduce the demand from a Ministry to Re 1. This indicates a disapproval of the policy underlying the specific demand.
  - **Economy Cut:** Aims to reduce the demand from a Ministry by a specific amount
  - **Token Cut:** Aims to reduce the demand from a Ministry by Rs 100 to express a specific grievance.

- During the year if Govt needs more money, can be done through Supplementary Grants
  - Passed as Appropriation Bills
- During election year of whenever expected that budget will take longer to pass, then Vote on Account is approved for a suitable proportion of the estimated expenditure

Govt Accounts Structures

Consolidated Fund (Art 266)

- no amount can be drawn from without due authorisation from the Parliament

- **Revenue**
  - **Receipts** → Tax /Non Tax/Grants-in-Aid
  - **Expenditure**
    - General Services,
    - Social Services,
    - Economic Services,
    - Grants-in aid and Contribution
    - Charged to/Made From
- **Capital**
  - **Receipts** → Debt/Non Debt
  - **Expenditure**
    - Charged to/Made From
    - General Services,
    - Social Services,
    - Economic Services,
    - Public Debt,
    - Loans and Advances,
    - Inter-State Settlement,
    - *Transfer to Contingency fund*

Contingency Fund (Art 267)

- Placed at the disposal of the Pres. to facilitate meeting of urgent unforeseen expenditure by the Govt pending authorisation from the Parliament.
- Later, after parliamentary approval, money taken out of CFI and CoFI is replenished.

Public Account (Art 266)

- Money held by Govt in trust
- Public Account funds that do not belong to the Govt and have to be finally paid back to the persons and authorities, who deposited them, do not require Parliamentary authorisation for withdrawals
- Parliament approval is needed when amounts are withdrawn from the Consolidated Fund and kept in the Public Account for expenditure on specific objects

- **Provident Funds,**
- **Small Savings collections,**
- **Receipts of Govt set apart for expenditure on specific objects such as road development, primary education,**
- **Other Reserve/Special Funds**

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Parliamentary Committees

Committee	Type & Strength	Nomination/ Election	Functions
Dept. Related Standing Comm	Jt : Total - 31 21(LS) + 10(RS)	Speaker & Chair	• 24 DRSC org as per Min/Dept : ◦ 16 Chaired by LS member and supported by LS Sectt ◦ 8 Chaired by RS member and supported by RS Sectt • Examining Bills, Annual Reports, Policy Docs • Examining Demand for Grants • Examining issues of public important
Public Accounts Committee	Jt: Total 22 15(LS) + 7(RS)	Elected by LS & RS	• Examines CAG audit reports (Minister can't be a member) • Examine Appropriation Accounts and Financial Statements of various Ministries
Comm. on PSU	Jt: Total 22 15(LS) + 7(RS)	Elected by LS & RS	• Examines CAG reports PSUs. (Minister can't be a member) • Comprehensive, Horizontal, and Sectoral Audits of PSUs.
Estimates Comm.	Select : 30	Elected by LS	Assists with Parliament's scrutiny over govt's exp. and general policies (LS Only)
Jt Parl Comm.	Varies	Speaker & Chair	Temporary investigative Committees set up for a specific reason and duration to examine issues of public importance or Bills
Petitions	Select 15(LS)/10(RS)	Speaker & Chair	Hears petitions related to Bills, pending business, or public interest
Govt Assurances	Select 15(LS)/10(RS)	Speaker & Chair	Examines assurances made by ministers on the Parl's floor, and submits reports on the status of implementation
Subordinate Legislation	Select	Speaker & Chair	Scrutinises rules and regulations made by the executive under delegated legislation
Business Adv. Comm.	Select 15(LS)/11(RS)	Speaker & Chair	Allocates time for various business taken up by the House (Spkr/Chair heads)
Rules	Select 15(LS)/16(RS)	Speaker & Chair	Examines the Rules of Procedure of the House and recommends any amendments or addition (Spkr/Chair heads)
Comm. on Pvt member	Select 15 (LS only)	Speaker	Examines all PMBs and PMRs, allocates time, (Dy Spkr heads)
Privileges	Select 15(LS)/10(RS)	Speaker & Chair	Hears questions relating to the breach of rights, privileges, or immunities
Ethics	Select 15(LS)/10(RS)	Speaker & Chair	Oversees moral and ethical conduct of Members, examines related cases
General Purposes	Select Varies	Varies	• Generally consists of Presiding Officers, Chairpersons Panels, Party leaders • Advises procedural, functional, ceremonial issue

- The Committee system in India can be traced back to the advent of the Montague- Chelmsford Reforms
- There are three sets of rules relating to Parliamentary Committees
  - 'General Rules', which are applicable to all the Committees
  - 'Specific, which make special provisions for particular Committees; and '
  - Internal Rules', which regulate the internal procedure of each Parliamentary Committee. 'Internal Rules' are made by the Committees themselves with the approval of the Speaker
- A Parliamentary Committee is appointed or elected by the House or nominated by the Speaker
  - Under the provisions of the Rules or in pursuance of an Act of Parliament [e.g. the Joint Committee on Salaries and Allowances of Members of Parliament, Joint Committee on Judges (Inquiry) Rules]
  - a motion or resolution adopted by the House [e.g. the Committee on Bretton Woods Conference, 1946; the Committee on the Conduct of a Member (Mudgal Case, 1951)
  - or under the inherent powers of the Speaker. Examples of the last category are: General Purposes Committee; House Committee; Inscriptions Committee;
- It works under the direction of the Speaker and presents its report to the House or to the Speaker, and the secretarial work for it is done by the Secretariat
- The question whether a Committee which does not satisfy all these conditions is a Parliamentary Committee or not is referred to the Speaker whose decision is final
- A Joint Committee, composed of members of both the Houses, is constituted either on a motion adopted by one House and concurred in by the other, or by communication between the Presiding Officers of the two Houses, or under the Rules.
  - Such a Committee can be constituted only when there is an agreement between the two Houses. In case there is no such agreement, a Joint Committee cannot be constituted.
  - The Committees of Public Accounts and Public Undertakings are not Joint Committees. They are primarily Committees of the Lok Sabha. The Committees are formed on a motion adopted by the Lok Sabha and members of the Rajya Sabha are nominated to these Committees in response to an independent motion requesting for the association of the members of the Rajya Sabha with the Committees, adopted by the Lok Sabha and concurred in by the Rajya Sabha. Even if the Rajya Sabha does not concur with the motion or the members of the Rajya Sabha do not associate with Committees, the Committees continue to function.
- The quorum to constitute a sitting of a Committee is, as near as may be, one- third of the total number of members of the Committee

Prelims Concise Notes 2.0 (PCN) 9 Legislatures and Electoral Policy V

Electors, Members, Parties, Elections, DCI, ECI

Electors

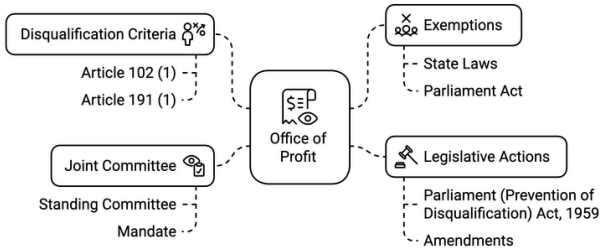
- Article 326 has provided for basic principle of adult suffrage in the country.
  - Accordingly, the Parliament has prescribed specific conditions of registration and disqualification for registration in electoral roll in Section 19 and 16 respectively, of the Representation of the People Act, 1950
- There are 3 categories of electors in India: –
  - (i) General electors,
  - (ii) Overseas (NRI) electors
  - (iii) Service Electors
    - Postal Ballot is only for Service Electors.
- Right to Vote as per the most recent SC judgement is categorised as a Statutory Right.
- Freedom of Voting which includes measures such as NOTA as derived from Art 19(1)(a) and is a fundamental right.
- The age for voting has been reduced to 18 years from 21 years via the 61st Constitutional Amendment, 1988
- Qualifications/conditions for registration as elector : ***(ALL MUST BE FULFILLED)***
  - he must be a citizen of India
  - he must not be less than 18 years of age on the qualifying date as prescribed by law (Qualifying date is 1st Jan)
  - he should be ordinarily resident in the constituency concerned
    - Presently, there is no minimum period for determination of ordinary residence.
  - he must not be disqualified for such registration under the law made by Parliament
- Disqualifications for registration as elector ***(ANY)***
  - is not a citizen of India;
  - is of unsound mind and stands so declared by a competent court
  - is for the time being disqualified from voting under the provisions of any law relating to corrupt practices and other offences in connection with election.
    - As per sec 11A, RoPA, 1951; voters can be disqualified from voting if :
      - Ban for 6 years : Convicted by a court for bribery (s. 173 BNS), promoting enmity (s 196 BNS or s 125 RoPA, 1951), Removing Ballot Papers (s 135 RoPA, 1951), Election Official tampering with ballots (s 136(2)(a) RoPA, 1951
      - Upto 6 Years Disqualified by President under Sec 8A(1), RoPA, 1951 : Corrupt Practices
        - Bribery, Undue Influence etc.
- Prisoners do not have the right to vote unless they are preventively detained. (s 62, RoPA 1951)
- Types of Revision : Rule 25(1) of Registration of Electors Rules, 1960 says that the roll for every constituency shall be revised either intensively or summarily or partly intensively and partly summarily, as the Election Commission may direct.
  - **Intensive Revision :** Roll is prepared afresh, without reference to the earlier existing roll. The Enumerators/Booth Level Officers visit each house in the specific polling station area, assigned to them.
  - **Summary Revision :** the roll is simply updated and there is no house-to-house enumeration.
    - **Special Summary Revision**
      - Where, by reason of any inaccuracies in the rolls, such as failure to cover any place or localities or blocks or any section of electors or for any other reasons, the Election Commission considers it necessary so to do, it may, after recording such reasons, order special revision of the roll of any constituency or part thereof. Under this type of revision, the Election Commission may adopt changes in the existing procedure, suitable to the specific circumstances. For example : there is no provision for house to house verification during summary revision but the Election Commission may order house to house verification in all the constituencies or some specified constituencies during special summary revision.
    - **Partly Intensive and Partly Summary Revision**
      - Electoral rolls are published in draft. Simultaneously, Enumerator/BLOs are sent to the households for verification. After disposing of claims and objections, supplementary lists of addition, deletions and corrections are prepared and published together with main(mother) roll form the finally published Electoral Roll.

Criteria	LS	RS	SLA	SLC
Nationality	**Citizen (in any manner) [All member elections conducted by ECI]**			
Age (CoI)	• 25 Yrs	• 30 Yrs	• 25 Yrs	• 30 Yrs
Eligibility (RoPA, 1950)	Registered Voter in any Parliamentary Constituency	Registered Voter in any Parliamentary Constituency	Registered Voter in any Assembly Constituency of the specific state	Registered Voter in any Assembly Constituency of the specific state
Election	Direct	Indirect by MLAs	Direct	Indirect
Nomination	NO	12 : Lit, Art, Sci, Soc Sci	NO	⅙ Nominated
Election Format	First Past the Post	Proportional Rep. with Single Transferrable Vote	First Past the Post	Proportional Rep. with Single Transferrable Vote
Process	1 Vote = 1 value	Min Votes Needed to win RS Seat from $\left(\frac{\text{Total MLAs of state} \times 100}{\text{Vacancies} + 1}\right) + 1$	1 Vote = 1 value	• 1/3rd by MLAs • 1/3rd by Local Bodies (Mentioned in RoPA, 1950) • 1/12th TGT Teachers since 3 yrs • 1/12th Graduates since 3 yrs.
Ballot	Secret	*Open (Limited - MLAs show their vote to a party rep)*	Secret	Secret
Oath	Sch III, By Pres or someone on her behalf		Sch III, By Gov or someone on her behalf	
Immunities/ Privileges/Contempt (Not singularly codified)	• Constitution ◦ Art 105/194 : Speech & Vote (Except on Corrupt Actions - Sita Soren Case - 2024) ◦ Art 122 : Parliamentary Proceedings are not judicially reviewable ◦ Art 361A : True Publication of legislative proceedings • CPC - Sec 135A : Can't be arrested 40 days before, during, and after a session • Rules of Procedure of Houses : Presiding Officer should be informed of any police or judicial action against a member • British Parliamentary Conventions also applicable • Presiding Officer also has suo-moto powers, can refer to Privileges Committee also, House decides - ◦ If Member found guilty - apology/suspension/disqualification/jail/fine ◦ If non-member found guilty - apology/jail/fine			

- **Every breach of privilege is also a contempt of house, but every contempt of house is not breach of privilege.**
- **When any of the privileges either of the members individually or of the House in its collective capacity are disregarded or attacked by any individual or authority, the offence is called a breach of privilege.**
- **Any obstruction put before Houses or its members in due discharge of their duties, amounts to contempt of the House**
- **Privileges also apply to non members who can participate but not vote - Attorney General/Advocate General**

- **A member of either House of Parliament may cease to be a member of that House and his seat may become vacant**
  - If he Holds any office of profit under the Government of India or the Government of any State, other than an office declared by Parliament by law not to disqualify its holder (Art 102)
  - If he declared by a competent court to be of unsound mind; (Art 102)
  - If he becomes an undischarged insolvent (Art 102)
  - If he voluntarily acquires the citizenship of a foreign State or is under any acknowledgement of allegiance or adherence to a foreign State; (Art 102)
  - If he violates any of the provisions of paragraph 2 of the Tenth Schedule to the Constitution (Art 102)
  - If he is chosen a member of the other House of Parliament when he is already a member of one House. In that case, his seat in the first House becomes vacant with effect from the date on which he is chosen a member of the other House. (S 69, RoPA 1951)
  - If he is chosen as a member of a State Legislature, his seat in Parliament becomes vacant unless he has resigned his seat in the State Legislature within a period of 14 days from the publication of the declaration in the State Gazette
  - If his election is declared void by the High Court (s 100, RoPA, 1951)
  - if he has been:
    - (i) convicted or found guilty of an offence punishable with imprisonment under sections 196, 173, 174, 353(2) and (3) BNS
    - (ii) found guilty of an electoral offence mentioned in section 125 or section 135 or section 136 of the RoPA, 1951
    - (iii) has incurred any other disqualification mentioned in Part II, Chapter III of the said Act (Sec 8 - 10A, RoPA, 1951)
  - if he remains absent from all the meetings of the House for a period of 60 days or more without the House permission Art 101(4)
    - only directory and not mandatory.
  - If he is expelled consequent upon the adoption of a motion of expulsion by the House; or
  - If he is elected as President of India and enters upon his Office as President [Art 59(1)]
  - if he is elected as Vice-President of India and enters upon his Office as Vice- President [Art. 66(2).]
  - if he is appointed as Governor of a State and enters upon his Office as Governor [Art 158(1)]
  - if he resigns his seat and his resignation is accepted by the Chairman or the Speaker, as the case may be
    - The element of acceptance of resignation was introduced by the Constitution (Thirty-third Amendment) Act, 1974 to put a check on forced resignation.
  - If he has been disqualified for being a member of the House.

Office of Profit: Regulations and Exemptions



- The law does not clearly define what constitutes an office of profit
- The definition has evolved over the years with interpretations made in various court judgments.
- Three Essential Elements : S. Umrao Singh v. Darbara Singh (1968)
  - the individual holds an office
  - it is an office of profit
  - it is under the Government of India or a State

Electoral Disqualifications

Reason	Authority	Additional Details regarding disqualification
CoI Core Violations	Pres/Gov on binding ECI advice	• Office of Profit (OoP) : Can't hold 2 or more offices unless allowed. ◦ Not defined in CoI, Parl. & State can make laws exempting offices/posts ▪ Ministers are constitutionally exempted ▪ Parliament (Prevention of Disqualification) Act, 1959 • Declared unsound mind by a competent court • Undischarged insolvent • Not a citizen/acquired any other citizenship/allegiance to another state
Corrupt Practices	Pres on binding ECI advice	• **Sec 8A, RoPA 1951** : Convicted for 'Corrupt Practices' defined under s. 123 • S. 123 : Bribery, undue influence, or coercion etc. • Court order should be presented before President within 3 months. • Max 6 year ban (depending on case to case) • *{Corrupt Practices & Electoral Offences are completely differently defined terms under RoPA 1951)*
Statutory Violations	Automatic (by Court Order/ECI)	• **Sec 8, RoPA 1951 : 6 Year Ban** (Immediate disqualification of elected members) (Lily Thomas Case, 2013) - struck down s 4, RoPA 1951] ◦ **Convicted under following laws irrespective of type/nature of punishment** ▪ Civil Rights Act 1955, Customs Act 1962, UAPA 1967, Narcotics (NDPA) 1985, Religious Institutions 1988, Places of Worship Act 1991, National Honour Act 1971, Sati (Prevention) Act 1988, Corruption Act 1988, ▪ Some Offences - BNS (IPC) (Promoting enmity, bribery, rape, cruelty) ▪ ***Some electoral offences under RoPA 1951*** (booth capturing, tampering ballot paper etc) *(All electoral offences do not lead to disqualification, only those mentioned/cross referenced under Sec 8, electoral offences lead to punishments, fines, and sometimes cancellation of elections)* ◦ **Convicted under following laws with minimum jail of 6 months** ▪ Any law about Hoarding/profiteering/adulteration of food or drugs, ▪ Dowry Prohibition Act, 1961 ◦ **Convicted under any other law apart from those mentioned above with min 2 yrs jail** • **Sec 9, RoPA 1951 :** Disqualified for 5 years if dismissed due to disloyalty/corruption • **Sec 9A, RoPA 1951 :** Disqualified TILL member is having commercial contracts with Union/State **Sec 10. RoPA 1951 :** Disqualified TILL member is Manager, Agent of any company which is 25% owned by Union/State (Except cooperative societies) • **Sec 10. RoPA 1951 :** ECI can disqualify for 3 yrs if elections expenses not filed properly
Defection	Presiding Officer	• **Added via 52 CA, 1985 : Xth Schedule** • **Applicable to :** All members/Presiding Officers except RS Chair (VP) ◦ If complaint against Presiding Officer, then house chooses another member to decide (not the Dy. Speaker) ◦ Speaker cannot decide on other disqualifications if their own removal on any ground is pending. (Nabam Rebia case, 2016) • **Grounds :** ◦ Voluntarily giving up pol. party membership (Does not apply to Presiding Officers if they are resigning due to being elected as Presiding Officers.) ◦ Voting against party directions ◦ Nominated Member joins any political party after 6 months ◦ Independent Member joins any political party anytime • **Exceptions** ◦ 2/3rd elected members of Party A in the house joining Party B ▪ Remaining 1/3rd members of Party A function as a separate unit • **Process :** No suo-moto powers/no timeline to decide • **Outcome** ◦ Disqualified from house, also removed from any post which was given due to them being a Member (91st, CA 2003) ◦ Decision can be reviewed both by SC/HC but only after process is over. Court cannot get into the way the proceedings were conducted but only on outcome (Kihoto Hollohan Case, 1993) ◦ Can be immediately elected/nominated back to the house (no future ban)

POLITICAL PARTIES

- In India, political parties are mainly governed by the Constitution (especially Article 324), the Representation of the People Act, 1951, the Election Symbols (Reservation and Allotment) Order, 1968, the Income-tax Act, and internal party constitutions and by-laws overseen by the Election Commission of India (ECI).
- **Constitutional and statutory framework**
  - Article 324 of the Constitution vests the Election Commission of India with the power to supervise, direct and control elections, which is the constitutional basis for regulating parties in the electoral arena.
  - The Representation of the People Act, 1951 (RPA 1951) provides the core statutory framework for elections to Parliament and state legislatures, and it defines "political party" as an association of citizens registered with the ECI under section 29A.
  - Before, Xth Schedule, Constitution did not have any mention of Political Parties.
- **Registration and internal requirements**
  - Section 29A RPA 1951 lays down the procedure for any association/body of Indian citizens to apply to the ECI for registration as a political party, including filing its memorandum/constitution, office-bearers, and a declaration of allegiance to the Constitution and to socialism, secularism and democracy.
  - Once registered, a party gets entitlements such as a common symbol (subject to recognition rules), access to electoral rolls, and certain tax benefits and is also subject to ECI directions on internal democracy, organisational transparency and compliance with election laws.
- **Finance, donations and disclosure**
  - Section 29B RPA 1951 allows a registered political party to accept voluntary contributions from individuals and Indian companies, subject to other laws (e.g., foreign-contribution restrictions are handled by separate legislation).
  - Section 29C requires the treasurer or an authorised person to prepare an annual report listing all contributions above 20,000 rupees, and submit it to the ECI by the due date for filing the party's income-tax return, failing which the party can lose income-tax exemptions.
  - Under the Income-tax Act, registered parties that file their contribution reports and returns in time enjoy full exemption from income tax on their income, including donations.
- **Recognition, symbols and status (national/state)**
  - The Election Symbols (Reservation and Allotment) Order, 1968, issued by the ECI under Article 324 and the Conduct of Elections Rules, is the main instrument that governs recognition of parties as "National" or "State" parties and the reservation/allotment of symbols.
  - Paragraphs 6A and 6B of the Symbols Order lay down vote-share and seat-win thresholds for recognition: a party that meets specified performance criteria in a state becomes a State party there, and a party meeting broader multi-state performance criteria becomes a National party.
  - Recognised parties get exclusive use of a reserved symbol across the relevant territory (India for a National party; that state for a State party) and linked benefits such as free copies of electoral rolls, broadcast time and star-campaigner status rules.
- **De-registration, de-recognition and compliance**
  - While the RPA 1951 does not give the ECI an explicit general power to cancel registration for any reason, the Commission has used its authority to monitor statutory compliance (e.g., contribution reports, address and office-bearer updates) and has recently delisted hundreds of Registered Unrecognised Political Parties (RUPPs) for persistent non-compliance and non-existence at recorded addresses.
  - Recognition as a National/State party can be withdrawn under the Symbols Order if a party fails to meet the prescribed performance criteria in subsequent elections, after which it loses reserved-symbol and status-linked benefits, though it can continue as a registered but unrecognised party.

DELIMITATION COMMISSION

- The Delimitation Commission is a high-powered statutory, quasi-judicial body set up by the Union government to redraw the boundaries of Lok Sabha and State Legislative Assembly constituencies on the basis of the latest Census so that each constituency has, as far as practicable, an equal population.
- **Meaning :**
  - Delimitation literally means fixing the limits or boundaries of territorial constituencies to reflect changes in population.
  - Its core aim is to uphold the principle of "one vote, one value" by preventing over-representation of sparsely populated areas and under-representation of densely populated ones.
- **Constitutional and legal basis**
  - Article 82: After every Census, Parliament is to enact a Delimitation Act.
  - Article 170: Provides for readjustment of the composition and territorial constituencies of State Legislative Assemblies after each Census.
  - Articles 330 and 332: Deal with reservation of seats for SCs and STs in the Lok Sabha and State Assemblies in proportion to their population.
  - Article 329(a): Says that delimitation orders cannot be questioned in any court, giving finality to the Commission's decisions.
  - The body is created under a Delimitation Act passed by Parliament (e.g., Acts of 1952, 1962, 1972, 2002).
- **Composition and nature**
  - Chairperson: A retired judge of the Supreme Court.
  - Members: The Chief Election Commissioner (or a nominated Election Commissioner) and the State Election Commissioners of the concerned states.
  - Associate Members (without final decision-making power): Selected MPs and MLAs from the concerned state(s) to assist and give inputs.
  - It is designed to work independently of the executive and political parties; its orders have the force of law and are not subject to judicial review.
- **Functions and process**
  - Redraw boundaries of Lok Sabha and State Assembly constituencies based on the latest Census.
  - Fix or readjust the number of seats in State Assemblies and allocate/rotate reserved seats for SCs/STs according to their population share.
  - Ensure constituencies are compact, contiguous and administratively coherent, taking into account district and local boundaries as far as possible.
  - Prepare draft proposals, publish them, invite objections and suggestions from the public and stakeholders, hold public sittings, then finalise and notify the orders.
- **Historical use and current status**
  - Delimitation Commissions have been set up four times so far: under the Acts of 1952, 1962, 1972 and 2002, corresponding to exercises in 1952, 1963, 1973 and 2002–08.
  - The present delimitation for most constituencies is based on the 2001 Census, carried out under the Delimitation Act, 2002, with orders coming into force around 2008.
  - By law, the next nationwide delimitation can take place only after the first Census conducted following the year 2026

ELECTION COMMISSION

- The Election Commission of India (ECI) is a permanent, independent constitutional body under Article 324, responsible for supervising, directing, and controlling elections to Parliament, state legislatures, and the offices of the President and Vice-President.
- **Constitutional basis and establishment**
  - Article 324(1) vests in the ECI the power of "superintendence, direction and control" of elections to Parliament, state legislatures, and the President and Vice-President.
  - The Commission was set up on 25 January 1950 as a constitutional body; it is distinct from State Election Commissions, which handle panchayat and municipal elections.
- **Composition and appointment**
  - The ECI is a multi-member body comprising the Chief Election Commissioner (CEC) and two Election Commissioners, all enjoying equal powers and status; decisions are taken by majority.
  - Under Article 324(2), the President appoints the CEC and other Election Commissioners, and can vary their number from time to time.
    - Under the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, the President appoints them on the recommendation of a Selection Committee consisting of the Prime Minister (Chairperson), a Union Cabinet Minister nominated by the PM, and the Leader of the Opposition (or leader of the largest opposition party) in the Lok Sabha.
  - They have security of tenure: removal of the CEC is like that of a Supreme Court judge, while other Election Commissioners can be removed on the CEC's recommendation.
- **Powers and functions**
  - Conduct of elections: Controls the entire process of elections to Lok Sabha, Rajya Sabha, State Legislative Assemblies and Councils, and the offices of President and Vice-President (schedules, poll, counting, results).
  - Electoral rolls: Prepares, revises, and updates electoral rolls and issues EPICs, ensuring all eligible voters are registered.
  - Political parties and symbols: Registers and recognizes political parties, allots election symbols, and settles related disputes under the Symbols Order, 1968.
  - Model Code and campaign regulation: Frames and enforces the Model Code of Conduct, monitors campaign expenditure, and can countermand polls in cases like booth capturing or large-scale rigging.
  - Advisory and quasi-judicial role: Advises the President/Governors on disqualification of MPs/MLAs and adjudicates disputes on party splits and rival factions.
- **Independence and significance**
  - The ECI is insulated from executive interference through constitutional status, security of tenure, and fixed service conditions, aimed at ensuring free and fair elections.
  - Expenditure of the Election Commission of India, including the salaries of the Chief Election Commissioner and other Election Commissioners, is charged on the Consolidated Fund of India (CFI), not voted annually by Parliament

ELECTORAL REFORMS

- **Phase I: The Foundation (1950–1960s)**
  - This era focused on building the legal and constitutional machinery to host the world's largest democratic exercise.
  - 1950 & 1951: Enactment of the Representation of the People Acts (RPA). The 1950 Act dealt with the preparation of electoral rolls, while the 1951 Act laid down the actual conduct of elections and qualifications for candidates.
  - 1952: First General Elections conducted using the "Balloting System" (separate boxes for each candidate).
  - 1962: Introduction of the "Marking System" (a single ballot paper where voters marked their choice with a stamp).
  - 1968: The Election Symbols (Reservation and Allotment) Order was passed to regulate the recognition of political parties and allotment of symbols.
- **Phase II: Institutional Integrity (1970s–1980s)**
  - Reforms in this period aimed to curb political instability and expand the electorate.
  - 1985: The 52nd Amendment (Anti-Defection Law) was passed to prevent "Aaya Ram Gaya Ram" politics (legislators switching parties for personal gain).
  - 1988 (61st Amendment): The voting age was lowered from 21 to 18, dramatically increasing youth participation.
  - 1989: Provisions were made to adjourn or countermand elections in cases of booth capturing.
  - 1989: The Election Commission was briefly converted into a multi-member body (it became permanently multi-member in 1993).
- **Phase III: The "Seshan" Era & Modernization (1990s)**
  - 1993: Introduction of Electors' Photo Identity Cards (EPIC) to prevent impersonation.
  - 1996: Significant amendments to the RPA:
  - Reduced the campaign period from 21 to 14 days.
  - Banned contestants from running in more than two constituencies.
  - Prohibited the sale of liquor within 48 hours of polling.
  - 1998: Electronic Voting Machines (EVMs) began being used on a larger experimental scale (they were first trialed in 1982).
  - 1999: Provision for Postal Ballots for certain categories of voters (like the armed forces).
- **Phase IV: Transparency & Tech (2000s–2010s)**
  - This era focused on "cleaning up" candidate profiles and utilizing technology for trust.
  - 2003 (Disclosure Reforms): Following a Supreme Court mandate, candidates became required to disclose their criminal antecedents, assets, and educational qualifications.
  - 2004: EVMs were used across all polling stations in the Lok Sabha elections for the first time.
  - 2009: Restrictions on Exit Polls were introduced; they cannot be published until the final phase of voting is over.
  - 2013 (NOTA & VVPAT): * NOTA (None of the Above) was introduced following a SC judgment.
  - VVPAT (Voter Verifiable Paper Audit Trail) was first used in a Nagaland by-election.
  - 2013 (Lily Thomas Case): The SC ruled that any MP/MLA convicted of a crime and sentenced to 2+ years of imprisonment would be immediately disqualified.
  - 2018: Introduction of Electoral Bonds (later struck down by the SC in 2024 for being unconstitutional).
- **Phase V: Contemporary Reforms (2020–2026)**
  - The current focus is on digital integration and streamlining the voter experience.
  - 2021 (Election Laws Amendment Act): * Allowed the linking of Aadhaar with Voter IDs (on a voluntary basis) to weed out duplicate entries.
  - Increased the number of qualifying dates for new voters from one (Jan 1st) to four times a year.
  - 2024: The Supreme Court scrapped the Electoral Bonds Scheme, citing a violation of the right to information regarding political funding.
  - 2023 : The Women's Reservation Act 2023, or Nari Shakti Vandan Adhiniyam (106th Amendment Act), reserves 33% of seats in the Lok Sabha, state assemblies, and Delhi assembly for women. It provides 15-year, rotational, 33% quotas (including SC/ST seats) after the first delimitation following the census
  - 2025–2026: Ongoing implementation of Remote Voting pilots for internal migrants and the Special Intensive Revision (SIR) of electoral rolls to ensure data purity before the upcoming delimitation cycle.

Aspect	Union Executive	State Executive
Constitutional Basis	Part V (Articles 52–78)	Part VI (Articles 153–167)
Nominal Head	President (Art 52)	Governor (Art 153)
Real Executive	Prime Minister & Council of Ministers	Chief Minister & Council of Ministers
Executive Power	Art 53: Vested in President	Art 154: Vested in Governor
Actual Exercise of Power	Through Council of Ministers (Art 74)	Through Council of Ministers (Art 163)
Head of Government	Prime Minister	Chief Minister
Appointment of Real Executive	PM appointed by President	CM appointed by Governor
Other Ministers	Appointed by President on PM's advice	Appointed by Governor on CM's advice
Collective Responsibility	To Lok Sabha (Art 75(3))	To Legislative Assembly (Art 164(2))
Tenure of Ministers	Pleasure of President (Art 75)	Pleasure of Governor (Art 164)
Key Duties of Head of Government	Art 78: Communicate with President	Art 167: Communicate with Governor
Legislative Powers	Summon, prorogue, dissolve LS; Ordinance (Art 123)	Summon, prorogue Assembly; Ordinance (Art 213)
Judicial Powers	Pardoning power (Art 72)	Pardoning power (Art 161)
Emergency Powers	National, State, Financial (Arts 352, 356, 360)	Role in recommending President's Rule
Discretionary Powers	Limited (mostly formal and situational)	More visible (e.g., reserving bills, floor test decisions)
Legal Advisor	Attorney General (Art 76)	Advocate General (Art 165)
Rules of Business	Art 77	Art 166
Executive Power Scope	Art 73 (Union List + Concurrent overlap)	Art 162 (State List)
Administrative Control	Can issue directions to States (Art 256)	Must comply with Union laws

Unlike for Union/State Legislatures, CoI does not define who/what comprises the Union or the State Executive.

Criteria	President	Governor
Position	• Compulsory (Art 52) • Head of Union Executive (Art 53) ◦ Supreme Commander of Defence Forces ◦ Parliament by law can allot functions to other authorities	• Compulsory (Art 153) ◦ Jt. Governor or more than 2 states permitted) ◦ Head of state Executive (Art 154) ▪ Parliament or State Legislatures by law can allot functions to authorities lower than Governor
Election/ Appt	• Indirectly Elected (Detailed process on the next page)	• Appointed by Pres. (Art 155) (on advice of CoM) ◦ President to consult concerned state CM (Convention based on Sarkaria and Punnchi)
Eligibility	• Pre Election (Qualifications) (Art 58) ◦ Citizen + 35 Yrs + Eligible for LS Election • Post Election (Conditions) (Art 59) ◦ Sitting MP/MLA can contest, but will have to relinquish MP/MLA after winning ◦ No other Office of Profit such as MP/MLA	• Pre Appt. (Qualifications) (Art 157) ◦ Citizen + 35 Yrs • Post Appt. (Conditions) (Art 158) ◦ Sitting MP/MLA can be appt., ◦ No other Office of Profit such as MP/MLA
Oath	• By CJI or next senior most SC Judge ◦ Oath mentioned in Art 62 itself.	• By CJ of State HC or next senior most HC Judge ◦ Oath mentioned in Art 159 itself.
Term & Vacancy	1. Expiry of 5 year term (Art 56) a. Election for next Pres should be happen before term expiry (Art 62) 2. Death 3. Resignation : VP (VP must inform LS Speaker) (Art 56) 4. Impeachment (Art 61) : By LS & RS Resolution a. Grounds : Violation of CoI b. Can be initiated in either LS/RS with 14 day notice signed by ¼ of total members of that house. c. Investigated by LS if initiated in RS and vice versa d. Resolution approving to passed in both LS and RS by 2/3rds of total members. e. Right to appear and be represented 5. Re-election in cases of Death, Resignation or Impeachment must happen within 6 months. (Art 62) (VP officiates as Pres until then)	• 5 years subject to President's Pleasure (art 156) ◦ Removal by Pres (no grounds or procedure mentioned in CoI) (no security of tenure) • Death • Resignation to Pres
Salary etc	• Salary, Allowances, Pension, Office Exp Charged to Consolidated Fund of India • Governed by Sch II until Parl Law (Presidents Emoluments and Pension Act, 1951)	• Salary, Allowances, Office Exp Charged to Consolidated Fund of State ***(NO PENSION)*** • Governed by Sch II until Parl Law (Governors (Emoluments, Allowances and Privileges Act, 1982) which is supllemented by Pres Rules)

Presidential Election

Criteria	President
Provisions	• CoI • Pres & VP Elections Act, 1952 and 1974 Rules
Electors	• Elected Members of LS, RS, SLA, and LA of UT of Delhi & Puducherry
Method	• Indirect Election | Proportional Representation | Single Transferrable Vote (Preference Marked)
Vote Values	• Used to determine how many times a vote should be counted ◦ MLA : Based on 1971 Census and Total Elected MLAs of the State ◦ MPs : Total Valid Votes from MLAs/States+UTs ◦ Value of Vote ▪ LS MPs = RS MPs ▪ MPs > MLAs ▪ Different for MLAs of different states
Final Majority	• More than 50% percent of total valid votes
Ballot	• Secret
Authority	Election Commission of India, Returning Officer - Sec Gen, Lok Sabha/Rajya Sabha on rotation
Disputes	SC ONLY

Indian Presidential Election

MLA Votes

Calculate the no of times each MLA's vote of that state be counted

$$\frac{\text{Total State Population (1971)}}{\text{No of Elected MLAs}} \times \frac{1}{1000}$$

Total Votes from that state
Total Elected MLA x Value of Each MLA Vote

Repeat for all States & add up

MP Votes

Calculate the no of times each MP's vote be counted

$$\frac{\text{Total MLA Value Votes}}{\text{Total No of Elected MPs}}$$

Total MP Votes
Total MPs(e) x Value of Each MP Vote

More than 50% of total MP + MLA Votes

US Presidential Election (Not imp for 2026)

Candidates Announce Intent to Run

Primaries & Caucuses: States hold elections or meetings to select party nominees

National Party Conventions: Political parties formally nominate their candidates and announce running mates.

Presidential Campaigns & Debates: Candidates campaign nationwide and participate in debates.

General Election: Citizens vote for electors within their states who pledge to support their chosen candidate

- Each state gets as many electors as it has members of Congress (House and Senate)
- Except Maine & Nebraska, rest have 'winner takes all' - winner gets all the electoral votes for that state, possibility of Swing States, Possible to win Election without winning popular vote (happened 5 times, last in 2016 - Trump defeating Hillary Clinton)

Electoral College Voting: Electors cast their votes for president and vice president (Total 270/538 needed to win, California has highest no electors)

Congress Counts Votes & certifies the Electoral College results

Appointment Related

Criteria	President	Governor
Appoints (Executive)	• PM *(no criteria mentioned in CoI)* • Other Union Ministers (on PM's advice) • Governors (states), Lt. Governors (UT) • Delhi CM • Attorney General • Solicitor General (based on Cabinet Committee on Appts. Recommendation) • Chair & Members of Constitutional Bodies • All India Services & Central Civil Services	• CM *(no criteria mentioned in CoI)* • Other State Ministers (on CM's advice) • Advocate General • State Finance/Election/Public Service Commission • State Civil Services
Appoints (Legislature)	• RS Nominated Members	• SLC Nominated Members
Appoints (Judiciary)	• All SC and HC Judges	• Subordinate Judiciary's Judges
Gives Oath to	• VP • All Union Ministers • All MPs (Directly or someone on her behalf) • SC Judges • CAG	• All State Ministers • All MLAs/MLCs (Directly or someone on her behalf) • HC Judges

Executive Power

Criteria	President	Governor
Scope	• All actions in President's name (Art 77) • Extends to matters in Union List and other provisions mentioned in CoI such Art 35 • *Union Executive Power does not ordinarily extend over matters listed in the Concurrent List unless there is a law for the same. (Art 73)*	• All actions in Governor's name (Art 166) • Extends to matters in State List & Concurrent List unless there's a Parliamentary Law. *(Art 163)* • *President can provide for additional functions to be carried out by Governor in a contingency (Art 160)*
Distribution	• Pres. can make rules for business of Govt of India (Art 77) ◦ Allocation of Business Rules, 1961 ▪ Allocation of subjects to different Ministries in Govt. of India ◦ Transaction of Business Rules, 1961 ▪ Disposal of business and decision making in Govt. of India ◦ These rules are administered by Cabinet Secretariat under PM, administratively headed by Cabinet Secretary	• Governor can make rules for business of Govt of states (Art 166)

Legislature Related

Criteria	President	Governor
Prior Recco	• Internal Reorganisation (Art3,4) • Money Bill (Art 110) • Financial Bills (I and II) (Art 117) • Bills about taxes shareable with states or changing meaning of agri income (Art 274) • *State Bills imposing reasonable restrictions on inter/intra state trade/commerce (Art 304)*	• Money Bill (Art 199) • Financial Bills (I and II) (Art 207)
What if?	• *If prior recommendation was needed but was not taken, but bill was given assent, then bill can't be invalidated (Art 255)*	
Assent/ Return/ Reject	• Constitution Amendment Bills : Assent Only • Ordinary/Financial Bills : Assent/Return/Reject • Money Bills : Assent/Reject • Budget (Appropriation & Finance Bill) : Assent/Reject	• Ordinary & Financial Bills : Assent/Return/Reject • Money Bills : Assent/Reject • Budget (Appropriation & Finance Bill) : Assent/Reject • Any bill can be reserved for Presidential Assent ◦ If Pres rejects then that state bill dies • Bills affecting HC jurisdiction must be reserved for Pres
T&C	• *No timeline to decide* • *If houses repass the bill after it was returned then Pres/Gov has to give assent*	
House Procedure	• *Similar for Pres/Gov for Union/State Legislatures respectively* • Summon/Prorogue (Anytime)/Dissolution (Art85) (Art 174) • Legislative Address ◦ *General : Anytime : Single or Joint Session (Never happened by President) (Art 86) (Art 175)* ▪ *Can also send messaged to respective legislatures* ◦ Special/Motion of Thanks : Joint Session : (Art 87) (Art 176) ▪ First session of New Lower House/First session of calendar year, ▪ Houses vote separately, if failed in Lower House, then CoM resigns as a *convention* • Laying of Annual Financial Statement and Constitutional Bodies reports to be laid before houses ◦ *No timeline for reports for Constitution Bodies to be presented before the houses.*	
Legislative/ Ordinances	• **Art 123: Central Ordinances, Art 213 : State Ordinances** • **Conditions** ◦ Either house must not be in session ◦ President/Gov satisfied with circumstances • **Scope : Centre : Union and Concurrent List, State : State and Concurrent List** ◦ Constitution Amendments can't be Ordinances • **Removal/Validity** ◦ Can be withdrawn anytime by Pres/Gov respectively ◦ Respective legislatures *can pass a resolution anytime disapproving the Ordinance* ◦ Automatically lapses if not passed as a proper law within 6 weeks of the next session of the houses ◦ Can be judicially reviewed • Special : *Governor can't issue a state Ordinance without President's instructions if, the state ordinance contains provisions that would have normally required President's Consent or Assent. (Art 213)*	

Judiciary Related

Relief/ Clemency	Punishment Length	Punishment Type/Character
Pardon	Complete withdrawal of any guilt, sentence, punishment, or disqualification *(as if the person never committed the crime)*	
Reprieve	Temporarily postponing punishment execution so that pardon may be sought	
Remit	Reduced (eg. 7 years jail to 4 years jail)	Remains the same
Commute	N.A	Reduced (eg. death penalty to life imprisonment)

Criteria	President	Governor
Scope	• Pres can give any clemency/relief for ◦ Court Martial ◦ *Laws enacted by Parliament* ◦ Death Penalty • Disqualify MPs on ECI Advice (Art 103)	• Governor can give any clemency/relief ◦ *Laws enacted by State Legislature* • *Governor can commute, suspend or give respite for death penalty but NOT PARDON* • Disqualify MLA/MLCs on ECI Advice (Art 192)
Pres Ref	• Pres. can seek SC opinion on (Art 143) ◦ Issue of public importance (SC can deny) ◦ Pre-constitution treat (SC can't deny) • *If SC is giving opinion then, a constitution bench of 5 judges minimum do so. (Art145)*	• NA

Discretionary Powers

Criteria	President	Governor
Type	• NA	• Reserving any bill for President's Assent (Art 200) • Recommending Pres Rule (Art 356) • If additionally Lt Gov of adjoining UT (Art 239) • Royalty sharing dispute between State Govt and Autonomous District Councils set up for states included in Sch VI • Special responsibilities for some states under Art 370

Some Recommendations for Governor

Criteria	Governor
Sarkaria (1983)	• Eminent Person from outside the state and away from Political Life
Punchhi (2007)	• Away from political life for 2 years • Doctrine of pleasure should be deleted • Appt by committee of VP, PM, HM, LS Speaker, CM • Removed by state legislatures

Council Of Ministers (Union & State)

Criteria	Council Of Ministers (Union & States)
Position	• Aid and Advice Pres/Gov respectively (Art 74) (Art 163) ◦ Courts cannot review advice given by CoM (U/S) to Pres/Gov respectively. ◦ Pres is constitutionally bound to act on CoM Advice ▪ No discretion for the President. ◦ Pres can return advice but has to conform if advice resent ▪ No such provision in CoI for Governor ◦ Governor can act in discretion as mentioned in CoI (Art 163) • Hold office during Pres/Governor's pleasure • If not already members of respective legislatures, have to become one within 6 months of becoming a Min
Office Terms	• Oath of Office & Secrecy administered by Pres/Gov respectively as per III Schedule • Salaries, allowances as per Sch II until Parl or State Law.
Composition	• CoM (U/S) include *(Constitution does not classify COM into different ranks)* ◦ PM/CM (Head) ◦ Minister/Cabinet Minister (higher rank, large portfolios) ◦ Minister of State (MoS)/Deputy Minister (assist Cabinet Ministers) ◦ Minister of State (Independent Charge) (smaller portfolios, report directly to PM/CM)
Quantum	• Not more than 15% of total strength of respective lower houses (91st CA, 2003) ◦ CG, JH, MP, OD to compulsorily have a Min of SC,ST,OBC welfare
Responsibility	• Collectively responsible to respective Lower House ◦ PM/CM have a duty to inform Pres/Gov about admin affairs of Union/States and legislative proposals ◦ Pres/Gov can ask respective Council of Ministers to reconsider an individual minister's decision
Tenure/Vacancy	• Not defined in CoI, and determined as per Lower House ◦ 5 years ordinarily or ◦ As long they enjoy confidence of Lower House, if lost must resign **by convention** ◦ President can dismiss S. CoM under Art 356 (Pres Rule) • If Individual Ministers are disqualified as House Members under Anti Defection Law (Sch X), they cannot continue as Ministers (91st CA, 2003)
Groupings (Only referring to U.CoM)	• Cabinet ◦ Important Ministers, only mentioned in Constitution via 44th CA, 1978, to ensure written advice for emergency proclamation under Art 352 (National Emergency) is given to Pres. • Cabinet Committee ◦ Subject wise groups of Ministers such as ▪ Appointments, Accommodation, Economic Affairs, Security, Economic Affairs, Parliamentary Affairs, Political Affairs, Investment & Growth, Skill Development, Employment, Livelihood ◦ PM chairs all except Accommodation and Parliamentary Affairs (Chaired by HM)

Offices under the Pleasure of President & Governor as per the Constitution

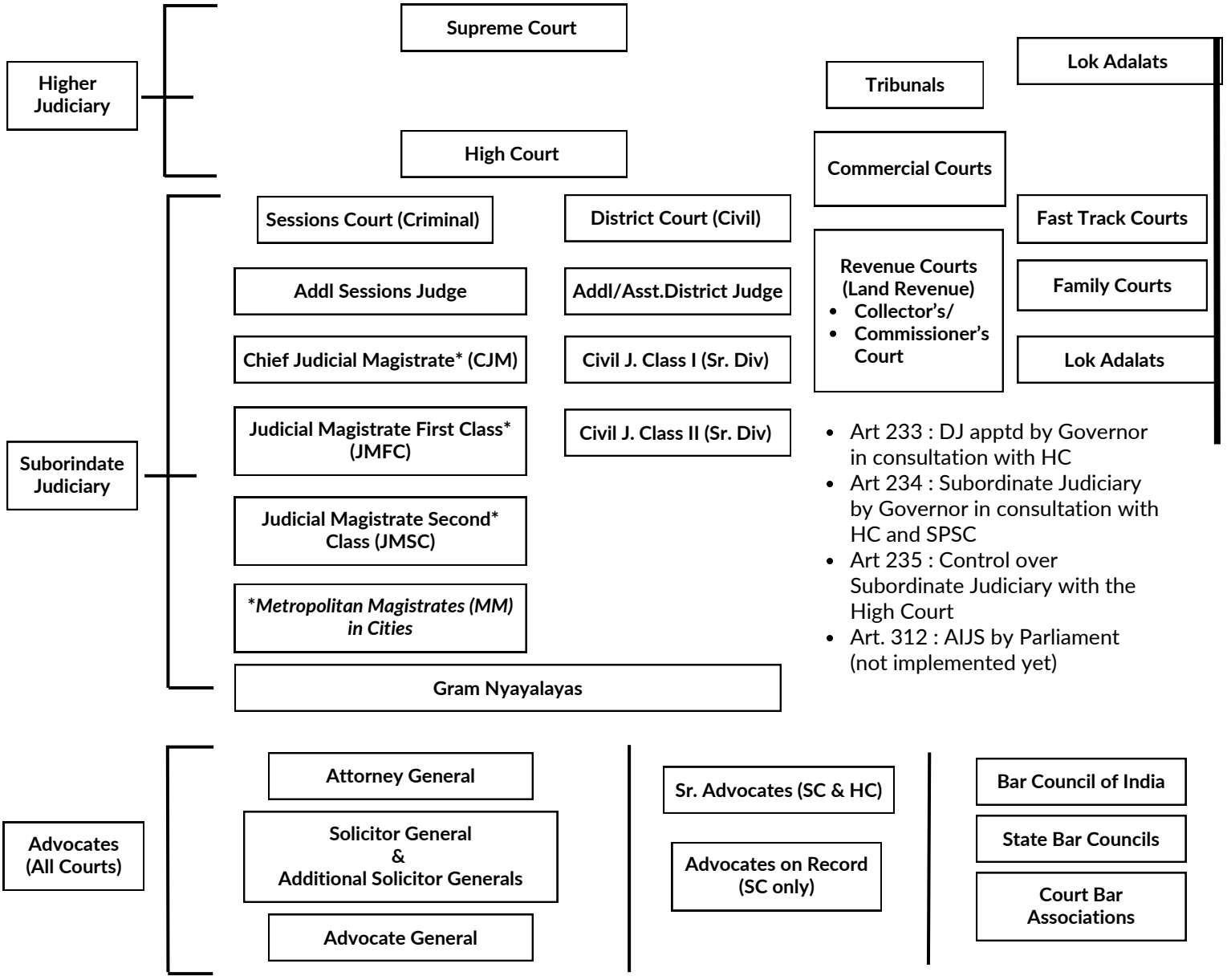
President	Governor
Union Ministers (Art 75)	Union Ministers (Art 164)
Attorney General (Art 76)	Advocate General (Art 165)
Governor (Art 156)	State Services (Art 310)
Delhi Ministers (Art 239AA)	Elected Members of District Councils of VI Schedule
Defence, Central Service, All India Service (Art 310)	

Dimension	DoPT	Cabinet Secretariat	Civil Services Board
Institutional type	Department under Ministry of Personnel, Public Grievances & Pensions	Secretariat functioning directly under the Prime Minister.	High-level board/committee for civil services personnel management
Broad mandate	Coordinating agency for Central Government personnel matters, especially recruitment, service conditions, training, and cadre management	Administers Transaction of Business Rules and Allocation of Business Rules, ensures inter-ministerial coordination, and facilitates Cabinet decision-making	Considers postings, empanelment and related service matters of senior civil servants (e.g., JS and above), and makes recommendations to the Appointments Committee of the Cabinet (ACC)
Key functions (civil services)	Policy on recruitment and service rules, cadre control of several services, reservation policies, training systems (ISTM, iGOT, etc.)	Provides secretarial assistance to Cabinet and Cabinet Committees; coordinates among ministries; Cabinet Secretary is head of civil services	Evaluates officers for empanelment and senior appointments; examines proposals for postings/transfer of senior officers and recommends to ACC
Composition / leadership	Headed by Secretary (Personnel); under Minister of State (Personnel) and PM as Minister in-charge of the Ministry	Headed by Cabinet Secretary; functions directly under the Prime Minister	Chaired ex-officio by Cabinet Secretary; Secretary (Personnel) is ex-officio member;
Legal/administrative basis	Allocated business under Government of India (Allocation of Business) Rules; part of Ministry of Personnel, Public Grievances & Pensions	Business allocated under Allocation of Business Rules, 1961; handles Transaction of Business Rules, 1961	Constituted/ re-constituted annually by government orders under DoPT/ACC authority documents.
Primary focus level	System-wide civil services policy and cadre management (all-India and central services, especially at policy and rule-making level)	System-wide coordination and procedure for policy/decision-making across ministries	Individual senior officers' careers (empanelment, posting, transfer at JS and above), within the broader policy set by DoPT and overseen by Cabinet/ACC

MPLAD and MLA LAD

Feature / Aspect	MPLAD Scheme (Members of Parliament Local Area Development Scheme)	MLA LAD Scheme (Members of Legislative Assembly Local Area Development Scheme)
Launch Year	1993	Varies by State (modeled after MPLADS)
Administering Authority	Ministry of Statistics and Programme Implementation (MoSPI), Government of India	State Government (via District Authorities, DRDA, or local bodies)
Funding Source	Central Government	State Government
Annual Allocation per Member	₹5 crore per MP (released in two instalments of ₹2.5 crore)	₹35 lakh – ₹15 crore per MLA (depends on the state policy)
Fund Type	Non-lapsable; unspent funds can be carried forward	Varies; mostly non-lapsable within state financial rules
Beneficiary Focus	Minimum 15% for Scheduled Castes and 7.5% for Scheduled Tribes	Varies by state, some have social equity guidelines
Eligible Works / Purpose	Durable community assets — roads, drinking water, sanitation, education, health infrastructure, sports facilities	Similar community-based infrastructure; local needs such as CCTV installation, fogging machines, health camps, educational facilities
Special Allocations	Up to ₹25 lakh outside constituency (national unity), up to ₹1 crore for disaster relief	Depends on state; some permit allocations across districts during emergencies
Project Execution	MP recommends projects; execution done by District Authorities	MLA recommends projects; execution done by District Administration or local departments
Direct Handling of Funds	MPs do not handle funds; district authorities manage release and utilization	MLAs do not handle funds; state authorities manage fund release and project completion
Monitoring Mechanism	MoSPI guidelines; periodic audits and reporting	State-level monitoring and audit committees
Examples of Implemented Works	School buildings, community halls, drinking water facilities, roads, disaster shelters	Drainage systems, park development, CCTV installation, street lighting, public conveniences
Variation in Allocation Across States	Uniform nationwide allocation	Wide variation — Delhi (₹15 crore), Punjab & Kerala (₹5 crore), UP/Maharashtra (₹2–3 crore), others (₹35–60 lakh)
Recent Policy Changes	Temporarily suspended during COVID-19; later reinstated	State-level changes vary (e.g., Haryana discontinued its scheme in 2019)
Criticisms	Issues of misuse, uneven implementation, lack of transparency	Similar concerns; political bias, poor monitoring, and asset maintenance gaps
Objective	Enable MPs to address region-specific developmental needs through small-scale projects	Empower MLAs to respond to local constituency-level infrastructure and welfare needs

STRUCTURE & OVERVIEW



- **Key Insights**
  - 1 SC, 25 HCs, 688 District Courts, Additional sub-district courts may operate at the block level.
  - No State can have more than 1 HC, but can have regional benches and some High Courts have jurisdiction over multiple States & UTs
    - Bom HC cover MH, Goa, Dadar and Nagar Haveli & Daman & Diu and has regional benches in Nagpur & Aurangabad
- Each State has its own judicial service for the subordinate judiciary, and HC judges are mostly selected from the State's judicial service and the State HC's practising lawyers. State's judicial service is a competitive exam conducted by SPSC in consultation with state HC.
  - The judicial service in the subordinate judiciary in a State will generally be broken up between the regular judicial service and the higher judicial service. ***Regular Judicial Service now requires 3 years of work experience before attempting the exam.***
    - District and Sessions Court Judges will be in the more senior cadre, while civil judges and magistrates will be in the lower cadre
    - Members of the bar can be recruited directly into the senior cadre if they have practised as advocates for 7 years or more - District Judges require 7 yrs of experience as an advocate and are appointed by Gov after being recommended by concerned HC.
  - In most States, original jurisdiction for both civil and criminal matters begins in the subordinate courts
    - In metropolitan areas the distinction between JMFC or JMSC is absent and they are collectively referred to as MM.
    - Scope of sentencing increases with increase in hierarchy. Under the BNSS (CrPC), a JMFC may pass a sentence of imprisonment < 1 yr, while CJM can pass a sentence <7 yrs.
    - On the civil side, there is more State variation. Each State has a civil courts act under which a judge will have jurisdiction to hear a case depending on the monetary amount at stake in the suit.
  - District courts also house family courts, juvenile courts, Central Bureau of Investigation (CBI) courts, rent control courts, and other specialised courts created under specific legislation. Judges from the regular judicial service cadre will be appointed to these postings
    - For some particular local areas, State governments may, after consultation with the High Court of that State, establish a special court staffed by JMFC/JMSC to try particular cases or classes of offences (only murder or rape cases)
    - Judges from the regular judicial cadre are also appointed to administrative posts (ie, as court registrars and other key administrative staff in the judiciary)

Higher Judiciary :Governing & Structural Provisions

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Laws & Rules

- Constitution
- Judges (Inquiry) Act, 1968 (Removal)
- Judges Protection Act, 1985 (Immunities)
- SC Judges (No. of Judges), Act, 1956
- SC Judges (Salaries & Conditions of Service), Act, 1958 & Rules
- HC Judges (Salaries & Conditions of Service), Act, 1954
- Contempt of Courts Act, 1971
- Commercial Courts Act, 2015

SC Cases

- In Re: Special Reference No. 1 (1998) (3rd Judges Case)
- Memorandum of Procedure (MoP)
  - List of rules and procedures for the Judicial Appointments to SC/HC jointly drafted by govt and judiciary and based on 3rd Judges Case.
- Hurra v. Hurra (2002)
  - Curative Petition

Judicial Rules

- Rules made by SC governing internal procedures
  - SC Rules, 2013 after Pres. approval

Conventions

- SC :
  - Strength : Parliament
  - Power & Service Conditions : Parliament
- HC
  - Strength : President
  - Powers & Service Conditions : Parliament/State Legislature

Criteria	SC	HC
Appointed by	Pres. after consulting SC & HC Judges (Art 124)	Pres (CoI) (Art 217)
Oath	Pres (III Schedule)	Governor (III Schedule)
CJ/Acting CJ	CJI - (Senior Most by Convention) Allocates cases, benches, admin head (Master of Roster)	CJI : Senior Most by Convention
Judges	• Appts and Transfers through Collegium • 3rd Judges Case : (1998) ◦ CJI + 4 Senior SC Judges to collectively recommend • 4th Judges Case (2015) (SC AoR v. UoI) ◦ 99th CA 2014 about NJAC struck down	• Appts and Transfers through Collegium ◦ CJI + 2 Senior SC to collectively recommend
Qualifications	• Citizen AND ◦ HC Judge for 5 Years OR ◦ HC Lawyer for 10 Years OR ◦ Distinguished Jurist as per the President • No minimum age	• Citizen AND ◦ Judicial Office for 10 Years OR ◦ HC Lawyer for 10 Years OR • No minimum age
Security	Salary & Pension charged to CFI	• Salary charged to CFS, pension charged to CFI
Strength	Max 34 incl. CJI, Parl. by law to specify exact strength	• President (no max strength per HC)
Retirement	65 yrs (Can't practice in any court after)	62 yrs (Can't practice in same HC and all lower courts)
Vacancy	• Resignation to President • Removal : By the President after Parliament Process : Grounds : Proven Misbehaviour or Incapacity • Authority : Parliament : Special Maj II, Process (Judges Inquiry Act, 1968) ◦ Motion in any house ▪ Supported by 100 (LS) or 50 (RS), Presiding Officer may accept or reject the motion ▪ 3 member committee : CJI/SC (J) + CJ-HC/HC(J) + Distinguished Jurist, Committee report not binding • Special Majority II	
Seat	• Delhi, can be changed and also be at multiple locations as decided by CJI after Pres. Approval.	• Each State must have a HC, Parl by law can provide for common HCs.
Privileges	• Judges Protection Act, 1985 ◦ No court proceedings (civil/criminal) against any judge for anything done in official capacity ◦ Central Govt/State Govt/SC/HC can take any action against a sitting or ex judge	

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Higher Judiciary : Judicial Independence & Accountability

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Components of Judicial Independence

A. Structural/Institutional Independence

1. Separation of Powers: Judges are not part of legislature/executive (Article 50).
2. Security of Tenure: Judges of the SC/HC cannot be removed except by impeachment under Articles 124(4) and 217.
3. Financial Autonomy: Salaries charged on the Consolidated Fund; cannot be varied to a judge's disadvantage (Article 125, 221).
4. Appointment process: Collegium system gives primacy to the judiciary in appointments and transfers (Second and Third Judges cases).
5. Fixed Service Conditions: Articles 125 and 221 ensure that the salaries and allowances of Supreme Court and High Court judges are fixed and cannot be varied to their disadvantage during their term

B. Functional Independence

1. No Interference in Judicial Functions: Courts cannot be directed on how to decide cases (Article 141).
2. Control over Court Proceedings: Judges control procedure, contempt powers, listing, etc.
3. Prohibition on Discussion of Judicial Conduct: Articles 121 and 211 prohibit the discussion of a judge's conduct in Parliament or State Legislatures except in the context of impeachment, protecting judges from political pressure. Supplemented by Judges Enquiry Act, 1968
4. Powers and Jurisdiction of Supreme Court: Parliament can only add to the powers and jurisdiction of the Supreme Court but cannot curtail them
5. Power to punish for contempt: Both the Supreme Court and the High Court have the power to punish any person for their contempt. (Art 129/215)

C. Internal Independence

1. Freedom from influence within the judiciary (e.g., pressure from superiors like Chief Justices).

D. Decisional Independence

1. Judges decide cases "without fear or favour, affection or ill-will" (Third Schedule – Oath of Office)

Components (No SC HC Judge removed till date)

A. Constitutional Accountability

1. Impeachment Process: Judges can be removed for "proved misbehaviour or incapacity" under Articles 124(4) and 217(1)(b).
2. Judges (Inquiry) Act, 1968: Outlines the detailed procedure for impeachment, requiring a motion by at least 100 Lok Sabha or 50 Rajya Sabha members, investigation by a three-member committee, and approval by a two-thirds majority in both Houses of Parliament.
    a. Filed before Presiding Officer of the relevant House of Parliament
    b. If the notice is in order, the Presiding Officer will constitute a three-member committee to investigate the complaint.
    c. The committee will comprise a Supreme Court judge, Chief Justice of a High Court, and a distinguished jurist.
    d. To be submitted to the presiding officer within 90 days.
    e. After concluding its investigation, the Committee will submit its report to the presiding officer, who will lay the report before the relevant House.
    f. If the report records a finding of misbehaviour or incapacity, the motion for removal will be taken up for consideration and debated.
    g. The motion is required to be adopted by each House by a majority of the total membership of that House and a majority of at least two-thirds of the members of that House present and voting.
    h. Once the motion is adopted in both Houses, it is sent to the President, who will issue an order for the removal of the judge
    i.
3. Declaration of Assets: Supreme Court Resolution (1997), though not binding.
4. High Court Control Over Subordinate Judiciary: Art.235 gives High Courts control over the subordinate judiciary, ensuring accountability at lower level

B. Institutional Accountability

1. In-House Procedure: Established by SC for internal inquiry into complaints.
    a. K. Veeraswami v. Union of India (1991) - Prior CJI permission needed to investigate judges
2. Procedure
    a. Complaint of misconduct may be filed by any person.
    b. Complaint can be filed to CJI or President of India
    c. The CJI is required to determine whether the complaint is either frivolous or serious. If the complaint is frivolous or relates to a pending case, no further action will be taken.
    d. If the CJI finds that the complaint involves serious misconduct or impropriety, he will seek the response of the concerned Judge.
    e. Based on the response and supporting materials, if the CJI finds that the complaint needs a deeper probe, he will constitute an inquiry committee.
    f. The Committee will comprise three judges including a Judge of the Supreme Court and two Chief Justices of other High Courts.
    g. No specific time limit provided for committee to submit report.
    h. The Committee may report to the CJI that:
        i. 1. there is no substance in the allegation made, or,
        ii. 2. there is substance in the allegations but the misconduct is not of such serious nature as to warrant removal, or,
        iii. 3. the misconduct is serious enough to initiate removal proceedings against the judge
    i. If the finding is under category (2) above, the CJI may call and advise the Judge accordingly and direct that the report be placed on record.
    j. If the finding is under category (3) above, the CJI may ask the judge to resign or seek voluntary retirement. If the judge refuses to resign, the CJI may decide to not allocate any judicial work to the judge concerned.
    k. Further, the CJI may inform the President of India and the Prime Minister of his reasons for the action taken and forward a copy of the inquiry report to them.
    l. No appeal process
3. Restatements of Judicial Values (1999): Ethical code adopted by the judiciary.

C. Public Accountability

1. Reasoned Judgments: Judgments are public documents and subject to appeal and academic scrutiny.
    a. CPIO, SC v Subhash Chandra Agarwal (2010) - case by case basis
2. Contempt of Court: While meant to protect dignity, excessive use can stifle legitimate criticism.

Higher Judiciary: Supporting Judges

Type	SC	HC
Adhoc	• Under Art 127 • Reason : shortage of sitting SC judges (Quorum) • Eligibility : Sitting HC Judge (Qualified to be SC Judge) • Status : Same as SC Judge • Period : Temporary - as per need • Process : ◦ President Consent ◦ CJ of Concerned HC Consultation ◦ CJI may request in writing	• Under Art 224A (Also informally called adhoc HC Judges) ◦ Added via 15th CA, 1963 • Reason : None specified in CoI • Eligibility : ◦ ex HC Judge • Status : Similar benefits of HC judge not deemed as one • Period : Temporary - as per need • Process : CJ of HC with Pres Consent can ***request*** • Historically, this provision was removed in 1956 but was reintroduced by the Constitution (Fifteenth Amendment) Act, 1963, to utilise the expertise of experienced judges for difficult cases or for clearing backlogs • ***The Supreme Court collegium has invoked Article 224A to re-appoint five retired judges of the Allahabad High Court as ad-hoc judges for a period of two years in Feb 2026 making it a first as 5 judges have never been appointed together before but single judges have been appointed on 3 occasions.***
Retired	• Under Art 128 • Reason : None specified • Eligibility : ◦ ex SC Judge ◦ ex HC Judge (qualified to become SC Judge) • Status : Similar benefits of SC judge not deemed as one • Period : Temporary - as per need • Process : CJI with Pres Consent can ***request***	
Addl.	NA	• Under Art 224(1) • Reason : Increase/Backlog in HC • Eligibility : Qualified to be HC Judge • Status : Same as HC Judge • Period : 2 yrs max or 62 yrs • Process : Appointed by President
Acting	NA	• Under Art 224(2) • Reason : Sitting HC Judge unavailable • Eligibility : Qualified to be HC Judge • Status : Same as HC Judge or 62 yrs • Period : Till sitting HC judge become available • Process : Appointed by President

2025 SC Guidelines on appointing Adhoc/Retiring Judges to HC

The SC in 2021 in the case of Lok Prahari had laid down some conditions. On the basis of ANY of these conditions, *retired* HC judges could be *appointed* as adhoc judges. The SC in Jan 2025 has revised some of the guidelines.

Original Guidelines	New/Updated 2025 Guidelines
More than 20% vacancies in the HC	Removed
Specific type of cases are pending > 5 yrs	Same
If more than 10% HC Cases pending > 5 yrs	Same
Case disposal rate < New Case filing rate	Same
NA	Adhoc/Retd Judges < 10% HC sanctioned strength (NEW)
NA	Adhoc/Retd. Judges can only hear criminal appeals

Higher Judiciary : Position & Powers

Criteria	SC	HC
Hierarchy	• Art 141 : SC judgements are binding on all courts ◦ except higher SC benches • Art 144 : All civil and judicial authorities shall assist the SC. SC has superintendence over all courts.	• Art 227 : HCs have superintendence over all courts under their jurisdiction • Art 235 : HC will administer subordinate courts
Permanence	• Both SC(Art 129) and HC (Art 215) are ***courts of record***, all judgements etc shall be recorded till eternity. ◦ Also, this allows for both courts to also punish for contempt since everything is on record.	
Contempt	• Source ◦ Art 129 : SC can punish for contempt of itself ◦ Art 142 : enforcement of any order ◦ Contempt Act, 1976 + SC Rules, 2013 • Contempt Act, 1976 ◦ Civil Contempt : disobeying SC order ◦ Criminal Contempt : disrespecting SC or SC judge • SC Rules, 2013 ◦ Contempt inside Court ▪ punished immediately or on later date ◦ Contempt outside Court ▪ suo moto ▪ petition by Attorney/Solicitor General ▪ petition by any person, • If criminal contempt is alleged, then written consent of Attorney/Solicitor General is needed	• Source ◦ Art 215 : HC can punish for contempt of itself ◦ Contempt Act, 1976 : Contempt of lower courts as well • Contempt Act, 1976 : ◦ Civil Contempt : disobeying HC/Lower court order ◦ Criminal Contempt : disrespecting HC/lower court or HC judge/lower court
Suo Moto	• Art 32, 129	• Art 226, 227
More Powers	• Art 138: ◦ Parl can enhance NOT reduce SC powers acc. Union List ◦ After agreement between GoI & Govt of a state, Parl can enhance SC jurisdiction over agreed issue. • Art 139: Parl can enhance SC writ powers beyond FR • Art 140: Parl can enhance SC powers irrespective of constitutional provisions for better use of its jurisdiction • [SC (Enlargement of Crim. Appellate Jurisdiction) Act, '70]	NA
SC Staff	CJI subject to Parl Law appoints SC officers (CFI Charged)	CJHC subject to state law appoints HC officers (CFS Charged)
Case Allotment	• CJI allots cases to benches (Master of Roster) • SC Rules 2013 ◦ Division Bench : 2/3 Cases ◦ Cases where HC pronounced Death Penalty must be heard by atleast 3 judges • Art 145 : Constitution Bench : 5 or more judges : Interpretation of CoI/Ques of Law	• CJ HC allots cases to benches (Master of Roster)

Independence of Judiciary

Favourable Precondition
Written Constitution

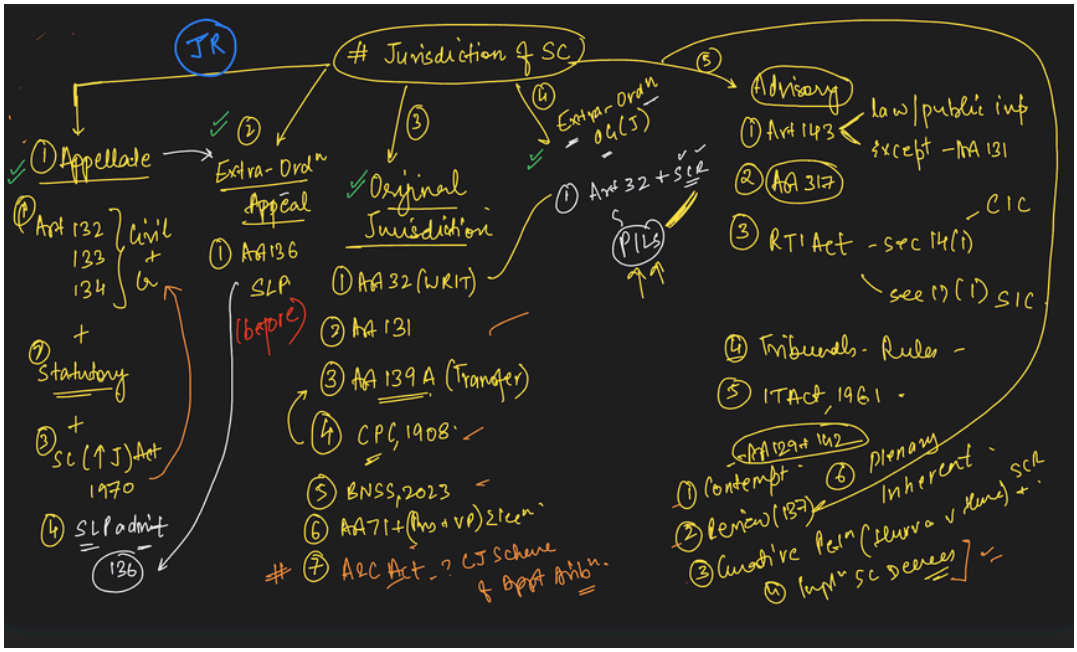
Essential For
Rule of Law
Judicial Review
Federalism
Separation of Powers
Any Democracy

Reflections

- Appointments/Transfer : By Pres after consultation with SC judges (Collegium)
- Security of Tenure : Removal By Pres after Parl Maj (Spl II)
- Conditions of Service : Salaries can't be lowered during tenure (Art 125 and 221), legislatures cannot discuss conduct unless removing them (Art 121)
- Powers to punish for contempt
- Administer & Recruitment of court staff
- Separation of Judiciary from Executive (Art 50 - DPSP)
- Parliament can only increase SC powers not reduce it

Higher Judiciary : Jurisdiction

Jurisdiction	SC	HC
Original	• Art 32 : Writs (Covered in PCN 10) • Art 71 : Pres/VP Election Disputes • Art 131 : Centre State ◦ Grounds ▪ Govt of India v any State ▪ Govt of India + State A v. State B ▪ State A v. State B ◦ Limitations : [Art 131(Proviso), 262, 280, 290] ▪ Pre Constitution Legalities, Water Disputes, Finance Commission, Adjustment of expenses/pensions between Union & States • Art 139A : Transfer Petitions ▪ Grounds : Similar ques of law across cases • HC to SC, Bench A of SC to Bench B of SC ▪ After deciding point of law, case can be sent back ▪ Grounds : Interest of Justice : HC to HC ◦ CPC : HC/Civil Court of State A to State B ◦ BNSS : HC/Criminal Court of State A to State B	• Art 225 : Pre Constitution Jurisdiction of HC is protected ◦ Both Parl & States can change powers • Art 226 Writs (Covered in PCN 10) • Art 228 : Transfer Petitions ◦ Grounds : Interpretation of CoI ▪ Lower court to HC • Dispose the case • Return to lower court after giving interpretation
Appellate	• Art 132 : Interpretation of CoI • Art 133 : Civil Appeals • Art 134 : Criminal Appeals • Appeals require HC to issue a fit for appeal certificate except when (134A) ◦ HC has reversed/overruled trial court acquittal order and awarded death penalty (Art 134) ◦ HC has reversed/overruled trial court acquittal and awarded 10 yrs or more imprisonment [SC (Enlargement of Criminal Appellate Jurisdiction) Act, 1970]	• Court of Appeal ◦ Appeals from subordinate courts
Extraordinary Appellate	• Art 136 : Special Leave Petition (SLP) ◦ Appeal against order of any court/tribunal ◦ No certificate reqd if appeal from HC ◦ Can also be used if HC denies certificate ◦ Grounds : Substantial or Grave Injustice ◦ Discretionary Power of SC to admit or not	NA
Advisory	• Art 143 : Presidential Reference ◦ Public Importance : SC can deny giving opinion ◦ Pre CoI Legalities : SC must give opinion ◦ Min Constitution Bench of 5 Judges compulsory if SC giving opinion under Art 143 ◦ Such SC opinions generally not binding • Art 317 : President may refer to SC an inquiry for UPSC/SPSC member removal to be conducted	NA
Plenary	• Art 137 : SC can review the any of its judgements ◦ SC can make rules for review under Art 145 and they can be overidden by Parl Law. (*no law made*) • Review Petition : (*review the same judgement again)* ◦ Filed under SC Rules, 2013, Discretionary power of SC to admit ◦ Grounds : Legal/Factual Error • Art 142 : SC can pass any order for 'complete justice' • Art 142 : basis of curative petitions, last available remedy ◦ Invented by SC in Hurra v. Hurra (2002), petitions filed under SC Rules, 2013, Discretionary power of SC ◦ Procedure : First heard by bench of 3 senior SC judges and judges who passed the judgement which is questioned, if agreed by majority then heard by this very bench) ◦ Grounds : Natural Justice, Judge Bias, Abuse of Court Process	NA
	(Both SC and HC can overrule/review earlier judgements of respective smaller benches but only SC can review the same judgement again through review petitions). SC/HC overruling lower court judgements is regular appellate function NOT review.	



Judicial Review

Who decides?

Essentials for JR

- **Rule of Law**
- **Constitutionalism**
- **Written Constitution**
- **Rights & Liberties**
- **Democracy**
- **Separation of Powers**
- **Independence of Judiciary**

Judicial Review
(Not mentioned in CoI)

Impact of JR

- **Rule of Law**
- **Constitutionalism**
- **Rights & Liberties**
- **Parliamentary Democracy**
- **Checks & Balances**
- **Federalism**
- **Judicial Activism**

Legislative Action

Executive & Admin Action

Constitution Based Sources

Art 13 : Laws can't violate FR

Art 32 : SC writ powers (SC only)

Art 131 : C v S/S v. S disputes (SC only)

Art 132 - 136 : Civil, Criminal, Spl Leave Appeals

Art 142 : Int of 'complete justice' (SC only)

Art 143 : President's Reference (SC only)

Art 226 : HC Writ powers

Art 228 : HC to transfer specific cases from subordinate courts

Art 246 : Division of Powers between C&S

SC Doctrines enhancing JR

Doctrine of Basic Structure

Doctrine of Eclipse

Doctrine of Severability

Doctrine of Waiver

Doctrine of Harmonious Construction

Doctrine of Colourable Legislation

Doctrine of Pith & Substance

Doctrine of Proportionality

Doctrine of Legitimate Expectation

SC Interpretations enhancing JR

Due Process of Law

Principles of Natural Justice

Limitations of Judicial Review

- Advice given by CoM to Pres or S.Com to Gov (Art 74, 163)
- Legislative Proceedings (Art 122, 212)
- Delimitation Orders (Art 329, 243O, 243ZG)
- Adaption of Pre Constitution Laws post commencement by Pres Order (Art 372)
- Laws added to IXth Sch before 24 Apr 1973 (Kesavananda Bharti Case)

- SC & HCs DO NOT have similar powers of JR.
- SC can also review its own judgements through Review Petitions (Art 137) and Curative Petitions (Hurra 2002 Case Guidelines) which HCs can't. (Review of Judicial Action does not strictly come under Judicial Review)
- All Appeals may not necessarily be Judicial Review (Cases appealing bail denials are not Judicial Review)
- CoI doesn't explicitly mention HC appellate jurisdiction powers as it does for SC.

Special Courts - I

Fast Track Courts

- **Origin and evolution**
  - Fast-track courts (FTCs) were first set up in 2000 on the recommendation of the Eleventh Finance Commission to clear long-pending criminal cases in subordinate courts.
  - These FTCs were funded by the central government initially but responsibility gradually shifted to states once the Finance Commission grants ended.
  - After the 2012 Delhi gang-rape case, the focus shifted to fast track special courts for sexual offences, especially rape and offences under the Protection of Children from Sexual Offences (POCSO) Act
  - FTCs function under State High Courts' supervision
- **Judges:**
  - Recruiting judges, prosecutors, and court staff, including those for Fast Track Courts, is the responsibility of the State/Union Territory Governments and the respective High Courts. According to the powers that come from Article 309, Articles 233 and Article 234 of the Constitution, the State/Union Territory Government, in consultation with the High Court, creates the rules for hiring and appointing Judicial Officers.

Aspect	Early Fast-Track Courts (2000)	Fast Track Special Courts (2019 scheme)
Main focus	Old pending criminal cases in subordinate courts	Rape and POCSO cases, especially after 2012
Funding design	Finance Commission grants to states	Centrally Sponsored Scheme via Nirbhaya Fund
Admin ministry	States, with central finance support	Ministry of Law & Justice, Department of Justice
Time frame	2000s onward, with phases and discontinuities	Launched 2019, extended to March 2026
Case-disposal expectation	No uniform norm nationally	≥165 cases per FTSC per year

Commercial Courts

- **Commercial Courts Act, 2015**
  - Enacted in 2015 (amended in 2018) to:
    - Reduce delays in commercial litigation
    - Improve investor confidence
    - Align with global dispute resolution standards
  - **Institutional Framework**
  - Commercial Courts (District Level)
    - Established at district judge level
    - Handle disputes of specified commercial nature
  - Commercial Divisions
    - Set up in High Courts having ordinary original jurisdiction (e.g., Delhi High Court)
  - Commercial Appellate Division
    - Appeals from commercial courts/divisions lie here
    - Must dispose appeals within 6 months
- **Includes disputes relating to:**
  - Trade & commerce
  - Banking & financial services
  - Joint venture agreements
  - Shareholder agreements
  - Intellectual property rights
  - Infrastructure contracts
  - Insurance and reinsurance
- **Procedural Matters**
  - Initially: ₹1 crore, After 2018 Amendment: ₹3 lakh
  - Mandatory Pre-Institution Mediation (Introduced via 2018 amendment)
  - Conducted under: Legal Services Authorities Act, 1987
  - Judgments expected within 90 days of arguments

Key Aspects of the Arbitration and Conciliation Act

Part I – Arbitration:
Governs domestic arbitration and international commercial arbitration seated in India.

1. Arbitration Agreement: Must be in writing and can be a clause in a contract or a separate agreement.
2. Appointment of Arbitrators: Parties can agree on the procedure; if they fail, the court can appoint arbitrators.
3. Jurisdiction: Arbitral tribunal can rule on its own jurisdiction (Kompetenz-Kompetenz principle).
4. Conduct of Proceedings: Tribunal is not bound by the Code of Civil Procedure or the Indian Evidence Act; proceedings are flexible and party-driven.
5. Interim Measures: Tribunal and courts can grant interim relief.
6. Arbitral Award: Must be in writing, reasoned, and signed. It is final and binding on the parties.
7. Setting Aside Awards: Limited grounds for setting aside, including invalidity of agreement, lack of notice, and violation of public policy.
8. Enforcement: Awards are enforceable as a decree of the court.

Part II – Foreign Awards:
Governs enforcement of foreign arbitral awards under the New York and Geneva Conventions

1. Definition of Foreign Award: Award made in a reciprocating territory under a written arbitration agreement.
2. Enforcement: Foreign awards are enforceable in India, subject to limited grounds for refusal.

Part III – Conciliation:
Governs conciliation proceedings, which are voluntary, confidential, and result in a binding settlement agreement

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Part IV – Supplementary Provisions:
Miscellaneous provisions, including rule-making powers for High Courts

1. 2015 Amendment:
   a. Timelines: Introduced strict timelines for the completion of arbitral proceedings (12 months, extendable by 6 months).
   b. Fast Track Procedure: Provided for a fast-track arbitration process.
   c. Public Policy Challenge: Clarified and narrowed the scope of "public policy" as a ground for setting aside awards.
   d. Confidentiality: Strengthened provisions for confidentiality of arbitral proceedings.
   e. Interim Relief: Allowed Indian courts to grant interim relief in support of foreign-seated arbitrations.
   f. IBA Guidelines: Incorporated the IBA Guidelines on Conflicts of Interest as schedules to the Act.
2. 2019 Amendment:
   a. Arbitration Council of India (ACI): Established the ACI to promote institutional arbitration and set standards for arbitrators and institutions.
   b. Qualification and Accreditation: Introduced criteria for the qualification and accreditation of arbitrators, raising concerns about the exclusion of foreign-qualified arbitrators.
   c. Streamlining Procedures: Aimed to further streamline procedures and reduce delays, though some provisions (like ACI) have not been fully implemented.
3. Other Legislative Developments:
   a. Commercial Courts Act, 2015: Established specialised commercial courts to handle complex commercial disputes, including arbitration matters.
   b. New Delhi International Arbitration Centre (NDIAC) Act, 2019: Created a flagship institution for conducting international and domestic arbitrations in India

Key Provisions of Mediation Act

Scope and Application

1. **Mandatory Pre-Litigation Mediation:** Required for civil/commercial suits unless urgent interim relief is sought.
2. **International Mediation**: Applies to mediations conducted in India where at least one party is foreign-national or entity.
3. **Exclusions:** Disputes involving minors, deities, criminal prosecutions, tax matters, and others listed in the First Schedule

Process Framework

1. **Time Limits:** Mediation must conclude within 120 days (extendable by 60 days).
2. **Confidentiality:** All mediation communications are privileged; inadmissible in courts/tribunals.
3. **Settlement Enforcement:** Mediated agreements are enforceable as court decrees under the Code of Civil Procedure, 1908

Institutional Mechanisms

1. **Mediation Council of India (MCI):** Regulates mediator registration, accreditation, and ethical standards.
2. **Mediation Service Providers:** Includes court-annexed centers, legal services authorities, and government-notified bodies.
3. **Online/Community Mediation:** Recognises digital mediation and community-led resolution for local disputes

Special Courts - II

Criteria	Tribunals	Gram Nyayalaya	Lok Adalat
Governing Provision	Added via 42 1976 (Swaran Singh Comm Suggestions) • Art 323A : Admin Tribunals ◦ Centre/State Level ◦ Can be created only by Parl • Art 323B : Any other ◦ Can be created by Parl/State Leg. as per VII Schedule	• Gram Nyayalaya Act, 2008 • Estd. by State Govt in consultation HC • Mobile Court : nyayadhikari to periodically visit villages and conduct proceedings closer to parties	• National Legal Services Authority Act, 1987
Jurisdiction	As per subject matter of enacted Law	Civil & Criminal	• Type of alternative dispute redressal mechanism ◦ Aim to settle/compromise between parties if parties agree • Any case ◦ pending before ANY court ◦ not yet filed before a court and is likely to can be referred by State/District Legal Authorities ◦ except non compoundable offences • Civil and Crim. Compoundable
Hierarchy	Substitutes/subordinate to HC (Depending on the Governing Act) • Appeals to SC (Substitutes) ◦ NGT, Central Admin , National Consumer Commission, Armed Forces • Appeals to HC (Subordinate) ◦ Income Tax, Customs Excise	• Lowest subordinate court • Estd for every panchayat at the intermediate level • Limited appeals to District Court and HC (Art 227)	• Deemed to be a decree of a civil court and is final and binding on all parties • No appeal • No court fee/refund of earlier paid court fee
Composition	Judicial & Technical Members	headed by a nyayadhikari (qualified to be JMFC)	Sitting/Retired Judges/Judicial Officers, Lawyers, Social Workers
Procedure	Not bound by Procedural Laws	Semi (not bound by CPC/rules of Evidence as per BSA)	Not bound by CPC, BSA(Evidence Act)

Legal Services Authorities

National Legal Services Auth (NALSA)

State Legal Services Auth (SLSA)

District Legal Services Auth (DLSA)

Types of Lok Adalat

National Lok Adalats
Quarterly for settlement of cases (both pre-litigation and post-litigation) in all the courts from the SC to the Taluk Courts on a single day.

Permanent Lok Adalats
Permanent establishments in Districts to provide compulsory pre-litigative mechanism for Public Utilites

Courts via their Legal Services Committees (LSCs)

HC (HC - LSC)

DC & Taluk Level Courts (Taluk LSC)

Sometimes, SC can also organise special lok adalats like it did in Aug 2024 celebrating 75 years of SC **via SC LSC**

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National Legal Services Authority Act, 1987

Legal Aid

Legal Service Authorities	Court Legal Services Committees
NALSA • CJI • Sitting/Retd SC Judge (exec chair) (Nominated by Pres after CJI Consultation) • Other expert members nominated by Govt after CJI consultation	**SC Legal Services Committee** • Set up by NALSA • Sitting SC Judge (Chair) • Other expert members nominated by CJI as per govt prescribed qualifications
SLSA • CJ-HC • Sitting/Retd HC Judge (exec chair) (Nominated by Pres after CJI Consultation) • Other expert members nominated by Govt after CJ-HC consultation	**HC Legal Services Committee** • Set up by SLSA • Sitting HC Judge (Chair) • Other expert members nominated by CJHC as per govt prescribed qualifications
DLSA • District Judge (Chair) • Other expert members nominated by Govt after CJ-HC consultation	**Taluk Legal Services Committee** • Set up by DLSA • Senior most local Judge (Chair) • Other expert members nominated by CJHC as per govt prescribed qualifications

Art 39A : DPSP ; Also recognised as a FR under Art 21

Eligibility
- Women and Children
- Scheduled caste
- Scheduled Tribes
- Industrial Workmen
- Persons with Disability
- Persons in Custody
- Victims of Human trafficking
- Victims of Natural Disasters,
- Ethnic/caste violence,
- Industrial Disaster
- Persons with an annual income of less than Rs 1,00,000/- Or as notified by the Central/State Governments
  - **5,00,000 for SC LSC**

(Legal Aid includes ALL legal costs incurred)

Lawyers

Type	Description
Advocates	Advocates Act, 1961: enrolled with any bar council, can practice in any court, can't be full time employed
Sr. Advocates	Advocates Act, 1961: only in SC/HC, right to pre-audience - heard before other advocates, can't take clients directly, SC/HC have their own guidelines to designate advocates as Senior Advocates, their certification necessary for a curative petition to be filed.
Advocates on Record	Only in SC, only AoR can file and argue cases in SC, other lawyers can argue if AoR allows in a case. Selection through a written exam - 4 yrs exp and 1 yr training under AoR mandatory before appearing in exam.
Amicus Curiae	SC allots a lawyer to unrepresented, compulsory for criminal cases, discretionary for civil cases
Attorney General	• Art 76 - highest legal officer, appointed by Pres, qualifications same as to become a SC judge, term of 3 yrs. • Right to an audience (right to conduct legal proceedings) in all courts • Right to take part in proceedings of both Houses of the Parliament, parliamentary committees, but cannot vote, enjoys all the MP privileges • Can only represent the Govt
SG & Addl. SG	2nd/3rd highest legal offrs, statutory post, appointed by Pres for 3 yrs as per Appts. Cabinet Committee.
Advocate General	• Art 156 - highest legal officer in the state, apptd by Governor, qualifications same as a HC judge, term of 3 yrs. • Powers, functions, position similar of Attorney General

- **Federal Features of India**
- Dual Polity
  - Two levels of government:
    - Union Government
    - State Governments
- Written Constitution
  - Constitution of India is written and supreme.
- Division of Powers
  - 7th Schedule:
    - Union List
    - State List
    - Concurrent List
- All organs derive power from the Constitution.
  - Independent Judiciary
  - Supreme Court of India Acts as:
  - Guardian of Constitution
- Arbitrator of Centre-State disputes
  - Bicameral Legislature
- Parliament of India has:
  - Lok Sabha
  - Rajya Sabha (represents states)

- **Unitary (Centralising) Features**
- Strong Centre
  - Union List is more powerful than State List
  - Residuary powers lie with Centre (unlike USA)
- Single Constitution
  - Unlike USA, states do not have separate constitutions (except J&K earlier)
- Single Citizenship
  - Only Indian citizenship (no dual citizenship like USA)
- Emergency Provisions
  - During emergencies (Article 352, Article 356):
  - India becomes unitary in practice
- Appointment of Governors
  - Governor (appointed by Centre) can influence state functioning
  - All India Services
  - IAS, IPS serve both Centre & States → central control
- Parliament's Power over States Can:
  - Change state boundaries (Art 3)
  - Legislate on State List in certain situations

Asymmetric federalism

- Asymmetric federalism refers to a system where:
  - Different states or regions have different powers, status, or autonomy under the same Constitution.
  - Unequal distribution of powers
  - Special provisions for certain regions
  - Tailored governance based on diversity
- Features of Asymmetric Federalism
  - Differential Autonomy
    - Some states enjoy greater legislative or administrative powers
  - Special Constitutional Provisions
  - Specific articles apply only to certain states/regions
    - Unequal Centre–State Relations
  - Centre's control varies across states
    - Institutional Variations
- Asymmetric Federalism in India
  - India is a classic example of asymmetric federalism.
  - Special Constitutional Provisions
    - (a) Regional Autonomy Articles
      - Article 370 (now largely abrogated)
      - Article 371
      - Applies to Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, etc.
    - (b) Sixth Schedule Areas
    - Autonomous District Councils in tribal areas:
      - Assam, Meghalaya, Tripura, Mizoram
      - Provide:
        - Legislative
        - Judicial
        - Administrative autonomy
    - (c) Fifth Schedule Areas
      - Tribal areas in central India:
      - Special governance + Governor's role
    - Special Category & Administrative Differences
      - Northeast states historically given greater autonomy
      - Different land, resource, and cultural protections
    - Localised Autonomy Mechanisms
      - Autonomous councils
      - Regional councils
      - Special protections for customary laws

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Overview

Part XI		Part XII	Part XIII	Part XVIII	Part XXI
Legislative	Administrative	Finance/Property/ Contracts etc.	Trade & Commerce	Emergency	Special States

Legislative Relations : Sources

Fundamental Rights

- Art 13: Ordinary laws made by Parl/States cannot violate FRs
- Art 35: Only Parl can make laws implementing certain FRs

Other CoI Provisions

- Art 245- 254

Subject Wise Distribution

Union List (97 Subjects):
- National Imp.
- Exclusive Parl. Powers
- Uniform Laws

State List (66 Subjects):
- Local Importance
- Exclusive State Powers

Concurrent List (47 Subjects)
- Both Parl. & State can make laws

Legislative Powers : Scope

Territorial

- **Art 245 (Subject to CoI provisions),**
  - Parl can make laws for whole/part of Territory of India
  - State can make laws for territory of the state
  - Parl can make extra territorial laws (effect abroad)
- **Doctrine of Territorial Nexus**
  - State normally cannot make laws having an effect outside the state unless there is enough connection between the State and the subject matter of the law.

Subject Matter

- **Art 246**
  - Union List - Parl, State List - States, Concurrent List - Parl & State (Parl>States),
  - For UTs without legislatures, Parl can make law.
  - **Doctrines/Principles curated by SC to interpret division of power**
    - **Legislative Plenary Powers :** Entries in the lists should be interpreted liberally.
    - **Liberal & Harmonious Construction :** Subject to Union predominance, entries across lists should be attempted to co-exist/reconciled
    - **Ancillary/Incidental Powers :** Subject to division of powers, a specific entry also includes power to legislate on closely/matters related matters to that entry.
      - power to levy a tax also includes power to check tax evasion
    - **Pith & Substance :** If main subject matter of a law falls within powers, then incidental cross over/encroachment to other lists is alright.
    - **Colourable Legislation :** Any legislature cannot circumvent/bypass the division of powers directly or indirectly
- **Art 246A :** GST : Parl & State can make GST laws, only Parl law for interstate GST
  - **Added via 101 CA, 2016**
- **Art 248 : Residuary Powers :** (not in any list) -
  - Only Parl can make laws (supported by Entry 97 - List I)
- **Art 254 : Concurrent List Conflict**
  - Inconsistency/Repugnancy between Union & State Laws in **Concurrent List**
  - Repugnancy means Union and state laws on the same subject leading to different outcomes.
  - Normally, Union Law > State Law irrespective of when laws were made unless
    - State law was reserved for Pres Assent and received it. [Art 254(2)]
    - Even then Parl can pass can overriding law [proviso to Art 254(2)]

- **Essentials for Federalism**
  - **Written Constitution**
  - **Independence of Judiciary**
  - **Democracy**
  - **Constitutionalism**

- **Important Insights**
  - Our Constitution does not provide for a rigid separation of legislative powers between the Union and States. This is reflected through the existence of concurrent list and some subjects in the state list subject to the Union list as explicitly mentioned in the CoI. (e.g. - Entry 17 of State List (Water) subject to Entry 56 of Union List (inter state rivers)
  - Sch VII does not defined legislative competence, it simply outlines the scope or areas or fields of law making
  - There are NO specific taxation powers in the Concurrent List.
  - While Legislative Relations and Administrative Relations are explicitly mentioned as Chapters in CoI, there is no such thing as 'Financial Relations'.

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- State lists to be interpreted as per Union and Concurrent List (Art 246)
- Concurrent Lists : Union > State (Art 254)
- Union List has most subjects
- Residuary powers with the Parliament (Art 248)
- Scenarios where Parliament can makes laws on State List Subjects :
  - RS passes a resolution with Special Maj I in *National Interest or **GST related laws*** authorising the Parl to make law on state list entries (Art 249)
    - Such a law can be made for entire/partial Territory of India till validity of the resolution
    - Resolution is valid for a year and can be extended for 1 more year by same majority
  - During National Emergency, Parliament can make laws on all lists incl. state list. and GST for entire/partial Territory of India (Art 250)
    - *Only when the Parl actually makes laws under Art 249/250 is when state laws/law making powers becomes restricted. Even if resolutions and proclamations are passed/issued respectively, unless follow up Parl Laws are made, state powers are not restricted (Art 251)*
  - 2 or more states pass a resolution using simple majority authorising the Parl to make a law on the State List (Art 252)
    - States can make laws on the subject then, Other states can also adopt the same law by passing a resolution using simple maj.
    - Such a law made can only be amended by the Parliament and not the State legislatures concerned.
  - If law needs to be made on a state list subject to implement an international treaty, the Parl can without any spl permission. (Art 253)
  - Pres. can authorise the Parl. to exercise powers of the concerned state legislature during Pres Rule (Art 356)
- Parl. can make laws for Union Territories without a legislature/any territory not a state on any subject in any list (Art 246)
- Parl. can set up courts for better administration of Union Laws (Art 247)
- A bill imposing reasonable restrictions in public interest on inter/intra state trade and commerce w.r.t a specific state cannot be introduced in that specific state without prior recommendation of the President [Art 304(b)]
- Governor can reserve any bill for President (Art 200) (Governor's constitutional discretion, not bound by State CoM Advice)
- State Bills that should/must be reserved for Pres. Assent by Governor after being passed by the state legislatures
  - state bill about land acquisition/merging companies etc. (proviso to Art 31A)
  - state bill implementing Art 39(b)(c) (proviso to Art 31C)
  - state bill adversely affecting the powers of the HC as envisaged in CoI (proviso to Art 200)
  - state bill on concurrent list when central law exists (exception of Union Law > State Law in Concurrent List) [Art 254(2)]
  - state bill taxing water/electricity provided by any authority created by Parl Law [Art 288(2)]
  - state money and financial bills (I and II) passed during Financial Emergency if such direction issued [Art 360(4)(ii)]

Administrative Relations : Art 256 -263

Provision	Meaning/Description
Art 256	State executive power to be used in adherence with Parliamentary Laws and Union can use its executive power in to ensure states are adhering to parliamentary laws. for eg - to implement Untouchability laws made by Parl.
Art 257	• State executive power cannot obstruct Union Executive Power • Union can give directions to states ensuring above principle of state exec. power not interfering with Union exec. • Specific Union directions can be given for ◦ construction and maintenance of means of means of communication of national/military importance. ◦ measures to be taken for protection of railways within the states. ▪ Centre and State can mutually decide cost sharing for above 2 reasons or can ask CJI to appoint an arbitrator • If any Union direction is not followed by the States then Pres can hold that state govt cant be carried on as per the CoI provisions. (Consequently, Pres Rule/State Emergency can be imposed)
Art 258	• PRINCIPLE : Both the Union and States can delegate their functions to each other with mutual consent • Pres. can allot Union Executive functions to states WITH their consent • Parl can authorise using state machinery with necessary powers to implement Union Laws. State consent is not needed in this case. (C>S) • Art 258A: states via Governor can entrust state functions to the Union with Union consent.
Art 260	• Union has exclusive jurisdiction over territories outside India
Art 261	• Full faith & credit to be given to laws, records, judicial proceedings across territory of India to ensure national recognition, validity, and enforcement.

Administrative Relations : Art 256 -263

Water Governance

Provision	Meaning/Description
Art 262	• Parliament by law can provide for separate redressal mechanism for inter state water disputes and such a law can even restrict SC jurisdiction for the same. ◦ Parl created Inter State Water Disputes Act, 1956 which allows for creating specific tribunals solving disputes. ▪ Central Govt can create a tribunal after receiving a complaint from a state govt ▪ Such a tribunal is only created if the Centre also agrees so. ▪ If above both conditions are satisfied then, tribunal must be created within a year of state complaint. ◦ Central Water Commission is a premier Technical Organisation in the field of Water Resources and is presently functioning as an attached office of the Ministry of Jal Shakti. ◦ Work includes initiating, coordinating and furthering in consultation of the State Governments concerned, schemes for control, conservation and utilisation of water resources throughout the country, for purpose of Flood Control, Irrigation, Navigation, Drinking Water Supply and Water Power Development

Tribunal	States Concerned	Date of Constitution	Current Status
Godavari Water Disputes Tribunal	Maharashtra, Andhra Pradesh, Karnataka, Madhya Pradesh, Orissa	April 1969	Report and decision given in July 1980.
Krishna Water Disputes Tribunal – I	Maharashtra, Andhra Pradesh, Karnataka,	April 1969	Report and decision given in May 1976.
Narmada Water Disputes Tribunal	Rajasthan, Madhya Pradesh, Gujarat, Maharashtra	October 1969	Report and decision given in December 1979. Narmada Control Authority (NCA) was constituted to implement the decision.
Ravi & Beas Water Tribunal	Punjab, Haryana, Rajasthan	April 1986	Report and decision given in April 1987. Further Report is pending.
Cauvery Water Disputes Tribunal	Kerala, Karnataka, Tamil Nadu, Puducherry	June 1990	Report and Decision given on 5 February 2007. Supreme Court modified the decision on 16 February 2018. The Cauvery Water Management Authority (CWMA) and Cauvery Water Regulation Committee (CWRC) were constituted to implement the modified decision.
Krishna Water Disputes Tribunal -II	Karnataka, Andhra Pradesh, Maharashtra, Telangana	April 2004	Report and decision given on 30 December 2010. SLPs filed pending in the Court. The term of the Tribunal has been extended after the bifurcation of Andhra Pradesh. The matter is under adjudication in the Tribunal.
Vansadhara Water Disputes Tribunal	Andhra Pradesh, Odisha	February 2010	Report and decision submitted on 13 September 2017. Further Report is pending.
Mahadayi Water Disputes Tribunal	Goa, Karnataka, Maharashtra	November 2010	Report and decision submitted on 14 August 2018. Further Report is pending.
Mahanadi Water Disputes Tribunal	Chhattisgarh, Odisha	March 2018	Under adjudication by the Tribunal. Report and decision are awaited.

Finance Relations

Taxation Framework Between Centre and States

Category	Constitutional Article	Who Levies	Who Collects	Revenue Goes To	Examples
Union Levies, State Collects	Article 268	Union	State	State	Stamp duties, excise on medicinal preparations
Union Levies & Collects, Assigned to States	Article 269	Union	Union	States	Inter-state trade taxes
GST on Inter-State Trade	Article 269A	Union	Union	Shared	IGST
Shared Taxes	Article 270	Union	Union	Shared	Income tax, corporation tax
Surcharge	Article 271	Union	Union	Union	Income tax surcharge
State Taxes	State List	State	State	State	Land revenue, excise on alcohol, vehicle tax

Grants-in-Aid in Centre–State Relations

Type of Grant	Article	Nature	Purpose	Example
Statutory Grants	Article 275	Mandatory	Support needy States	Revenue deficit grants
Tribal Area Grants	Article 275	Mandatory	Welfare of Scheduled Tribes	Development of tribal areas
Discretionary Grants	Article 282	Optional	Public purpose expenditure	Centrally Sponsored Schemes
Historical Grants	Article 273	Compensation	Jute export duty replacement	Grants to eastern states

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Finance Relations

Inter alia, Finance Commission recommends the basis of distribution of duties/taxes between the Centre & States from the divisible pool

Duties & Taxes

- No tax can applied without a law.
- Duties & taxes on subjects mentioned Union and State List subject levied and collected by Centre & State respectively subject to -
  - Art 268 - Stamp duties mentioned in Union List levied by Union but collected and fully used by States
  - Art 269 - Some taxes are levied on activities that happen across multiple states (like inter-state trade or commerce). The Centre collects these taxes, but the revenue belongs to the States and is can be regulated by Parliamentary law. (*mostly now covered under IGST, but goods not covered under GST regime but sold inter state are governed under this provision)*
  - Art 269A: Post GST, inter state supplies of goods/services via IGST
- Other Union taxes like Income Tax and duties like Excise are shared with states based on Finance Commission recommendations (Art 270)
  - Central cess and surcharges are not divisible/shared
  - Central GST is shared as per FCI suggestions and not as per GST Council Formula, IGST as per Parl law on basis on GST Council recommendations.

GST

- Merged several Central and State indirect taxes & duties
- Concurrent jurisdiction for levy & collection of GST by the Centre (CGST) and the States (SGST)
- Centre levies and collects IGST on supplies in the course of inter-State trade or commerce including imports.
- Compensation for loss of revenue to States for five years
  - Compensation to be provided through Cess
- GST Council decides tax rates and inclusion/exclusion of goods/services in GST
- Also provided for a anti profiteering authority (now dealt by CCI)
- Union Tax Merged
  - Central Excise Duty, Service Tax, Surcharges & Cess
- State Taxes Merged
  - State VAT/sales tax, Purchase tax, entertainment tax, luxury tax, entry tax, taxes on lottery/betting gambling.

- 101 CA, 2016
  - Art 246A : Parl & State can make GST laws, Parl law for interstate GST
  - Art 279A : GST Council
- Central GST Act 2017
- Integrated GST Act 2017
- Respective State GST Acts passed by state legislatures
- UT GST Act 2017
- GST Compensation Act 2017
- GST Network was registered as a non-government, not-for-profit, private limited company under the Companies Act. It is online platform for GST payments.

- ***Key Changes in GST Rates (Effective Sept 22, 2025)***
  - ***5% Slab (Essentials): Applies to common household goods, packed food, clothing, shoes, and pharmaceutical products.***
  - ***18% Slab (Standard): The new standard rate for most consumer goods, services, and electronics, replacing the old 28% rate***
  - ***40% Slab (Luxury/Sin): Applies to luxury cars, high-end motorcycles, pan masala, tobacco, and aerated drinks.***
  - ***Exemptions: Health and life insurance premiums are now exempt from GST***

Grants

- Art 273: Grants-in-aid will be given to the States of Assam, Bihar, Odhisa and West Bengal in lieu of export duty on the jute products. The sums of such grants are prescribed by the President with the consultation of the Finance Commission.
- Art. 275: Parliament to make such grants, as it may deem essential, to the States which are in need of financial assistance. Also provides for special grants given to the States which undertake schemes of development for the"purpose of promoting the welfare of the SC/ST. Assam gets a special grant for this purpose.
  - Finance Commission recommends principles for distribution of these grants. These are also called statutory grants.
- Art. 282: Both the Union and a State make grant for any 'public purpose', even if it relates to a subject matter over which it cannot make laws.
  - These are also called discretionary grants as they are at the discretion of the Centre,

Borrowing

- Art 292 : Union can borrow keeping CFI as security and conditions can be set by Parliament.
- Art 293 : State Executive can also borrow keeping CFS as security and conditions can be set by State Legislature.
  - Centre can also give loans to states as long as overall Parliamentary Limits under Art 292 are not breached.
  - States normally can't raise more loans if there's a pending Central Loan.

Inter State Trade & Commerce : Art 301 - 307

- Otherwise free, Parliament can impose reasonable conditions on freedom of trade, commerce or intercourse in public interest.
- Unless dealing with scarcity of goods, no law can be made by either Parl. or state legislatures creating any preference/discrimination.
- State legislatures can impose taxes of outside goods coming into the state so as to not have any discrimination against internally produced goods.
- State legislatures can also impose reasonable conditions on freedom of trade, commerce or intercourse in public interest but such a bill would require Pres Sanction to be introduced in the state legislature (C>S)

PS : All bodies including the ones referred here are to be dealt separately under a different Concise Note.

Finance Commission

The 15th and 16th Finance Commissions are similar in vertical devolution (both give states 41% of the divisible pool) but differ quite sharply in horizontal formula, grant design, and the overall philosophy of "equity vs performance"

Feature	15th Finance Commission	16th Finance Commission
Chairperson	**N. K. Singh**	**Arvind Panagariya**
Award period	**2021-22 to 2025-26 (plus 2020-21)**	**2026-27 to 2030-31**
Constitutional article	**Article 280**	**Article 280**

- Vertical devolution (Centre vs States)
  - States' share in divisible pool:
  - 15th FC: 41% of the divisible pool of central taxes.
  - 16th FC: Retains 41%, imparting a sense of "semi-permanence".
  - Divisible pool definition: Gross central tax revenue minus cost of collection, cesses and surcharges; only this net amount is shared.
  - Key point: The quantum (41%) is the same, but the 16th FC grapples more explicitly with the problem that rising cesses and surcharges shrink the effective pool available to states.
- "Grand bargain" idea (16th FC):
  - Proposes that states accept a smaller percentage share in return for a larger divisible pool if the Centre merges many cesses/surcharges into shareable taxes.
  - This responds to state concerns about vertical fiscal imbalance but without raising the 41% figure
  - 16th FC: Explicitly discontinues revenue deficit grants, sector-specific grants, and state-specific grants.
    - Replaces these with more rule-based and performance-linked instruments, aligning transfers with compliance and outcomes rather than negotiated entitlement.

Horizontal devolution formula (among states)
The biggest changes are in criteria and weights used to distribute the 41% among states.

Criterion	15th FC Weight	16th FC Weight	Implication
Income distance (per capita GSDP)	45%	42.50%	Slight dilution of pure equity; still dominant redistributive factor.
Population (2011)	15%	17.50%	More weight to population-linked expenditure needs.
Demographic performance	12.50%	10%	Incentive for population control continues but less emphatic.
Area	15%	10%	Some reduction of advantage to large-area states.
Forest cover / ecology	10%	10%	Continuity in rewarding ecological services.
Tax & fiscal efforts	2.50%	–	16th FC drops explicit tax-effort criterion.
Contribution to GDP	–	10%	New efficiency / growth-oriented parameter.
Total	100%	100%	Rebalancing equity and efficiency.

Emergency

Type	Approval, Extension, Revocation	Grounds, Impact, Conditions
National (Art 352)	• **Approval** ◦ LS & RS both should pass with Spl Maj II within 30 days. • **Extension/Duration** ◦ Indefinitely, 6 months at a time. • **Revocation** ◦ By Pres ◦ LS - simple Maj. ◦ If LS not in session, 1/10th members can send a notice to Spkr/Pres expressing intent to end emergency. ▪ Special sitting must be conducted in 14 days.	• **Grounds** ◦ Indian security threatened by external aggression/armed rebellion (previously internal disturbance till 44th CA, 1978) ◦ Imposed thrice ▪ 1961 & 71 : external aggression ▪ 1975 : internal disturbance • **Conditions (Art 353 & Art 354)** ◦ Union Cabinet must recommend Nat. Emergency to Pres. in writing (44th CA, 1978) ◦ Proclamation valid for 6 months. ◦ Can be imposed if before, during, and after external aggression/armed rebellion ◦ If LS is dissolved, then RS approval for time being is valid, LS can approve within 30 days of next session. ◦ Art 20 & 21 can't be suspended (44th CA, 1978) ◦ Only emergency laws are protected from being challenged in court of law and no other laws which are not related to the emergency ▪ (44th CA, 1978) • **Impact (Art 353 & Art 354)** ◦ Union executive power shall extend to the giving of any direction to any State in the declared emergency area ◦ Parl. can make laws on State List ◦ President can alter the distribution of revenues that are normally for states ▪ such orders to be placed immediately before Parl. ◦ LS and SLA can be extended by 1 yr at a time & not extending in any case beyond a period of six months after the proclamation ceased to exist ◦ Art 19 automatically suspended but only when grounds are ext. aggression (44th CA, 1978) ▪ such orders to be placed immediately before Parl. (44th CA, 1978) *(National Emergency makes India Unitary, it does not lead to dissolution/suspension of State Legislatures/Executive)*
State (Art 356)	• **Approval** ◦ LS & RS both should pass with Simple Maj within 60 days. • **Extension** ◦ 3 years, 6 months at a time ◦ Can only be extended beyond 1 yr if National Emergency is also imposed or Election Commission certifies that it is difficult to hold elections to concerned SLA. • **Revocation** ◦ By Pres	• **Grounds** - failure of a state's consti. machinery ◦ Union Government duty to protect States against ext. aggression and int. disturbance & ensure CoI is followed in the states (C>S) • **Conditions** ◦ Governor may recommend but can be imposed even without it. ◦ SLA cant be dissolved before Parliament approves state emergency (SR Bommai, 1994) ◦ If LS is dissolved, then RS approval for time being is valid, LS can approve within 30 days of next session. • **Impact** ◦ President may assume to herself any state govt function and all or any of the powers vested in or exercisable by the Governor or anybody or authority in the state other than the State Leg. *(this allows for suspension/termination of state executive)* ◦ Pres. may declare that State Leg powers shall be exercisable by or under the authority of Parl *(this allows for suspension/dissolution of state legislatures)* ◦ HC powers can't be subsumed by the Pres.

Type	Approval, Extension, Revocation	Grounds, Impact, Conditions
Financial (Art 360)	• **Approval** ◦ LS & RS both should pass with Simple Maj within 60 days. • **Extension/Duration** ◦ Indefinitely • **Revocation** ◦ By Pres	• **Grounds** ◦ threat to Indian financial stability or credit • **Conditions (Art 353 & Art 354)** ◦ Pres must be satisfied of the situation ◦ If LS is dissolved, then RS approval for time being is valid, LS can approve within 30 days of next session. • **Impact (Art 353 & Art 354)** ◦ Union can give any direction to states to observe financial prudence such as reducing salaries of state employees ◦ President can also issue similar directions such as reducing salaries of union employees, SC/HC judges.

Criteria	Special States	Schedule V	Schedule VI
Provs.	Article 371 to 371J(Part XXI)	Art 244	Art 244 & Art 275
Features	• **Art 371 : MH & GJ** ◦ separate development boards for Vidarbha, Marathwada, Saurashtra, and Kutch regions by Pres • **Art 371A : NG (13 CA, 1962)** ◦ Parl law regarding Naga customary law, social practices, and land rights requires consent of NG SLA ◦ In matters related to internal disturbances in the Naga Hills, the Governor can act at his individual discretion and must report directly to the Pres. ◦ creation of regional councils • **Art 371B : Assam (22 CA, 1969)** ◦ Pres. can create a committee of elected members from tribal areas (Sch VI) within Assam SLA • **Art 371C : Manipur (27 CA, 1971)** ◦ Pres. can create a committee of elected members from hill areas within Manipur SLA ◦ Union can give directions for hill areas, gov to submit report to Pres • **Art 371D & E : Andhra (32 CA, 1973)** ◦ Also applies to TL ◦ Intra state zones for education and employment can be set up & Pres can issue orders for local preferences in these zones/areas. ◦ Central University in AP. • **Art 371F: Sikkim (36 CA, 1975)** ◦ 1 LS and 1 RS seat • **Art 371G: Mizoram (53 CA, 1986)** ◦ Parl law regarding Mizo customary law, social practices, and land rights requires consent of Mizo SLA • **Art 371H : Arunachal** ◦ Governor discretion w.r.t law & order • **Art 371I : Goa (SLA not less than 30)** • **Art 371J : Karnataka (98 CA, 2012)** ◦ separate development boards by Pres ◦ spl reservation in edu & jobs for locals in Hyd - KN region.	• Notified districts in 10 States: ◦ Himachal Pradesh, Rajasthan, Gujarat, Maharashtra, Andhra Pradesh, Telangana, Odisha, Jharkhand, Chhattisgarh and Madhya Pradesh • Some areas under Sch V are governed under PESA, 1996 while others under Sch V itself. • Tribal Advisory Council set up for Non PESA areas - ◦ may advise on regulations to be made at initiative of and by Governor • PESA : Gram Sabha (Spl) ◦ Power of subordinate legislation w.r.t consumption of intoxicants, minor forest produce, land-alienation, village markets, money-lending, control over social sector institutions, local plan and resources for them, if and when given by State Legislature. ◦ Approval is mandatory for implementation of local plans, minor minerals, land-acquisition and rehabilitation associated with development projects. ◦ State Legislature is prohibited from making laws inconsistent with customary laws and practices but union laws BNS, BNSS etc applicable. ◦ 73 CA (Panchayati Raj) does not apply	• Assam ◦ North Cachar Hills District & Karbi Anglong District ◦ Bodoland Territorial Areas District • Tripura ◦ Tripura State, except Shillong Municipal and Cantonment Area • Mizoram ◦ Chakma,Mara & Lai District • Meghalaya ◦ Garo, Khasi, Jaintia Hills District • Governor's power of determining any dispute over sharing of royalty or fees pertaining to mining between District Council and the State is discretionary. • District Council & (Autonomous) Regional Council created • Can make laws on land, non reserved forests, inheritance, village admin, marriage, divorce etc. • Some Central/State laws may not be applicable or may require to adapted before being applicable to these areas. • 73 CA (Panchayati Raj) does not apply

Prelims Concise Notes 2.0 (PCN) 13 : Local Self Govt

Principle : Democratic Decentralisation

Local Self Govt

Art 40 (DPSP)
(Village Panchayats)

Entry 5 (State List)
Urban + Local Govt.

- **73 CA, 1992 (Panchayats)**
  - Part IX + XI Sch (Subjects)
  - Not applicable to
    - Sch V, VI, Darjeeling Gorkha Hill Council
  - Parl 73 CA to Sch Areas by Law
    - Hence, PESA 1996 (Covered in C S Relations)
- **74 CA, 1992 (Municipalities)**
  - Part IXA + XII Sch.
  - Metropolitan Committee
  - District Planning Committee

States adopt the provisions of 73 & 74 CA by passing respective state laws.

Reforms/Committees

- Community Development Programme (1952), National Extension Service Programme (1953) : Created Block Level, BDO
- Balwant Rai Mehta Committee (1957)
  - three tier structure linked to each other
- Ashok Mehta Committee (1978), GVK Rao Committee (1984), L.M. Singhvi Committee (1986-87), P.K. Thungon Committee (1988), Sarkaria Commission (1988) further recommended the revitalisation of these grass root institutions
  - Singhvi Committee Recommendations of a Constitutional Amendment was accepted leading to 73rd CA, 1992.

District Planning Comittee

While Panchayats are mostly a 3 tier system, Municipalities maybe a single or dual tier depending on states.

Head of Z.P

Zila Parishad

Block I + Block II + Block II = District (Rural)

Head of P.S.

Panchayat Samiti

Village 1 + Village 2 = Block I

Sarpanch

Village Panchayat

Village 1

Sarpanch

Village Panchayat

Village 2

Head of P.S.

Panchayat Samiti

Village 3 + Village 4 = Block II

Sarpanch

Village Panchayat

Village 3 & 4

Metropolitan Planning Committee

Chair/Mayor

Nagar Panchayat/Municipal Council/Municipal Corporation

Ward 1 + Ward 2 + Ward 3 = Municipality [District (Urban)]

Chair

Ward Committee

Ward 1

Chair

Ward Committee

Ward 2

Chair

Ward Committee

Ward 3

Criteria	Rural (73 CA)	Urban (74 CA)
Structure	• Tier I (Village Level) ◦ Gram Sabha (Village Assembly) ▪ All registered voters are members ▪ Sabha area may comprise 1 or more villages ◦ Gram Panchayats (Represents GS Area) ▪ Members - Panches & Chair - Sarpanch ▪ No Panchayats < No of Villages (Villages may me merged into a single GS area) • Tier II : Panchayat Samiti (PS) (Block Level) ◦ Only for blocks with 20L+ Population. ◦ Core/Directly Elected Members & Chair ◦ Sarpanch Reps, MP, MLA are also associated but no voting rights for them. • Tier III Zila Parishad (District Level) ◦ Chair ◦ Core/Directly Elected Members ◦ PS Reps (Chairs of PS generally) ◦ Associate Members (MLAs, MPs) ◦ Some state laws provide for members/chair of educational institutions, market boards, and cooperative unions to also be a part.	*3 types of Municipalities : Municipal Corporation (large urban area), or Municipal Council (small urban area), or Nagar Panchayat (transitional area)* **Municipal Corporation** • Basis of Bombay Municipal Corp. Act of 1888 • Comprises of Corporation's council, standing committee and executive wing • Corporation's council depends upon the size and population of the city ◦ The Councillors are elected on the basis of adult franchise and the city is divided into such wards ◦ Nominated members can also be there. ◦ Mayor is head of Corp Council • Municipal Commissioner heads Exec Wing **Ward Committees** • Areas having a population >3L **Metropolitan Committees** • Min 2/3rd indirectly elected • Cities/areas having a population >10L • Prepares a draft development plan for Metropolitan area as a whole **District Planning Committees** • Min 4/5th indirectly elected • Consolidates Panchayat & Municipality plans
Election	• Members of all 3 tiers - Direct Election • Chair ◦ Gram Sabha/Panchayat (Sarpach) - As per state law ◦ Panchayat Samiti & Zila Parishad - Indirect	• Members ◦ Municipalities - Direct ◦ Ward Committees - As per state Law • **Chair** ◦ Municipalities : State law ◦ Ward Committees : State Law
Reservation	Compulsory • SC/ST ◦ Members - Population , Chair - State law ◦ Women : Members - 1/3rd, Chair - 1/3rd • Voluntary ◦ Backward Classes (OBC) ▪ Members & Chair : State Law	Compulsory • SC/ST ◦ Members - Population , Chair - State law ◦ Women : Members - 1/3rd, Chair - State law • Voluntary ◦ Backward Classes (OBC) ▪ Members & Chair : State Law
Subjects	• XI Schedule : 29 Subjects • HR, HP, MH, KN, KL, Sikkim have devolved all subjects	• XII Schedule : 18 Subjects
Common	• 5 Years unless dissolved, States can provide for laws for dissolution & disqualifications. ◦ If dissolved sooner, then new tier continues for remainder period ◦ Municipalities get opportunity to be heard • State Election and Finance Commission to be set up for conducting local elections and recommending distribution of finances respectively. (Covered in more detail in Bodies Note)	

OVERVIEW

Thematic Purpose	Thematic functions	Nature
Separation of Powers/Autonomy	Electoral : ECI + SEC + Delimitation	Constitutional
Checks & Balances/Integrity	Recruitment : UPSC + SPSC	Statutory
Expertise	Financial : CAG + FCI + SFC + GST	Executive
Quasi Judicial	Federalism : Niti Aayog + ISC + ZC	
Regulatory	Vul. Secs : NCSC/ST/BC + Ling. Min. + NHRC + NC Minorities + NCW + NCPCR	
	Legal : Attorney Gen + Adv Gen + Law Commission + BCI (covered in Note on Judiciary)	
	Anti Corruption : CIC + SIC + CVC + CBI + Lokpal + Lokayukt	

- Bodies can have overlapping/multiple purposes. For ex - ECI would fulfil all thematic purposes.
- All Constitutional Bodies do not necessarily have the same features. It depends on their purpose. For ex - CAG would have higher autonomy and security of tenure than FCI.
- A few constitutional bodies would have their conditions alike the SC, this is generally due to the high degree of checks and balances.
- Bodies performing quasi judicial or regulatory functions must either be constitutional or statutory.

Federalism Related Bodies

Criteria	Inter State Council	Zonal Councils	Niti Aayog
Type	**Constitutional**	**Statutory**	**Executive**
Provisions	• Art 263 (Not compulsory), • Permanent ISC set up on Sarkaria Commission Recco in 1990 via a Pres. Order.	• State Reorganisation Act, 1956 • North Eastern Council Act,1971 (amended in '02)	Union Cabinet Resolution in 2015
Composition	• Chair - PM • Members ◦ CMs of States & UT with LA ◦ Lt Gov. of UT w/o LA ◦ *6 Union Cabinet Ministers nominated by PM* (If state under Pres Rule, then Gov can attend, PM can also invite other Union Ministers as permanent invitees.) • Standing Committee ◦ Chair - Home Min ◦ Members - 5 Union Min & 7 CMs	Under SRA, 1956 North : HR, HP, PB, RJ, Delhi, Chandigarh, J&K, Ladakh Central : UP, MP, UK, CG East : BR, JH, OD, WB West : MH, GJ, GA, Dadar & Daman South : AP, TL, KN, KL, TN, PY • Chair - HM of each zone • Vice Chair - CM on rotation • Members - CM & Lt Governors (Chief Secretary of each State, 1 official from Niti Aayog & Inter State Council/Dev. Commissioner from each state as advisors)	Niti Aayog • Chair - PM • Vice Chair - Apptd by PM • 4 Full time members • 1 CEO • Ex-Officio Members : HM, FM, Agri Min, Def. Min • Spl Invitees : Union Min (MoS Planning attached off.) Governing Council (GC) • Chair - PM • Members - CMs & Lt. Gov. • Spl Invitees of Niti Aayag are also Spl Invitees of GC
Functions	1. Inquire/advise on Inter state disputes 2. Investigate/discuss common subjects to Union and States 3. Recommend policy decisions on point 2. (*these are as per CoI)* ISC only has taken up 2nd and 3rd points as per Pres Order. ISC is called Inter-govt council. It does not look into socio economic planning.	• common interest of economic and social planning • border disputes, linguistic minorities or inter-State transport • reorganisation of the States under SRA 1956	• apex think thank • NITI for States (cooperative and competitive federalism) • 3 attached bodies/schemes ◦ Atal Innovation Mission ◦ Development Monitoring and Evaluation Office ◦ National Institute of Labour Economics Research and Development. • Monitors Aspirational Districts Program • Reports - SDG India Index

- North Eastern Council set up under NEC Act 1971 (Amended in '02) (Low Priority as asked in 2024 Prelims)
  - SK, AS, MN, ML, MZ, NL, Ar.P, TR
  - Chair - HM, Vice Chair - Minister Development of North Eastern Region (DoNER)
  - Members - Gov, CM, 3 members nominated by Pres.
  - Acts as a regional planning body

Recruitment Related Bodies

Criteria	UPSC	SPSC
Type	Constitutional JPSC can also be constituted for a group of states subject to • resolution passed by states using simple majority • Parliamentary Law	Constitutional
Provisions	Art 315-323	
Composition	• Chair & members - Appointed by Pres • No of members decided by Pres • 50% of members should have 10 yrs work ex with Union Govt.	• Chair & Members - Appointed by Gov • No of members decided by Gov • 50% of members should have 10 yrs work ex with State Govt.
Service Conditions	• Term - 6/65 yrs (earlier) • Resignation to Pres	• Term - 6/62 yrs (earlier) • Resignation to Gov
Removal	• Removal Authority - President • Grounds ◦ Misbehaviour - Pres. reference to SC for inquiry as per rules framed under Art 145. ▪ Pres/Governor can suspend until Pres passes orders after SC enquiry. ▪ Deemed guilty of misbehaviour if any conflict of interest ◦ Insolvent, Employment outside office, mentally/physically unfit in Pres Opinion ▪ Removal by Pres Order	
Post Retirement	• Members cant be reappointed as members • UPSC chair cannot hold any office under Union/State • SPSC chair can become UPSC chair but not hold any other office under Union/State • UPSC member can become UPSC/SPSC Chair but not hold any other office under Union/State • SPSC member can become UPSC Chair/Member, SPSC chair but Chair but not hold any other office under Union/State	
Functions	• Conduct exams • Consulted on recruitment/transfer policy/disciplinary issues of civil servants ◦ Not needed to be consulted on reservation policy • Any rules made by Pres/Gov on these issues to be placed before respective legislatures for at-least 14 days and can be modified or rejected by them.	

Services (Art.308-314)

- Until Legislatures make law, Pres/Gov can make rules governing respective civil services
- AIS+Union Civil Service +Defence - Pleasure of President, State Services - Pleasure of the Governor
- AIS and Union Civil Services members cant be removed by authority subordinate to that by which they were appointed.
  - Cant be removed or demoted without an inquiry giving them opportunity of being heard unless
    - Convicted of a criminal offence
    - Deciding authority is satisfied it is not reasonably practicable to hold such inquiry
    - Pres./Gov, is satisfied that in the interest of the security of the State it is not expedient to hold such inquiry.
- AIS
  - RS can authorise the Parl to make a law in National Interest creating and governing an All India Service by Special Maj I
  - All India Service Act, 1951 was passed to reflect IAS IPS constitutionally deemed to All India Services. IFoS added later.
  - AIJS can be created for subordinate judiciary, and any law made for the same shall not be a CA under Art 368 (42nd CA, 1976)

Financial Related Bodies

Criteria	CAG	GST Council	Finance Commission of India (FCI)	State Finance Commission(SFC)
Type	**Constitutional**			
Provisions	• Art 148-151 • CAG Act, 1971	• Art 279A (101 CA, 2016)	• Art 280 • Fin Comm Act, 1951	• Art 243I & Art 243Y (73 and 74 CA, 1992)
Composition	• Apptd by Pres. • Single Post	• Chair - FM • Members ◦ Mos (Fin) ◦ State Fin Min or other Min nominated by State • Chair, Central Board of Excise and Customs (CBEC) - permanent non voting invitee	Apptd by Pres Ch + 4 Members Qual (FCI Act, 1951) • Chair - exp in Public Affairs • 4 Members across • Sitting or Qualified to be HC Judges/Spl knowledge of Govt fin/admin/fin admin/economics	State Law (apptd by Governor)
Service Conditions	• Oath as per III Sch. • Salary/Pension/ Allowances charged to CFI • Term - 6/65 yrs (earlier) • Resignation to Pres	Not applicable as Ministers are members of GST Council. As long as they hold concerned Ministers, they can serve as members of GST Council.	• FCI Act, 1951) • Resignation to Pres • Term - As per Order (usually for duration of FC i.e. 5 yrs)	State Law
Removal	Like SC Judges		• FCI Act, 1951 • unsound mind/undischarged insolvent/convicted for moral turpitude /conflict of interest	State Law
Post Retirment	No office under GoI of Govt of any state		Can be reappointed	State Law
Functions	• Audits accounts of Union & States and submits them to Pres/Gov who have to place them before the respective legislatures • Audits accounts of Autonomous Councils under VI Sch and submits them to Gov who have to place them before the Councils. • Doesn't audit accounts of Local Self Govt. • Governs IAAS cadre	Reccos to Union & State Govt w.r.t • All GST related issues • Decisions taken via not less than 3/4th weighted votes (75%) ◦ 1/3rd Votes cast to Centre ◦ 2/3rd Votes cast to States • GST Tribunal set up in Delhi with state branches under CGST Act • Anti Profiteering Issues handled by Competition Commission	• Distribution of divisible taxed between Centre/States • Principles governing grants from CFI • Support CFS to enhance Local Self Govt (LSG) as per SFC reccos. • Any other matter referred by Pres in interest of sound finance • Pres to have every FCI recco laid before Parliament	• Distribution of taxes, duties, tolls, fees levied by state • taxes, tolls, fees which can assigned/approrpriated to LSG • Measures to improve LSG's financial position • Gov to have every FCI recco laid before state legislatures

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Prelims Concise Notes 2.0 (PCN) 14 : Bodies

Electoral Bodies

Criteria	Election Commission Of India	Delimitation Commission	State Election Commission
Type	**Constitutional**	**Statutory**	**Constitutional**
Provisions	• Art 324 • CEC & Other EC Act, 2023	• Art 82, Art 327	• Art 243K & Art 243ZA (73 and 74 CA, 1992)
Composition	• Apptd by Pres • 1 CEC compulsory and other EC if appointed subject to Parl Law • **CEC & Other EC Act 2023** ◦ Pres can decide no of ECs (Currently 2) ◦ Search Committee headed by Law Minister and 2 Secy Rank Offcrs shall place 5 choices before selection committee ◦ Selection Committee ▪ Chair - PM ▪ Members - LoP, Union Cabinet Minister nominated by PM • Regional Commissioners (RCs) before Elections may be apptd after ECI consultation - not apptd at the moment . • Qualifications ◦ Are or have been Secy Rank offcrs to GoI + integrity + exp in conducting elections	• Apptd by Central Govt (3 Members) • Chair - Current/ex SC Judge • Ex-Officio - CEC or EC nominated by CEC • SEC of Concerned State • Associate Members - ◦ 5 MPs & 10 MLAs of that state nominated by Presiding Officers of LS and SLA respectively	State Law (apptd by Governor)
Service Conditions	• Term - 6/65 yrs (earlier) • Resignation to Pres • Salary like SC Judge • Civil/Criminal Immunity for actions done in course of duty (CEC & Other EC Act, 2023)	NA	State Law
Removal	• CEC - Like SC judge • ECs/RCs - on CEC recommendation		Like HC Judge
Post Retirment	Can't be reappointed (if EC is appointed as CEC, then total term of 6 yrs)		State Law
Functions	**Superintendence, direction and control of elections (Plenary Powers)** • Pres/VP/LS/RS/SLA/SLC Elections • Prepare and/or revise Electoral rolls after every census and before every LS/SLA general election • Recommend Pres/Gov to Notify the dates and schedules of respective elections • Recognition of political parties • Allocation of Symbols • Advise Pres/Gov disqual. of MPA/MLA/MLC • Cancel polls if needed • Appt offrs for electoral arrangement related disputes	• Determining number and size of Parliamentary and Assembly Constituencies as per Census ◦ 4 DCs set up thus far. ◦ 1952, 1963, 1973, 2002 as per respective Delimitation Acts • Orders ordinarily can't be challenged in courts unless exceedingly arbitrary or violating constitutional values (Kishorchandra Rathod v. Union of India (2024)] • Orders are placed before Parliament & State Legislatures but cannot be modified	**Superintendence, direction and control of elections (Plenary Powers)** • Panchayat & Municipality Elections State Laws to provide for delimitation of areas for Panchayat & Municipality Elections

- 61St CA, 1988 - Reduced Voting age from 21 to 18
- Right to Vote is a Constitutional Right (PUCL Case 2003), Right to Contest Elections is a Statutory Right [Jeetu Patnaik v Sanatan Mohakud (2012]
  - Both these rights can be restricted if convicted for electoral offences.
- RoPA 1951 - Election Petitions can be filed within 45 days challenging LS/RS/SLA/SLC Election at HC with assured right to appeal at SC.
  - HC judgements to be transmitted to ECI who would then forward to concerned legislature for further action on disqualification. (Refer to Note on Legislatures II covering Electoral Offences)
- One Nation One Election :
  - India had simultaneous elections to LS and SLA across first 5 general elections - 1952, 1957, 1962, and 1967
  - Currently, 129th CAB is pending in Parl and is referred to a Joint Parliamentary Committee
  - Seeks to insert Art 82A and amend Art 83, 172, 327
- 106 CA, 2023 : 1/3rd Seats of LS/SLA reserved for Women for 15 years to be implemented after delimitation on the basis of census conducted after 2023.

Criteria	CIC/SIC	CVC	Lokpal/Lokayukta
Type	Statutory	Statutory	Statutory
Provisions	RTI Act, 2005	CVC Act 2003 Orginally set up as per Santhanam Committee	Lokpal and Lokayuktas Act, 2013
Function	• CPIO/SPIO - Appellate Auth - CIC/SIC • RTI Exemptions (sec 8) • Sov/Integrity • Forbidden by Court/cause contempt • breach of privilege • IP/trade secrets • Investigation proceeds • Info received from foreign govt in confidence • Cabinet Papers • Personal Info unrelated to Public Interest *(Amended by Data Protection Act, 2023)* *(OG RTI to be replied to within 30 days, 48 hours if concerning life and liberty)*	• Superintendence over Central Vigilance ◦ Inquire/investigate against Central Govt official referred ◦ *No Power over MPs or Ministers* • Preliminary Inquiry against complaints referred by Lokpal w.r.t. Group A, , B, C, D • Superintendence over CBI over investigation of offences under PoCA 1988 and BNSS for AIS, Group A Central Service • Inquire into complaints made under Public Interest Disclosure and Protection of Informers' (PIDPI) Resolution (Whistle Blower) • Director & Dy Director in ED are apptd after recco from committee headed by CVC, VCs, and other members • SP and above level officers in CBI (except CBI director) appointed after recco from committee headed by CVC, VCs, and other govt members • Approves appt of Central Vigilance Officers in Central Depts for vigilance admin	Inquire into corruption by - • Union Min incl. PM & MPs, • Union Group A, , B, C, D Officials • Chair, Members, Officers of any board/corp/society/trust estd by Parl Law or wholly or partly funded by Union or State govt. • Any society/trust/body receiving foreign contribution > ₹10 lakh Anyone can file complaint to LokPal but offence must be under PoCA, 1988 against public servant. Lokpal can conduct preliminary enquiry through its Inquiry wing/refer to other agencies such as CVC/CBI within ***timelines*** Post inquiry and a full investigation, a 3 member bench of Lokpal can grant sanction to the Prosecution Wing to proceed. Lokpal has superintendence and direction over any central investigation agency including CBI for cases referred to them by the Lokpal.
Composition	Apptd by Pres/Governor • 1 CIC/SIC + <10 ICs • Selection Committee - • PM/CM (Chair) + Union Cabinet Min nominated by PM/CM + LoP • Qual -law, science and technology, social service, management, journalism, mass media or admin & governance.	Apptd by Pres • 1 CVC and max 2 VCs Qual - (same for CVC and IC) • Serving/ex AIS/Central Service knowledge and experience in the matters relating to vigilance/policy and admin. incl. police admin • Serving/ex Central PSU officers with experience in finance including insurance and banking, law, vigilance and investigations Selection Committee - ◦ PM (Chair) + HM + LoP	Apptd by Pres • Chair + 4 Judicial+ 4 Non Judicial Members (50% members should be SC/ST/OBCWomen/Minorities) **Qual** • Chair - Current/Ex CJI/SC judge • Judicial Mem - Current/Ex SC Judge/CJ-HC • Non Judicial Mem - 25 yrs exp in finance including insurance and banking, law, vigilance and investigations Selection Committee - PM (Chair) + LS Spkr, LS LoP, CJI or SC Judge nominated by CJI, Jurist nomina ted by this comm. (50% members of selection comm. should be SC/ST/OBCWomen/Minorities) (*Lokayukta as per state law)*
Service Conditions	• Salaries for CIC and SIC determined by Centre • Term - As per Centre but max age 65 yrs, resignation to Pres.	• Salaries etc equivalent to UPSC members • Charged to CFI • Term - 4 yrs/65 yrs, Resignation to Pres	• Chair Salary etc like CJI (SC) • Member Salary etc SC Judge • Charged to CFI • Term - 5 yrs/70 yrs, Resignation to Pres
Post Retirement	No reappointed as IC, IC can become CIC	• No appointment made by President. office of profit under Centre/State Govt	No office of profit under Centre/State No elections for 5 yrs, Member can become Chair total term of 5 yrs). Chair X reapptd.
Removal	• By Pres ◦ Insolvent ◦ Convicted for an offence of moral turpitude in Centre Govt's opinion (not applicable to Lokpal) ◦ Paid work outside office ◦ Unsound mind/body ◦ Conflicting financial or other interest. (not applicable to Lokpal) • By Pres after SC enquiry referred by Pres ◦ Proved misbehavior or capacity (deemed guilty of misbehaviour if undertakes any contract if any govt)		

Vulnerable Sections Related Bodies

Body	Type	Appt., Composition, and Removal	Functions
NCSC/ NCST/NCBC	Constitutional	• Apptd by Pres ; Composition : Chair+ Vice Chair + 3 Mem. • NCSC/ST : Art 338 and Art 338A (89 CA, 03) • NCST : Art 338B : 102 CA, 2018	• Investigate rights violations • Advise on socio eco planning • Union & State Govt to consult on related policy matters • Pres to have report tabled before Parl.
NCM (Minorities)	Statutory (NCM Act, 1992)	Apptd by Centre, Chair + Vice Chair + 5 Members (All 5 Members from Minorities) (Refer Note on Art 29/30) • Removal by Centre on - ◦ Insolvent ◦ Convicted for an offence of moral turpitude in Centre's opinion ◦ Unsound mind declared by court ◦ Refusal to act ◦ Absent from 3 consecutive meetings w/o permission	• Recommend measures for upliftment • Review laws and policies • Look into complaints and refer to concerned authorities • Centre to lay report in Parl and forward to State legislatures
NCW (Women)	Statutory (Protection of Human Rights Act, 1993)	• Apptd by Centre • Composition (all nominated by Centre) ◦ Chair : committed to the cause of women ◦ 5 Members with exp experience in law, trade unionism, management of an industry or organisation committed to increasing the employment potential of women, women's voluntary organisations (including women activists), administration, economic development, health, education or social welfare ▪ 2/5 member each from SC & ST respectively ◦ Member-Secretary (Civil Servant or expert) • Term : 3 yrs, Resignation to centre • Removal (Same as NCM)	• Examine and review all laws relating to women • Inquire upon complaints and suo moto - non implementation of law and policy • Advise on socio eco planning • fund litigation involving issues affecting a large body of women • Union to consult on related policy issues • Promote rights and research • Centre to lay report before Parl.
NCPCR	Statutory (Commission on Protection of Child Rights Act, 05)	Apptd by Centre, Chair + 6 Members (2 women members) from exp across education, child health, juvenile justice/care of neglected/marginalised children/children with disabilities; child labour/distressed children; child psychology/sociology, laws Selection Committee of 3 chaired by WCD Min Term : 3 yrs, Chair - 65/Members - 60, Resign to centre Removal: Same as NCM and NCW	• Examine and review all laws relating to children • Has suo moto power to initiate inquiry • Approach courts after inquiry for action • Promote child rights & research • Centre/State Govts shall place reports before Legislatures
NHRC	Statutory (Protection of Human Rights Act, 1993)	• Apptd by Pres • Composition : ◦ Chair : ex-CJI(SC) or SC Judge ◦ Members : ▪ M1: Current/ex-SC Judge ▪ M2: Current/ex- CJ-HC ▪ M3,4,5 : exp in Human Rights (1 woman member) ◦ Ex-Officio Members ▪ Chairs of NCSC,NCST,NCBC,NCM, NCPCR, CPD • Selection Committee ◦ PM (Chair) + HM + Speaker LS + Dy. Chair (RS) + LoP (LS) + LoP(RS) ◦ CJI consultation needed if sitting SC Judges/CJ-HCs are to be appointed. • Term : 3yrs/70yrs, Resignation to Pres • No post retirement employment under Centre/States Govt. • Removal • By Pres ▪ Insolvent ▪ Convicted for an offence of moral turpitude in President's opinion ▪ Paid work outside office ▪ Unsound mind declared by court/body infirmity • By Pres after SC enquiry referred by Pres ▪ Proved misbehavior or capacity	• Inquire human rights violations and recommend actions such compensation, prosecution of officials, approach SC/HC for directions. ***(Ex-Officio Members do not participate in this function)*** • Has suo moto power • Intervene in court proceedings concerning HR violations • Review Constitutional Provisions, Laws, International Treaties • Promote HR and their research • W.r.t Armed Forces violations, seek report from Centre Govt and recommend accordingly. • Centre/State Govts shall place reports before Legislatures

Comparative Table of Preamble | FR | DPSP |FR

Criteria	Preamble	FR	DPSP	FD
Provisions	We the People (ultimate sovereign) Sovereign, Socialist, Secular, Democratic, Republic Justice (Social, Eco, Political) Liberty (thought, expression, faith, belief, worship) Equality (status & opportunity) Fraternity assuring individual dignity, and national unity/integrity Enactment Date : 26.11.49	• Part III Art 12 - 35 • Terms & Conditions : ◦ Art 12-13, 31, 33 - 35 • Substantive Rights ◦ Equality(14 -18) ◦ Freedoms(19) ◦ Life & Liberty (21) ◦ Crim. Justice (20 & 22) ◦ Exploitation (23-24) ◦ Religion (25-28) Cultural, Edu, Minority (29-30) ◦ Remedies : 32	Part IV Art 36 - Art 51	Part IVA : Art 51A
Part of Original Constitutional Text	Yes	Yes	Yes	No (via 42nd CA, 1976)
Source of Inspiration	Objectives Resolution	US Constitution Bill of Rights	Irish Constitution	USSR
Purpose	Interpretation Aid, Key to minds of Constitution Makers	Political & Civil Democracy	Socio Economic Democracy, fundamental for governance	Citizen Expectations
Independent Source of Legis. & Exec. Power	No	Yes	Yes	Yes
Independent Limitation on Legis. & Exec Power	No	Yes	No	No
Source of Judicial Power	No	Yes	No	No
Legal Status	No independent legal status	Enforceable by Legislation, Executive Action, Enforceable IN a court of Law (higher judiciary)	Enforceable by Legislation, Executive Action, NOT Enforceable IN a court of Law (higher judiciary)	Enforceable by Legislation, Executive Action, NOT Enforceable IN a court of Law (higher judiciary)
Obligation on State	None	Negative	None (It is not compulsory for the State to make laws or provisions to implement DPSPs)	None
Obligation on Citizens	None	Negative but only for those rights that are available against individuals as well.	None	None
Amenability (subject to Basic Structure Doctrine)	CA u/a Art 368 Spl. Maj. II	CA u/a Art 368 Spl. Maj. II	CA u/a Art 368 Spl. Maj. II	CA u/a Art 368 Spl. Maj. II

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Classification of Rights

Criteria	Fundamental Right	Constitutional Right	Legal /Statutory Right
Placement	Part III of the Constitution	Constitution but not in Part III	Any other law
Enforcement mechanism in a court of law	Art 32 & 226 read with art 13(2) Both SC and HC have similar powers (Art 32 and 226)SC can be directly sought (Art 32)	Nothing specifically mentioned in the Constitution, so procedures of Statutory Rights apply	HC only, unless alternate legal remedy exists
Amenability (Subject to Basic Structure)	Constitutional Amendment u/a Art 368 Special Majority II	Constitutional Amendment u/a Art 368 Special Majority II	Simple Majority
Speciality	No law can violate a FR [Art 13(2)]	None	None
Example	Right to Life & Personal Liberty (Art 21)	Right to Property, Right to Vote	Consumer Rights, Right to Contest Elections

Classification of FR

Basis	Nomenclature & Meaning	Examples
Coverage	Citizen Rights - would be explicitly mentioned for each right	Art 29 : Cultural and Educational Rights
	Universal Rights - 'person' shall be mentioned for the right and/or courts shall determine if applicable to non citizens, artificial persons (organisations) etc.	Art 25 : Freedom of conscience and free profession, practice, and propagation of religion
Against	State : would be explicitly mentioned for each right, meaning and interpretation of State as per Art 12 would apply	Art 15(1): State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth, or any of them.
	Non State : 'State' would not be mentioned, can be enforced against non state actors as well in addition to State	Art 21: Protection of Life and Personal Liberty
T&C	Absolute Rights : Usually declaratory in nature, and do not contain any reasonable restrictions	Art 17: Abolition of untouchability
	Non Absolute : Contains reasonable restrictions	Art 19(1)(a) freedom of speech subject of reasonable restrictions as per Art 19(2)
Sufficiency	Self Executory Rights : Rights which do not need any additional law to implement them	Art 14: Equality Before Law
	Mandatory Non Self Executory : Rights which necessarily need to be furthered by an additional law or measure.	Art 23: Prohibition of traffic in human beings and forced labour
	Non mandatory Non Self Executory : Rights which do not necessarily require additional laws or measures to be made but the State can make laws to further them. These are also called non compulsory rights.	Art 15(3) : Nothing in Art 15 shall prevent the State from making any special provisions for women and children.

Classification of DPSP

Basis	Nomenclature & Meaning	Examples
Nature	Gandhian : Grassroot/Conventional	Art 40 : Village Panchayats
	Socialist : Equitable distribution	Art 39A : Legal Aid
	Liberal/Intellectual : Remainders	Art 44 : Uniform Civil Code

Correlations

Possibility	Correlation
Rights & Duties	Yes
UDHR (1948) & Preamble, FR, DPSP, FD	Yes
FR & FD	No
FR & DPSP	No
DPSP and FD	No
FR & LR (Legal Rights)	No
FD & LD (Legal Duties)	No

International HR Doc Status

International HR Document	India's Status
UHDR (not legally binding)	Supported
ICCPR, ICESCR, CEDAW(Women), CRC(Child), CRPD(Disabilities), ICERD(Racial Discrimination), ILO Conventions (Forced & Child Labour)	Ratified
CAT(Torture)	Signatory

Important Additions

Preamble :

1. **42 CA 1976 :**
   a. Socialism, Secularism, Integrity

Fundamental Rights :

1. **86th CA 2002**
   a. Art 21A : Right to Education
2. **97th CA 2011 :**
   a. Art 19(1)(c) : Added cooperative societies to the freedom to form association and unions
3. **103 CA 2019 :**
   a. Art 15(6) and Art 16(6) : 10% EWS Quota in Education and Public Employment

Directive Principles of State Policy

1. **42 CA 1976**
   a. Art 39(f): Secure opportunities for healthy development of children
   b. Art 39A: Equal justice and free legal aid
   c. Art 43A : Participation of workers in management of industries
   d. Art 48A : Protection and improvement of environment and safeguarding of forests and wild life
2. **44 CA 1978**
   a. Art 38 : State to secure a social order for the promotion of welfare of the people
3. **86 CA 2002**
   a. Art 45 : Early childhood care and education to children below the age of six years
4. **97 CA 2011**
   a. Promotion of co-operative societies

Fundamental Duties

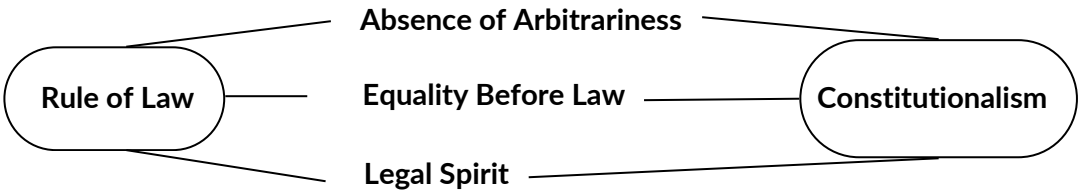
1. **42 CA 1976**
   a. Art 51A : Fundamental Duties were added
2. **86 CA 2002**
   a. parent or guardian to provide opportunities for education to his child between the 6 - 14 years

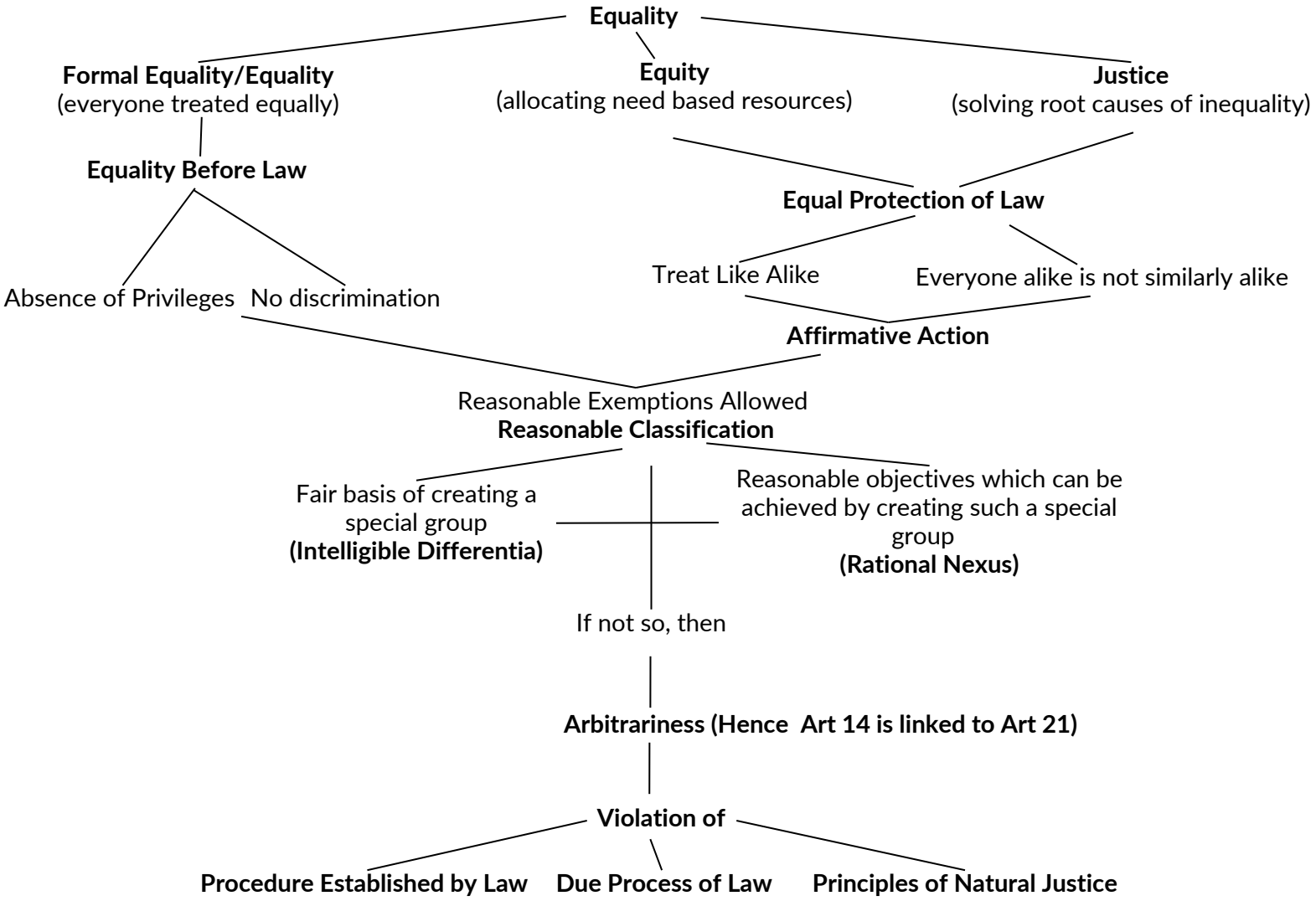
Criteria	Issue
Historical Inspiration	Objectives Resolution - J. Nehru - Constituent Assembly 1946
Special Phrasing	'key to Constitution makers' minds'; 'Identity Card'; 'Political horoscope'
Part of the Constitution	Yes (Kesavananda Bharti v. State of Kerala, 1973)
Relationship with Basic Structure Doctrine	Objectives are a part of Basic Structure, the Preamble as a whole is not.
Amendment Procedure	Under Art 368 without State Ratification (Special Majority II)
Extent of Amendment	Changes can be made without altering the meaning of objectives
Any Changes	3 additions via 42nd CA 1976 : Socialism, Secularism, Integrity
Legal Status	1. Not a source of legislative or executive power 2. Not enforceable in a court of law, cases cant be initiated solely on its basis 3. Judgements cant be given solely on the basis of it 4. No independent legal status 5. Can be supplemented as a referral source with an enforceable provision 6. Enacting Clause : Few constitutional provisions enforced on 26 Nov 1949 a. 5, 6, 7,8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392, 393, 394

Phrase	Meaning
Soveriegn	External and Internal Non Interference Independent Nation
Socialist	State Intervention for Welfare
Secular	Religious Freedom, No State favourites,
Democratic	Reflection of Public Will, Ministerial responsibility towards Legislature
Republic	Elected Head of State

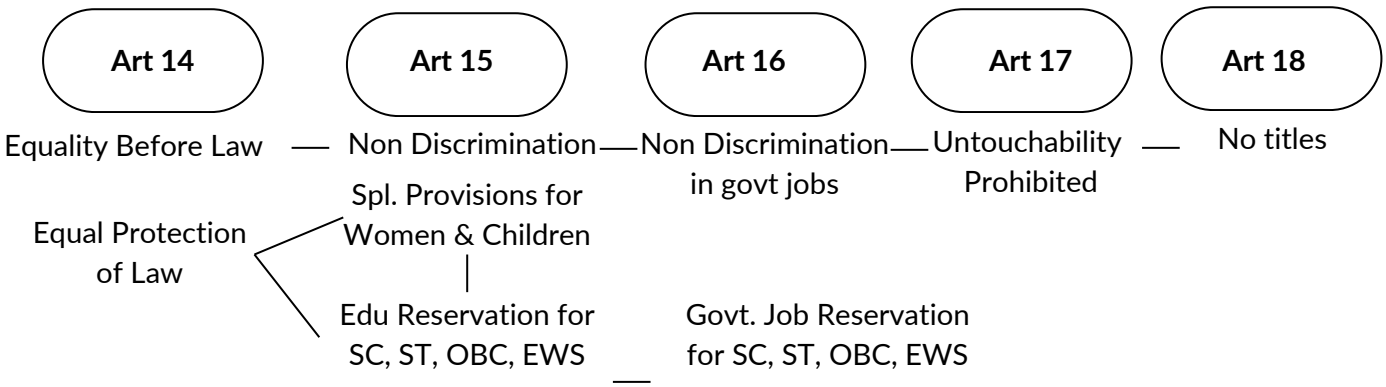
Phrase	Meaning
Justice	Addressing root causes of inequality (Social, Economic, Political)
Liberty	Max development of oneself No/Limited external constraints (thought, expression, faith, belief, worship)
Equality	Absence of Privilege, Similar Treatment (Status & Opportunity)
Fraternity	Common Sense of belonging
Unity	Social and Cultural Harmony
Intergrity	Territorial and National Int. Paramount

Reflections of Equality





Provisions Overview



Provision	For	Against	Method	Key Components
Art 14	All	State	Self Executory	1. **Components** a. **Equality Before Law & *Courts of Law*** b. Equal Protection of Law 2. **Exemptions** a. Art 31C : Laws implementing Art 39(c) and (d) b. Art 105/194 : MP/MLA Immunities/Privileges c. Art 359(1) : Emergency Proclamation d. Art 361 : President & Governor Immunities i. Professional Actions : Absolute Civil and Criminal ii. Personal Actions : Criminal till holding office, and 2 months notice prior starting civil proceedings e. Art 361A : Immunity while publishing true reports of Parliamentary Proceedings f. Diplomatic Immunity
Art 15(1)	Citzens	State	Self Executory	1. No discrimination on basis of **CRRSP (Caste, Religion, Race, Sex, Place of Birth)**
Art 15(2)	Citizens	All	Self Executory	1. No discrimination on basis of **CRRSP (Caste, Religion, Race, Sex, Place of Birth)** while a. Accessing public recreational facilities irrespective of ownership b. Accessing public utilities maintained by the State
Art 16(1)	Citzens	State	Self Executory	Equal opportunity in State employment
Art 16(2)	Citizens	State	Self Executory	No discrimination on basis of DR - CRRSP **(Descent, Residence,** Caste, Religion, Race, Sex, Place of Birth) in govt jobs.
Art 17	All	State	Non Self Executory	1. Untouchability of ANY kind is prohibited and should be made an offence by law by the State a. State has made Protection of Civil Rights Act, 1955 and Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989
Art 18	All	State	Self Executory	1. State can give Military/Academic Titles only. (Awards are not Tittles) 2. Citizens can't accept foreign titles 3. Foreigners working for State can't accept foreign titles 4. Anyone working for State can't accept foreign office and consideration of any kind.

EPL Centric Rights

Provision	For	Against	Method	Key Components
Art 15(3)	All women & children	State	Non Self Executory	State can make special provisions for women & children
Art 15(4)	Citizens	State	Non Self Executory	1. State can make special provisions for SC, ST, SEBC (SEBC and OBC are interchangeably used) a. Added via 1st CA, 1951
Art 15(5)	Citizens	State	Non Self Executory	1. State can make provision **ONLY by law** regarding admission to institutions such as State aided/State unaided/private educational institutions except minority educational institutions a. Added via 93 CA, 2005
Art 15(6)	Citizens	State	Non Self Executory	1. State can make any provision, regarding admission to institutions such as State aided/State unaided/private educational institutions except minority educational institutions for EWS and if provision is about reservation, it can't more than 10% and would be separate from other reservations. a. Added via 103 CA, 2019
Art 16(3)	-	State	Non Self Executory	Parliament can make laws allowing specific state or UT residential requirements for those state or UT govt jobs.
Art 16(4)	Citizens	State	Non Self Executory	State can make special provisions for Backward Classes (now read as OBCs)
Art 16(4A)	Citizens	State	Non Self Executory	1. State can make special provisions providing reservation for **SC and ST** are recruitment at entry and promotions retaining consequential seniority a. Overall provision added via 77th CA, 1995 and Consequential Seniority added via 85th CA, 2001
Art 16(4B)	-	State	Non Self Executory	1. Carry forward policy for all reserved sections **except EWS** a. Added via 81st CA, 2000
Art 16(5)	All	State	-	People heading or managing religious institutions can be from that specific religion
Art 16(6)	Citizens	State	Non Self Executory	1. State can make any provision providing reservation of 10% in govt jobs for EWS over and above other sections a. Added via 103 CA, 2019

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Overall Policy Outline

Group -> Criteria	SC	ST	OBC	EWS
Specified By	The President, by public notification as per Art. 341 of the Constitution.	The President, by public notification as per Art. 342 of the Constitution.	The President, by public notification as per Art. 342A of the Constitution.	Government Policy; Effectuated via Government notification.
Centre State Parity (Valid pan India)	Yes	Yes	No (Separate Central & State OBC)	Yes
Inter State Parity (Issued pan India)	No	No	No	No
Creamy Layer	Not Applicable	Not Applicable	Applicable; As per set criteria based on Household Income and Parents' Rank in Government service.	Not Applicable
Sub Classification	No formal sub classification at national level; states can sub-classify	No formal sub classification at national level; states can sub-classify	No formal sub classification at national level; Applicable in some states.	No formal sub classification

Education & Employment Reservation

Group -> Criteria	Enabling Provisions	Method	Quantum	Special Remarks
School Education	Art. 15(5) Art. 15(6) Art. 21-A.	Sec. 12, RTE Act, 2009;	Min 25%	Basis - EWS - Public & Private Schools
Higher Education	Art. 15 (5), Art. 15 (6)	Central Educational Institution (Reservation in Admission) Act, 2006; Respective state laws	15% for SC 7.5% for ST 27% for OBC 10% for EWS	• SC ST OBC Cap at 50% • Does not apply to minority institutions
Public Employment	Art. 16 (4), (4A), (4B),(6) Art. 335 (admin efficiency must not be compromised while giving reservation)	Guidelines, Orders and Notifications etc.	15% for SC 7.5% for ST 27% for OBC 10% for EWS	• SC ST OBC Cap at 50% • Promotion Reservation with Seniority only for SC ST • Carry Forward for SC ST OBC not for EWS

General Provisions

Art 46: Directs the State to promote the educational and economic interests of SCs, STs, and other weaker sections and protect them from social injustice and exploitation.

Art 340: Empowers the President to appoint a commission to investigate the conditions of backward classes and recommend measures for their welfare. (Hence, NCSC, NCST, NCBC)

- **SC on Education Reservation**
  - **State of Madras v. Champakam Dorairajan (1951)**
    - Declared castebased reservations in educational institutions unconstitutional under Art 29(2), leading to the First Constitutional Amendment (1951), which inserted Art 15(4).
  - **Indra Sawhney v. Union of India (1992)**
    - Upheld 27% OBC reservation in employment and introduced the concept of the "creamy layer" for OBCs but ruled that reservations do not apply to promotions. This principle was later extended to educational institutions.
  - **T.M.A. Pai Foundation v. State of Karnataka (2002)**
    - Held that private unaided institutions have the right to admit students but cannot be forced to implement state reservations.
  - **P.A. Inamdar v. State of Maharashtra (2005)**
    - Ruled that reservations cannot be imposed on private unaided institutions, leading to the 93rd Constitutional Amendment, inserting Art 15(5).
  - **Janhit Abhiyan v. Union of India (2022)**
    - Upheld the 103rd Constitutional Amendment, validating the 10% EWS reservation.

- **SC on Employment Reservation**
  - **Indra Sawhney v. Union of India (1992):**
    - Upheld OBC reservations under Art 16(4) but excluded reservations in promotions.
    - Capped total reservations at 50%, barring exceptional circumstances.
    - Introduced the concept of the "creamy layer" to exclude economically advanced sections within OBCs from reservation benefits.
  - **M. Nagaraj v. Union of India (2006):**
    - Upheld constitutional amendments allowing reservation in promotions (Arts 16(4A) and 16(4B)).
    - Mandated states to provide quantifiable data on backwardness, inadequate representation, and administrative efficiency before implementing such reservations.
  - **Rajeev Kumar Gupta v. Union of India (2016):**
    - Allowed reservation in promotions for persons with disabilities under the Persons with Disabilities Act, 1995, stating it does not violate Art 16.
  - **Jarnail Singh v. Lachhmi Narain Gupta (2018):**
    - Removed the requirement to prove "backwardness" for SCs/STs while implementing promotion reservations.
    - Reaffirmed that states must collect quantifiable data on inadequate representation and ensure administrative efficiency.
  - **Janhit Abhiyan v. Union of India (2022):**
    - Upheld the constitutionality of the 103rd Amendment, which introduced EWS reservations.
  - **State of Punjab v Davinder Singh (2024)**
    - Upheld the constitutional validity of subclassification in the Scheduled Caste and Scheduled Tribe categories.

(2026) The Supreme Court ruled that a person professing any religion other than Hinduism, Buddhism, or Sikhism cannot be recognised as a member of a Scheduled Caste

Freedom (Only for Citizens)	Reasonable Restrictions (only by Law)	Outcomes
Speech & Expression 19(1)(a)	1. **Sovereignty & Integrity#** 2. Security 3. **Foreign Friendly* relations** 4. **Public Order*** 5. Decency/Morality 6. Contempt of Court 7. Defamation 8. **Offence Incitement*** [under Art 19(2)] (*Added via 1st CA, 1951) (#Added via 16 CA, 1963)	• **SC Interpretations** ◦ Against State and other citizens both ◦ Right to information (RTI Act) ◦ Freedom to remain silent (read with Art 20) ◦ Includes freedom of press ◦ Voters have a right to know (Electoral bonds) ◦ **Censorship** ▪ Against arbitrary internet shutdowns
Peaceful Assembly without Arms 19(1)(b)	1. **Sovereignty & Integrity#** 2. Public Order [under Art 19(3)] (#Added via 16 CA, 1963)	• **SC Interpretations** ◦ **Dissent** ▪ Does not include right to strike ▪ Includes the right to peaceful protest ▪ Sedition only when speech incites violence (BNS does not include explicitly include Sedition anymore)
Form associations or unions or **co- operative societies^** 19(1)(c) (^Added via 97 CA, 2011)	1. **Sovereignty & Integrity#** 2. Public Order 3. *Morality* [under Art 19(4)] (#Added via 16 CA, 1963)	• **SC Interpretations** ◦ Right to not join ◦ Does not include the right to be State recognised
Move freely [19(1)(d)], reside, settle in India's Territory [19(1)(e)]	1. General Public Interest 2. ST Interest [under Art 19(5)]	• **SC Interpretations** ◦ Inter and intra state movements included but subject to restrictions ◦ Arrests, Imprisonments, Preventive Detention, Containment etc permissable
POTB (Profession, Occupation, Trade, Business) [19(1)(f)]	1. General Public Interest 2. **Professional/Technical Qualifications** 3. **Nationalisation*** [under Art 19(6)] (*Added via 1st CA, 1951)	• **SC Interpretations** ◦ Education is a charitable activity and can be subjected State Regulation such as Art 21A etc.

Key Provisions of the Information Technology (IT) Act, 2000:

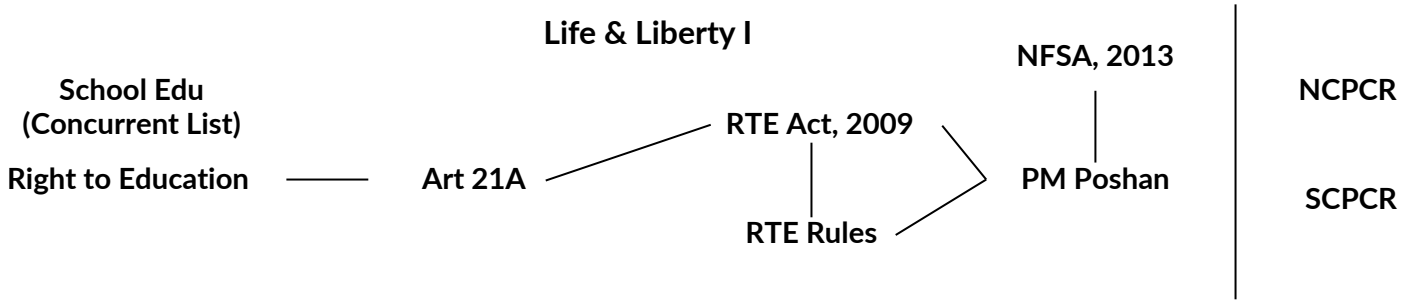
1. **Legal Recognition of Electronic Records:** Recognises electronic records and signatures as legally valid.
2. **Electronic Governance:**
   - Enables e-filing and digital transactions, recognition of contracts formed through electronic means.
3. **Compensation** for :unauthorised access or damage to computer systems and failure to protect sensitive personal data.
4. **Cybercrimes and Offences:**
   - Section 65: Tampering with computer source documents.
   - Section 66: Identity theft, impersonation, and fraud.
   - Section 66F: Cyber terrorism.
   - Section 67: Publishing obscene content electronically.
   - Section 69: Government's power to intercept, monitor, and decrypt information.
   - Section 69A: Power to block public access to information.
5. **Intermediary Liability:**
   - Section 79: Provides conditional immunity to intermediaries from liability for user-generated content.
6. **Cybersecurity:**
   - Section 70B: Establishes the Indian Computer Emergency Response Team (CERT-In) for cybersecurity incident response.
7. **Jurisdiction:**
   - Section 75: IT Act applies to offences committed outside India if they impact an Indian system.
8. **Miscellaneous:**
   - Section 81: The IT Act overrides other laws in case of conflicts.
   - Section 85: Companies are liable for cybercrimes committed by employees.

Key Provisions of the IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021:

1. **Due Diligence by Intermediaries:**
   - Publish user policies prohibiting illegal content (e.g., child abuse, hate speech, misinformation).
   - Remove unlawful content within 36 hours of a government or court order.
   - Retain user data for 180 days after account closure.
   - Report cybersecurity incidents to CERT-In.
2. **Grievance Redressal Mechanism:**
   - A three-tier structure for grievance redressal: self-regulation by publishers, self-regulation by self-regulating bodies, and an oversight mechanism by the Central Government.
   - Grievance Officer: Appointed by intermediaries to handle complaints within 24 hours and resolve them within 15 days.
   - Grievance Appellate Committee (GAC): Established by the government to review complaints that remain unresolved.
3. **Significant Social Media Intermediary (SSMI) Compliance:**
   - Platforms with a large user base (threshold set by the government) must:
     - Appoint Chief Compliance Officer, Nodal Contact Person, and Resident Grievance Officer.
     - Publish monthly compliance reports.
     - Enabling identification of the first originator of information on its platform
     - Deploying technology-based measures to proactively identify and remove information depicting child sexual abuse or rape.
     - Providing users with a mechanism to voluntarily verify their accounts.
4. **Content Moderation & Fact-Checking:**
   - Online curated content must be classified into categories (U, U/A 7+, U/A 13+, U/A 16+, A) based on themes, violence, nudity, sex, language, drug use, and horror.
   - Prohibition of Misinformation: False content about government business can be flagged by fact-check units.
   - Platforms must ensure age-gated content for minors.
   - Publishers of news and current affairs content and online curated content must adhere to a Code of Ethics. The Ministry of Information and Broadcasting oversees adherence to the Code of Ethics, develops an Oversight Mechanism, and can issue guidance and advisories to publishers.
5. **Digital News and OTT Regulations:**
   - Online publishers must adhere to a three-tier grievance mechanism for digital content.
   - OTT platforms must self-classify content based on age appropriateness.
6. **Online Gaming Regulations (2023 Amendments) :**
   - Online games involving real money must be verified by self-regulatory bodies.
   - Ban on betting and harmful online games.
   - Gaming platforms must conduct user KYC verification.

Provision	For	Against	Method	Key Components
Art 21	All	State & Private	Self Executory	1. **Components : Life & Personal Liberty** 2. **Inclusions** a. Livelihood & Shelter b. Dignified death & living will subject to conditions c. **Privacy (Puttuswamy, 2017)** i. decriminalisation of homosexuality ii. right to marry not available for same sex couples d. **Justice Related** i. Free Legal Aid ii. Speedy Trial e. **Environment Related** i. Against climate change (2024) ii. polluter pays iii. inter generational parity iv. sustainable development v. clean environment 3. **Exception** a. **Procedure Established by Law :** Procedure as per the law should be followed irrespective of it being fair or not. b. **Due Process of Law** implied (Maneka Gandhi - 1980) i. Procedure as per law should be fair ii. Principles of Natural Justice also implied to check fairness of **procedural law**, PoNJ includes 1. Nemo judex in causa sua : No one should be made a judge in their own case and Rule against bias 2. 'Audi alteram partem : no one should be left unheard 3. PoNJ primarily applies to administrative or quasi judicial actions/authorities iii. Later **substantive law** should be fair also included within meaning of Due Process of Law (several post Maneka Judgements) 4. **Interrelationships (As per Maneka Gandhi Case)** a. Issues concerning both 19 & 21 : 14, 19, 21 should not be violated b. Issues concerning only 21 : 14 and 21 should not be violated
Art 21A*	All children (6-14 years)	State	Non Self Executory	1. Supplemented by RTE Act & Rules 2. Enables reservation in School Education 3. Applies to private unaided schools as well. 4. Does not apply to minority educational institutions under Art 30

*86th CA, 2002 is the only CA that amends FR, DPSP, FD simultaneously. Added Art 21 A, changed Art 45 (DPSP : from 6-14 to 0-6 years), added Art 51A(k) (FD)



Key Provisions of RTE Act, RTE Rules, and PM Poshan Scheme

1. Right of Children to Free and Compulsory Education Act, 2009 (RTE Act)

- Every child (6-14) has the right to free and compulsory education in a neighbourhood school.
- Requires private unaided schools to reserve 25% of seats for children from economically weaker sections (EWS) and disadvantaged groups.
- Schools cannot demand any donation or fee for admission.
- No child can be denied admission for lack of documents.
- No child shall be subjected to physical or mental harassment.
- National Council for Teacher Education (NCTE) is authorized to prescribe minimum qualifications for teachers in elementary education (Classes I-VIII)
  - Passing the Teacher Eligibility Test (TET) is mandatory for appointment as a teacher in both government and private schools
  - TET is conducted by the appropriate government (Central or State) following NCTE guidelines
- A defined teacher student ratio is to be maintained to ensure quality education.
- National and State Commissions for Protection of Child Rights monitor the implementation.
- School Management Committees to be setup to ensure participatory governance in schools
- Schools must fulfil set criteria to be eligible to be a RTE School.
- States are required to frame their own rules under the RTE Act while adhering to its core principles

2. Right of Children to Free and Compulsory Education (Amendment) Rules, 2024 (RTE Rules)

  - Mandatory exams for Class 5 and 8.
  - Students failing to meet the criteria will receive additional instruction and re-examination within two months. If they fail again, they may be held back in Class 5 or 8.
  - Schools cannot expel any student before completing elementary education.

3. Pradhan Mantri Poshan Shakti Nirman (PM POSHAN)

Previously known as the Mid-Day Meal Scheme, PM POSHAN (2021-26) provides hot cooked meals to children in Government and Government-aided schools. New features added :

- Inclusion of Balvatika: Pre-school (Balvatika) children are also eligible.
- Tithi Bhojan: Community participation in providing special meals on festivals.
- School Nutrition Gardens: Schools encouraged to grow vegetables for meals.
- Social Audit: Mandatory in all districts for transparency.
- Vocal for Local: Use of locally sourced food to promote millets, vegetables, condiments, etc.
- Special Focus: Additional nutrition for aspirational and tribal districts.
- Disaster Management: Provision of meals or Food Security Allowance during school closures due to disasters.
- Quality & Hygiene: Schools must procure Agmark-certified food, and meals must be tasted by teachers before serving.

- Key Points
  - There is no compulsion on the child to seek admission only in the school in his or her neighbourhood.
  - The term 'free education' is explained to mean that no child shall be liable to pay any kind of fee or charges or expenses which may prevent him or her from pursuing and completing elementary education
  - Children above six years, who have either not been admitted to any school or, having been admitted have not completed elementary education and have dropped out, the right to be admitted to a school in a class appropriate to his or her age for completing elementary education.
  - ***Private aided and unaided institutions have no obligations for age appropriate admissions.***
    - ***The provision mandates that all private unaided schools reserve 25 percent seats in class I for children from the neighbourhood who belong to weaker sections and disadvantaged groups***

Stakeholders

Criminal Law & Procedure
(Concurrent List)
- BNS (IPC)
- BNSS (CrPC)
- BNA (IEA)

Police (State List)
- Public Order
  - Police Act, (1881)
  - State Acts & Manuals

Prosecutors (BNSS/CrPC)
- Represents State at criminal trial

Courts
- SC/HC
- Sessions/District Judge
- Chief Judicial Magistrate (JM)
- JMFC (First Class)
- JM SC (Second Class)
- Executive Magistrate
- *(Descending order of awarding punishments)*

Prisons
(State List)
- Prison Act, 1884
- Transfer of Prisoners Act, 1950
- Repatriation of Prisoners Act, 2003
- Model Prisons Act, 2023

Crime & Offence

- All offences are crimes, but not all crimes are offences under Indian law.
- Offences are violations of the law that are defined and punishable under specific laws, while crimes are broader wrongful acts that may or may not be defined and punishable under Indian law. Eg. Marital Rape is a crime but not an offence.

Types of Offences

Bailable
- Bail as a right,
- less serious offences,
- can be granted by courts and police
- (bail as such not defined)

Non Bailable
- Discretionary Bail,
- More serious offences,
- Can only be granted by courts

Cognizable
- Arrest w/o warrant
- Investigation can begin without Court permission
- FIR must be registered immediately

Non - Cognizable
- Arrest only upon warrant
- No investigation w/o court permission
- No direct FIR, complaint forwarded to Court/Magistrate

Compoundable
- Affect individuals
- Can be settled mutually between parties
- Sometimes, court's permission is required to settle.

Non -Compoundable
- Affect individuals & society
- Can't be settled

Journey of a Crime

Reporting → **Investigation** ⟷ **Trial**

- Can be reported to
  - Police
  - Magistrate
- Witness, Evidence, Forensics are examined.
- ***Closure Report/ Charge Sheet***
- Acquitted (Not guilty)
- Convicted (Guilty)/Sentencing
  - Death (rarest of the rare)
  - Jail (life - 14, tenure) {lifetime in some cases)
  - Fine

- FIR not defined anywhere
- **Arrest:** To take a person into legal custody. It is done by Police officers, to prevent escape and begin Investigation.
- **Custody:** The Act of detention of a person by legal authorities. Arrest is just the initial action that leads to custody.
- **Remand:** Sending an accused person to judicial custody (jail) or police custody after arrest while awaiting trial or further investigation. It is ordered by a magistrate. I.e., remand leads to Custody.

- Summons (Arrest, Search, Seizure) can be issued by Court/Magistrate only
- Accused Arrested (Warrant or w/o warrant)
  - Produced before Magistrate within 24 hours
    - Custody requested if further needed
      - Police Custody : Shorter, direct police investigation
      - Judicial Custody : Longer, police need court permission to interrogate
  - Plea Bargaining
    - Introduced in 2005, defendant/accused agrees to plead guilty in exchange for concessions from the prosecutor or court.
    - Does not apply to offences leading to 7+ years of imprisonment, women & children, adversing socio economic conditions of society

- ***Sentencing can be reversed, lightened, reduced by President/Governor subject to Constitutional division of Union & State Legislative Powers.***
- ***Jail Time can also be shortened/adjusted subject to laws - Parole - discretionary, Furlough - temporary due to an emergency***

Constitutional Protections

Provision	Remarks
Art 20(1)	• No ex post facto criminal law ◦ criminal law or liability cannot be applied retrospectively ◦ does not apply to procedural changes
Art 20(2)	• Double Jeopardy ◦ autrefois convict : if convicted for an offence, cannot be prosecuted and/or punished again for the same offence. ▪ does not apply to administrative enquiries ◦ autrefois acquit (does not apply in India) : even if acquitted for an offence, cannot be tried again for the same offence
Art 20(3)	• Self Incrimination ◦ person has to officially 'accused' of an offence ◦ can't be forced to be a witness or give evidence against themselves
Art 22	• Arrest ◦ available for all ◦ right to legal counsel ◦ right to be informed ◦ to be produced before a magistrate within 24 hours (travel time and holidays not counted) • Preventive Detention (Union & Concurrent List) ◦ not available for enemy aliens ◦ right to be informed ◦ no right to legal counsel, but can challenge detention order ◦ Preventive Detention laws cannot allow for than 3 months of detention ▪ In case more, advisory board comprising of HC Judges or equivalent must approve ◦ **Major Laws : UAPA, PMLA '02, National Security Act '80, AFSPA '58, Official Secrets Act 1923** ◦ UAPA, 1967 (4 major amendments : '04, 08, '12, '19) ▪ Extends to the entire country and also applies to Indian citizens outside India. ▪ Establishes a Tribunal to adjudicate if an association should be banned. ▪ Defines terrorist acts, including acts causing harm to India's unity, integrity, security, or economic security. • Allows seizure of proceeds of terrorism, including funds and assets used for terrorist purposes. • Individuals can also be declared as terrorists not just organisations. • Provides death penalty or life imprisonment for terrorist acts. • Denies bail if prima facie evidence exists against the accused. • Allows electronic evidence & intercepted communications as admissible evidence.

Unique features of new criminal laws

BNS (IPC)

- Adds terrorism & organised crime as offences
- Includes crimes such as kidnapping, extortion and cyber-crime committed on behalf of a crime syndicate. Petty organised crime is also an offence now
- Murder by a group of five or more persons on grounds of certain identity markers such as caste, language or personal belief will be an offence with penalty life imprisonment or death, and with a fine

BNSS (CrPC)

- Mandates forensic investigation for offences punishable with seven years of imprisonment or more.
- All trials, inquiries, and proceedings may be held in electronic mode. Production of electronic communication devices, likely to contain digital evidence, will be allowed for investigation, inquiry, or trial.
- If a proclaimed offender has absconded to evade trial and there is no immediate prospect of arresting him, the trial can be conducted and judgement pronounced in his absence.

Right Against Exploitation

Provision	Important Aspects
Art 23(1)	• Against State & Private : People's Union for Democratic Rights vs. Union of India (1982) • Human Trafficking : Exploitation of any kind, consent is immaterial • Begar : Forced work without pay • Forced Labour : Forced with less than minimum wage pay or no pay • Bonded Labour : Forced work due to inability to pay debt ◦ Bandhua Mukti Morcha v. Union of India (1984) • Trafficking defined under BNS, 2023; ◦ Included as an Organised Crime under BNS, 2023. ◦ Covers slavery as well as sexual exploitation. • International Instruments (India has ratified both) ◦ UN Convention against Transnational Organised Crime, 2000 ▪ Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (Palermo Protocol)
Art 23(2)	• Allows for State to impose compulsory service without discriminating on religion, race, caste, or class or a combination of them.
Art 24	• Prohibits child labour below age of 14 in hazardous places. • Implemented by Child Labour (Prohibition and Regulation) Act, 1986 (Conditions added in 2016 to balance with RTE) : ◦ 0-14 : No child labour except in Entertainment and Family Establishments without affecting their studies ◦ 14-18 : No child labour in Mines, Explosives, Inflammable Substances Industries

Feature	Immoral Traffic (Prevention) Act, 1956	Bonded Labour System (Abolition) Act, 1976	Protection of Children From Sexual Offences Act, 2012	Juvenile Justice Act, 2015
Purpose	Trafficking for commercial sexual exploitation.	Exploitation of persons as bonded labour.	Protects children from sexual abuse and exploitation	Children at risk of trafficking & forced labour
Rescue Investigation Trial	Trafficking Police Officers, Special Courts	District Magistrate, State govt may allow Executive Magistrate to hear cases	Preferably women officers, Special Courts	Child Welfare Police Officers, Special Courts
Relief and Rehabilitation	Protective Homes, intermediate safe custody of victims.	Vigilance committees focus on providing economic rehabilitation, and credit to freed labour	N.A.	Child Welfare Committee decides whether to send the child to parents or a rehabilitation home.

Labour Policy

ILO (HQ - Geneva, Swiss)

- India is a founder member since 1919
- Tripartite character : At every level of ILO, Governments are associated with the two other social partners, namely the workers and employers. All the three groups are represented on almost all the deliberative organs of the ILO and share responsibility in conducting its work
- Core Conventions ratified by India
  - Forced Labour Convention (No. 29)(1930 & 2014 Protocol)
  - Abolition of Forced Labour Convention (No.105) (1957)
  - Equal Remuneration Convention (No.100)(1951)
  - Discrimination (Employment Occupation) Convention (No.111)(1958)
  - Minimum Age Convention(No.138)(1973)
  - Worst forms of Child Labour Convention (No.182)(1999) (Universally ratified by all ILO Member states)

New Labour Laws (Labour = Concurrent List)

New Law	Laws Subsumed	Important Features
Code on Wages 2019	1. Payment of Wages Act, 1936 2. Minimum Wages Act, 1948, 3. Payment of Bonus Act, 1965 4. Equal Remuneration Act, 1976	• Code will apply to all employees • Wages include salary, allowance, or any other component expressed in monetary terms. • Does not include allowances & bonuses • Centre will fix a floor wage, taking into account living standards of workers, can vary geographically • Minimum Wage > Floor Wage
Industrial Relations Code, 2020	1. Industrial Disputes Act, 1947, 2. Trade Unions Act, 1926, 3. Industrial Employment (Standing Orders) Act, 1946	• 10% min workers to be a part of Trade Union for it to be registered • Provides for Negotiation Unions • Prohibits employers, workers, and trade unions from committing any unfair labour practices
Occupational Safety, Health and Working Conditions Code, 2020	1. Factories Act, 1948 2. Mines Act, 1952, 3. Contract Labour (Regulation and Abolition) Act, 1970. 4. *10 other laws*	• Establishments employing at least 10 workers • Employers to ensure hazard free work place, annual health checkups,
Code on Social Security, 2020	1. Employees' Provident Funds and Miscellaneous Provisions Act, 1952; 2. Maternity Benefit Act, 1961; 3. Unorganised Workers Social Security Act, 2008 4. *6 other laws*	• Gig workers - workers outside of the traditional employer-employee relationship (e.g., freelancers) • Platform workers - access other organisations or individuals using online platforms and earn money by providing them with specific services. • Unorganised workers- home-based and self-employed workers.

Laws governing Provident Fund, Child Labour, Manual Scavenging, Bonded Labour not subsumed under any Labour Code

<u>POSH Act, 2013 (Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act)</u>

- Organisations with 10 or more employees must constitute an ICC to address sexual harassment complaints.
- The ICC should have a woman presiding officer, at least two employee members, and one external member with expertise in sexual harassment issues
- Local Committee set up at the District Level
- Vishakha v. State of Rajasthan (1997) [Victim was Bhanwari Devi, Vishakha was the name of the NGO]
  - Sexual harassment as a violation of Art 21
  - Court defined sexual harassment and issued guidelines as Judicial Legislation in force until 2013 legislation.

Religion Related Provisions

Source	Provision	Additional Info
Preamble	• Secularism (Added via 42nd CA, 1976)	• India is secular but not an anti-religious State - Seervai • Based on principles of Equality, Liberty, and Neutrality
Art 25	• conscience, profess, practice, propagate • Available for all	• Right to convert not a FR • Subject to the following limitations ◦ Public order ◦ Health ◦ Morality ◦ Other provisions of Part III ◦ Laws ▪ governing non religious aspects of a religious practice, ▪ social reform and welfare ▪ assuring access to all sections of Hindus (incl. Buddhists, Jains, Sikhs) to public Hindu religious institutions
Art 26	• *Religious Denominations (RD)* can ◦ establish and maintain institutions for religious and charitable purposes ◦ manage their religious affairs ◦ acquire movable and immovable property ◦ administer such property as per law • RD not defined in CoI	• As per Shirur Mutt Case (1954), has 3 components - ◦ Collection of individuals having common faith ◦ An organisation ◦ Designation of that organisation by distinctive name • Eg - Radha Swamis, Lingayats, Vaishnavas, Swetamber Jains, Gowada Saraswat Brahmins and Dawood Boharas • Charitable and religious institutions - Concurrent List ◦ Central Laws ▪ Waqf Act, 1995, The Sikh Gurdwaras Act, 1925 ◦ State Laws ▪ Karnataka Hindu Religious Institutions and Charitable Endowments Act, 1997, Andhra Pradesh Charitable and Hindu Religious and Endowments Act, 1987
Art 16(5)	• ***Law can be made ensuring members of bodies governing religious institutions are of the same religion***	
Art 27	• no specific taxes for promotion of maintenance of a specific religion or RD	• equal aid to all religions is not barred • fees can be levied for a specific religion or RD.
Art 28	• religious instruction/worship in education institutions	• No religious instruction in fully State funded Edu. Insti. • In case of Edu. Insti. run by State but established under any trust or endowment, religious instructions can be imparted if the trust or endowment prescribes. • In case of Edu. Insti. which are aided or recognised by the State, no person can be compelled to take part in religious instructions. However, voluntary participation is allowed

Art 44	• **Uniform Civil Code (Liberal/Intellectual DPSP)** • **Personal Laws - Concurrent List** ◦ SC called for UCC Implementation in Shah Bano Begum (1985), Sarla Mudgal (1995), Valentina Pereira (2019) • **Registration of Marriages compulsory as per SC Judgement** (Seema v. Ashwini Kumar, 2008) ◦ Several states have formulated laws and orders implementing the SC judgement • **Min Age to Marry** - 21 for men and 18 for women (Prohibition of Child Marriage Act, 2006) • **Live-In Relationships - (Built through SC Judgements)** ◦ Right to cohabit without marriage for consenting adults above 18 years. ◦ Women in live-in relationships are entitled to protection under the Protection of Women from Domestic Violence Act, 2005 ◦ Right to maintenance to women in live-in relationships under certain conditions ▪ Significant cohabitation period ▪ Monogamous relationship ▪ Partners of legal marriageable age ▪ Consensual relationship resembling marriage ◦ Children born from live-in relationships have property rights and are considered legitimate. ◦ No inheritance rights to each other's property unless jointly acquired

Cultural, Educational, and Minority Related Provisions

Source	Provisions
Art 29(1)	• Section of citizens residing in any part of the territory of India, having distinct script, language or culture have a right to conserve the same • No subjected to reasonable restrictions embodied in Article 19(6)
Art 29(2)	• Safeguards to all citizens including minorities against discrimination in the matter of admission to State maintained or State aided educational institutions on the grounds only of religion, race, caste, language or any of them
Art 30(1)	• Religion based and Linguistic minorities shall have the right to establish and administer educational institutions of their choice.
Art 30(1A)	• Added via 44th CA, 1978 (Abolition of Right to Property) • Govt acquisition of property of minority institutions must not dilute their parent right under Art 30(1)
Art 30(2)	• State can't discriminate against minority educational institutions while giving grants
Art 350A	• Added via 7th CA, 1956 (Enabling State Reorganisation Act, 1956) • States to provide for mother tongue medium edu. in primary edu for linguistic minorities within the states, President can also issue such directions if necessary
Art 350B	• Added via 7th CA, 1956 (Enabling State Reorganisation Act, 1956) • Special Officer for Linguistic Minorities ◦ Apptd. by President, reports to be laid before Union & State Legislatures and sent to both Govts. ◦ No qualifications, tenure, removal process mentioned.

Minorities

(Not defined in CoI)

Minorities should be less than 50% of state population
TMA Pai Foundation Case (2002)

Religion Based

National Commission of Minorities Act, 1992

1. Muslims,
2. Sikhs,
3. Christians,
4. Buddhists,
5. Jain
6. Zorastrians (Parsis)

Linguistic

Not defined

Distinct language or script

Language of the minority group need not be one of the 22 languages of VIII Schedule

State level
mother tongues are different from the principal language of the State

District/Taluka/Tehsil level
different from the principal language of the district or taluka/tehsil

Minority Institutions

A.P. Christians Medical Educational Society Case ((1986) Dayanand Anglo Vedic (DAV) College Case 2013)
Conditions -

1. Established by minority in that state
2. Administered by minority in that state
3. Primarily for benefit of minorities of that state

Aligarh Muslim University Through its Registrar Faizan Mustafa v Naresh Agarwal (2024)
3 fold test :

1. genesis of the institution
2. purpose of establishing the institution
3. steps taken to implement the establishment, such as who provided the funds, land, etc.

State Intervention in Minority Edu. Institutions

Since Education is in Concurrent List, and regulation of Higher Education is in Union List, state can prescribe minimum standards of education religious minority edu. Institutions to give recognition/equivalence (eg. UP Madrassa Act, 2004)

Reservation & Minority Institutions

SC/ST/OBC/EWS Reservation not applicable to Minority Edu. Institutions [Art 15(5), 15(6)]

93rd CA' 05 added Art 15(5)

TMA Pai Case (2002)

No aid or affiliation
No state intervention

Only affiliation no aid
Academic and Affiliation provisions can be enforced

Both affiliation & aid
Academic and Affiliation provisions can be enforced and admit a "sprinkling of outsiders" to comply with Art 29(2)

Pramati Education Trust v. UoI (2014) : RTE Reservation under RTE Act 2009 does not apply to Minority Edu. Insti

Languages & the Law

Constitutional Reflections

Part II: Art 3: Internal Changes : State Reorganisation may be done on Linguistic basis (1956)
Part III : Art 30: Linguistic Minorities
Part V: Ch II: Art 120: Language of Legislative Proceedings of the Parliament
Part VI: Ch II: Art 210: Language of Legislative Proceedings of the State Legislatures
Part XVII: Union, Regional, Court Languages + VIII Schedule

- **Linguistic Survey is conducted by Language Division, Office of Registrar General & Census Commissioner, MHA**
- **Census 2011 : 121 Languages : 22 Scheduled, 99 Non Scheduled, 270 mother tongues grouped under Sch/Non Sch.**
  - *'mother tongue' is the language spoken in childhood by the person's mother to the person, the language mainly spoken at home*

Types of Languages

Scheduled
- 22 languages as per VIII Sch.
- Also mentioned in Census
- Languages listed here are official promoted by Govt.
- Originally, 14 languages
- 21 CA 1967 - Sindhi added
- 71 CA, 1992 - Konkani, Manipuri, Nepali
- 92 CA, 2004 - Bodo, Dogri, Maithili, Santali

Non Scheduled
- 99 incl. English
- Only mentioned in Census
- No official mandate to promote, hence, demand to inclusion in VIIIth Sch

Classical
- Recognised by the Union Govt for promotion
- Criteria - Old texts, heritage value, knowledge texts in poetry and prose.
- Tamil ('04), Sanskrit ('04), Telugu ('08), Kannada ('08), Malayalam ('13), Odia ('14)
- 2024 Additions : Marathi, Bengali, Assamese, Pali & Prakrit

Purpose	Languages Incl.	Governing Provisions
Union/Official	Hindi and English	• Art 343 & Official Languages Act, 1963
Regional/State Official	Official language(s) of the state	• Art 345 (states can make own laws) • eg. Karnataka Official Languages Act, 1963
Parliament/Bills/Acts	English (As per CoI) & Hindi (OLA, '63) Mother tongue after Chair permission	• Art 120, Art 348(1) & Official Languages Act, 1963
States/Bills/Acts	• Hindi/English/State's official language • Eng. Translation : Other lang/Pres Lang.	• Art 210, Art 348(1), Art 348(3), OLA, 1963 • Various State Official Language Acts
Centre State Comm.	Hindi/English; State may use regional lang.	• Article 346, 347
Higher Judiciary	• SC : only English for everything • HC : ◦ Judgements : English ◦ Proceedings : Hindi/Off. Lang (Incl. English) ▪ authorisation by the Governor and "with the previous consent of the President" ▪ 1965 : Cabinet Committee decided CJI consent needed	• Art 348(1), Art 348(2) • Official Languages Act, 1963 • RJ, UP, MP, Bihar HCs use Hindi for proceedings
Lower Judiciary	Official Language of the states, Recording of evidence may be in English per HC Order	• CPC, BNSS
Promotional Directive	Union's duty to promote and develop Hindi	• Art 351

Enablers of Fundamental Rights

Who are FRs for? Citizens/Non Citizens/Entities/As per FR/ SC Cases/Locus Standi can be relaxed in for some Writs/PILs

Who are FRs against?	Art 12
What can't violate FR?	Art 13
What can be done to rectify a FR Violation?	Art 32 (SC) & Art 226(HC)
Who decides?	Art 13 | 32 | 226
What are some limitations/exceptions/T&Cs	Art 31, 33-35

Who are FRs against?

Provision	Incl. as per CoI	Related Doctrines and Further Interpretations
Art 12	1. Govt. of India 2. Parliament 3. State Govts 4. State Legislatures 5. Local Authorities* 6. Other Authorities* (*within Indian territory or under GoI control)	• **Essentials** : Territory + Sovereignty + Govt + People + International Recognition • **Only applies to Part III (FR) and Part IV(DPSP)** ◦ SC can issue writs, orders, directions only for FR under 32 against 'State' ◦ HC can issue writs, orders, directions for FR under Art 226 against 'State' and others as State definition is only applicable for Part III and Part IV. • *Inclusions/Exclusions decided on a ***case by case basis*** applying as per SC tests/Doctrines ◦ **Judiciary [Hurra v. Hurra (2002)]** ▪ Higher Judiciary while performing judicial functions not 'State' : SC and HC final orders can't be challenged as violations of Art 32 • Even when appealing from HC to SC, HC is NOT a party to the case. ▪ Higher Judiciary while performing non judicial functions included as 'State' ▪ Subordinate Judiciary while performing Judicial and Non Judicial functions included as 'State' ◦ **Local Authorities** ▪ **Rashid Ahmed v. Municipal Board (1957) :** Municipality is 'State' ▪ **Ajit Singh v. State of Punjab (1967) :** Panchayat is 'State" ◦ **Constitutional Bodies & Statutory Bodies** are 'State' : RSEB Case (1967) ◦ **Other Authorities (PSU, Regulators)** ▪ **Doctrine of Instrumentality : RD Shetty Case (1979), Ajay Hasia Case (1981)** • Entire Share Capital held by the Govt. • Govt Fin. Assistance enough for entire corporation expenditure • State conferred monopoly status • Deep or pervasive State control • Public Importance functions • Govt Departments transferred to corporations ▪ Egs - Food Corporation of India, Public Sector Banks, Steel Authority held to be 'State' but BCCI, NCERT, Indian Council for Agri Research held not be 'State' hence **case by case basis** ◦ **Private Persons/Institutions/Companies etc** ▪ PILs have expanded the scope, and through various landmark cases such as MC Mehta, Badhua Mukti Morcha, the SC has upheld environment rights, exploitation, and movement rights against Private entities also.

What can't violate FR?

Core Conceptual Doctrines		
• **Doctrine of Severability :** *The courts can choose to declare specifically those sections, provisions, parts of a 'law' that violate FRs as invalid, and leave the rest of the law as valid. (Detailed test laid down under R.M.D. Chamarbaugwalla case, 1957)*		
• **Doctrine of Waiver of FRs :** *FRs **cannot** be waived by persons. [Several SC Cases such as Yusuf Ali and Omega Adv Agency)*		
Provisions	**Inclusions as per Constitution**	**Exclusions/Doctrines**
Art 13(1) & Art 13(2)(b)	• Pre Constitution Laws ◦ 'Laws in force' prior Constitution's commencement 26 Jan 1950	• **Doctrine of Eclipse [Bhikaji Dhakras v. State of MP (1955)]** ◦ Only applies to Pre Constitution Laws ◦ A Pre Constitution Law becomes invalid if it violates Part III. ◦ Later, if CoI is amended in a way that the Pre Constitution Law could be no longer invalid, then it can be revived. It means the Pre Constitution Law was invalid only for a specific period between the period of the commencement of the Constitution till the amendment of the CoI that could revive the pre constitution law, like an ***eclipse*** which is lifted.
Art 13(2), Art 13 (2)(a)	• Post Constitution Laws	• Incl. Ordinance, order, bye-law, rule, regulation, notification, legally recognised customs. • **Exclusions explicitly as per CoI** ◦ Art 13(4) : Constitutional Amendments u/a 368 [Added via 24th CA, 1971] ◦ Art 33 : Laws restricting FRs of security personnel etc. • **Exclusions as per SC Judgements** ◦ Emergency Proclamations u/a 358 & 359 restricting FRs [Ghulam Sarwar v. Union of India (1967)] ◦ DPSP v. FR : 39(b)(c) > Art 14, 19 (Minerva Mills, 1980) • **Judgements of SC and HC (Hurra v. Hurra, 2002)** • **IX Schedule :** ◦ Laws placed before 24 Apr1973 (Keshavananda Judgement) • Delimitation Commission's Orders

- ***Central and State Laws,***
- ***Central and State Executive Actions,***
- ***Higher Judiciary's Admin Decisions,***
- ***Subordinate Judiciary's and Admin Decisions***

→ **cannot violate FRs contained in Part III.** → **directions, orders, writs**

- **Art 13**
- **Art 32/226**

What can be done to rectify a FR Violation?

Type of Violation?	Jurisdiction	Remedy	Remarks
FR Violation	SC (32) or HC (226)	directions orders **writs**	• Constitutionality of Central and State Laws can be challenged at SC and HC. • HC Order would valid within the state only. • SC and HC have powers to issue 'Directions' and 'Orders' to declare such laws as invalid, writs are NOT necessarily issued for this purpose though petitions are filed under 32/226 • All Writ petitions are first subjected to admission hearings where the SC and HC decide whether to accept the petition • HC can issue writs for FR, LR, any purpose but SC can issue writs only for SC as courts of first instance • Writs are Original Jurisdiction of SC and HC • Civil Writs involve rights issues arising out Civil Laws, Criminal Writs involve rights issues arising out Criminal Laws. • *PILs are filed under Writ Jurisdiction with relaxed Procedures and Locus Standi • Parl can extend SC Writ Powers to any other court subject to its jurisdiction and without reducing SC powers to issue Writs [Art 32(3)]
Legal/Statutory Right/Any Other Purpose (226)	HC (226)		

Types of Writs

Type of Writ	Purpose	Available Against	Locus Standi*	Terms & Conditions
Habeas Corpus	Illegal/Arbitrary Arrest/Detention	Executive, Subordinate Judiciary, Private	Relaxed	• No court fees charged
Mandamus	Failure to perform any legal duty	Executive, Subordinate Judiciary, Private (if performing a public duty)	Strict*	• Cant be issued against Legislatures/Executive directing them enact a law or frame rules (delegated legislation respectively • Cant be issued against Pres/Gov • Continuing Mandamus (In PIL Cases, can be issued to monitor)
Prohibition	Jurisdictional Error	Quasi Judicial Body, Subordinate Court	Relaxed	• Can't be issued ◦ SC to HC ◦ HC to SC ◦ Within benches of SC ◦ Within benches of HC
Certiorari	Legal Error and/or Jurisdictional Error	Quasi Judicial Body, Subordinate Court	Relaxed	
Quo Warranto	Wrongful occupation of appointed public office	Executive	Relaxed	• Not available to question suitability, only eligibility violations are entertained

Important Doctrines

Doctrine	Basic Meaning (Detailed Explanations covered under Specific PCNs covering the related topic)
Doctrine of Basic Structure	Core elements of the Indian Constitution cannot be changed or removed. These elements are considered essential to the Constitution's identity and purpose
Doctrine of Eclipse	If a law conflicts with fundamental rights, it doesn't become invalid immediately. Instead, it becomes "eclipsed" and cannot be enforced until the conflict is resolved through a constitutional amendment
Doctrine of Waiver	A waiver is when someone voluntarily gives up a right or claim. However, this does not apply to fundamental rights, which cannot be waived
Doctrine of Severability	Allows courts to separate valid parts of a law from invalid parts. If one part of a law is unconstitutional, the rest of the law can still be enforced
Doctrine of Colourable Legislation	Prevents legislatures from indirectly doing something they are not allowed to do directly. It ensures that laws are not passed under false pretenses
Doctrine of Pith and Substance	Helps determine if a law falls within a legislature's authority. It examines the true nature and essence of the law to decide its validity
Doctrine of Proportionality	Ensures that any restriction on rights is proportionate to the goal being achieved. It requires a rational connection between the means and the objective
Doctrine of Legitimate Expectation	Public authorities must act fairly and consistently. If they make promises or establish practices, they should not change them arbitrarily without notice
Doctrine of Harmonious Construction	Used to interpret laws in a way that resolves conflicts between different provisions. It aims to make all parts of a law work together cohesively

LAWS	Protection of Women from Domestic Violence Act, 2005	Dowry Prohibition Act, 1961	Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013	Maternity Benefit Act, 1961	Medical Termination of Pregnancy Act, 1971	Immoral Traffic (Prevention) Act, 1956
Primary Objective	Protect women from domestic abuse within family/household	Prevent giving, taking, or demanding dowry	Prevent workplace sexual harassment and ensure safe work environment	Provide maternity leave and employment protection	Regulate lawful abortion and reproductive rights	Prevent trafficking and commercial sexual exploitation
Area of Protection	Domestic sphere/family relationships	Marriage-related exploitation	Workplace dignity and safety	Employment and maternal health	Reproductive autonomy and health	Human trafficking and prostitution rackets
Beneficiaries	Women in domestic relationships	Married women and families	Women employees, interns, domestic workers	Pregnant working women	Pregnant women	Women and girls vulnerable to trafficking
Applicability	Shared household, marriage, live-in relationships, family relations	Entire marriage process before, during, after marriage	Public and private workplaces	Factories, mines, shops, establishments	Registered medical facilities	Brothels, trafficking networks, exploitation chains
Nature of Law	Civil law with criminal consequences	Criminal law	Civil + quasi-judicial redressal	Labour welfare legislation	Medical-regulatory law	Criminal law
Who Can File Complaint?	Aggrieved woman, protection officer, NGO, relative	Victim, relatives, police	Victim employee	Woman employee	Woman seeking termination	Police, victim, social welfare agencies
Key Rights Provided	Residence, protection, maintenance, custody	Freedom from dowry demand	Safe workplace, complaint mechanism	Paid maternity leave	Safe abortion access	Rescue and rehabilitation
Types of Abuse Covered	Physical, sexual, emotional, verbal, economic	Financial coercion and harassment	Verbal, physical, visual, digital harassment	Employment discrimination	Forced continuation/termination of pregnancy	Exploitation for prostitution
Key Institutional Mechanism	Protection Officers & Service Providers	Anti-dowry enforcement	Internal Complaints Committee (ICC)	Employer obligation	Medical Boards in certain cases	Rescue homes & vigilance
Important Reliefs	Protection order, residence order, maintenance	Punishment for demand/taking dowry	Compensation, inquiry, disciplinary action	Paid leave, nursing breaks	Legal termination of pregnancy	Rescue, rehabilitation
Nature of Proceedings	Primarily civil, expedited	Criminal trial	Inquiry-based redressal	Labour adjudication	Medical approval system	Criminal prosecution
Protection Against Retaliation	Yes	Limited	Strong anti-victimisation safeguards	Employment security	Privacy protection	Witness/victim protection
Important Amendment/ Expansion	Wider recognition of live-in relationships	Strengthened via IPC dowry provisions	Based on Vishaka Guidelines	Expanded maternity leave to 26 weeks	Expanded abortion period under 2021 rules	Updated anti-trafficking enforcement

Feature	Protection of Children from Sexual Offences Act, 2012	Juvenile Justice (Care and Protection of Children) Act, 2015	Prohibition of Child Marriage Act, 2006	Child Labour (Prohibition and Regulation) Act, 1986
Primary Objective	Protect children from sexual abuse, exploitation, and pornography	Care, protection, rehabilitation, adoption, and justice for children	Prevent child marriages and protect minors from forced marriage	Prevent employment of children in harmful occupations
Target Group	All children below 18 years	Children below 18 years	Boys below 21 years, girls below 18 years	Children below 14 years; adolescents 14–18 years
Key Problem Addressed	Child sexual abuse	Neglect, abandonment, delinquency, rehabilitation	Early marriage and exploitation	Economic exploitation of children
Definition of Child	Person below 18 years	Person below 18 years	Female below 18; male below 21	Child below 14; adolescent 14–18
Scope of Protection	Sexual assault, harassment, pornography	Care, shelter, adoption, rehabilitation, conflict with law	Marriage-related exploitation	Hazardous and exploitative labour
Key Offences Covered	Penetrative assault, aggravated assault, sexual harassment, pornography	Abuse, abandonment, trafficking, cruelty	Conducting/promoting child marriage	Employing children in prohibited occupations
Special Authorities Created	Special Courts, Child Welfare Police Officer	Juvenile Justice Board (JJB), Child Welfare Committee (CWC)	Child Marriage Prohibition Officer	Labour Inspectors
Complaint Filing	Police/FIR mandatory	Child Welfare Committee or police	Child, parents, NGO, police	Labour authority or police
Mandatory Reporting	Yes; failure punishable	Authorities must report abuse	Not mandatory for all citizens	Inspection-based enforcement
Trial Mechanism	Child-friendly Special Court	Juvenile Board/CWC inquiry	Judicial Magistrate	Labour Court/Criminal Court
Confidentiality Protection	Strong confidentiality of child identity	Child-sensitive proceedings	Moderate	Limited
Child-Friendly Procedures	Yes; statement at safe place, female officer preferred	Yes; non-adversarial environment	Limited	Limited
Bail Provisions	Strict in aggravated cases	Child-centric bail norms	Regular criminal procedure	Regular procedure
Rehabilitation Measures	Counselling, compensation, medical aid	Foster care, adoption, rehabilitation homes	Shelter, maintenance, annulment support	Rescue and rehabilitation
Role of State	Investigation and victim support	Welfare, institutional care, reintegration	Prevention and awareness	Labour monitoring
Role of Courts	Fast-track child-friendly trials	Juvenile justice administration	Declare marriage void/voidable	Punish employers
Preventive Mechanism	Awareness + reporting	Child care institutions	Prevention officers	Labour inspections
Victim Compensation	Yes	Rehabilitation support	Possible maintenance orders	Limited
Burden of Proof	Certain presumptions favour child victim	Welfare-oriented inquiry	Criminal proof required	Employer liability
Special Feature	Gender-neutral child sexual abuse law	Comprehensive child justice ecosystem	Marriage can be voidable	Covers adolescent hazardous labour